



Reprinted  
February 24, 2026

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# ENGROSSED

## HOUSE BILL No. 1004

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DIGEST OF HB 1004 (Updated February 23, 2026 4:51 pm - DI 152)

**Citations Affected:** Numerous provisions throughout the Indiana Code.

**Synopsis:** Various education matters. Makes changes to various education provisions concerning the following: (1) Certain school corporation accounting requirements. (2) The "nonpublic school" definition. (3) Recodification and state board of education (state board) transition provisions. (4) The state board's duties. (5) Powers of the governing bodies of school corporations. (6) Public-private agreements  
(Continued next page)

**Effective:** July 1, 2026.

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### Behning, McGuire, Smith H

(SENATE SPONSORS — JOHNSON T, RAATZ, ROGERS)

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January 8, 2026, read first time and referred to Committee on Education.  
January 22, 2026, amended, reported — Do Pass.  
January 27, 2026, read second time, amended, ordered engrossed.  
January 28, 2026, engrossed. Read third time, passed. Yeas 67, nays 26.

#### SENATE ACTION

February 2, 2026, read first time and referred to Committee on Education and Career Development.  
February 12, 2026, amended, reported favorably — Do Pass; reassigned to Committee on Appropriations.  
February 19, 2026, reported favorably — Do Pass.  
February 23, 2026, read second time, amended, ordered engrossed.

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by charter schools for the construction or renovation of schools. (7) Adoption of certain rules by the state board. (8) Provisions that apply to a qualified district or qualified high school. (9) Department of education's (department) duties regarding initiatives for teacher recruitment and retention of certain educators. (10) Internet use policy. (11) Graduation plan requirements. (12) Instruction on alcoholic beverages, tobacco, prescription drugs, and controlled substances. (13) Recognition program criteria application. (14) Reporting on certain student expenditure information. (15) Excused absences. (16) Automated external defibrillator (AED) requirements. (17) Grant awards from the Indiana secured school fund. (18) Joint meetings of governing bodies of school corporations. (19) The borrowing of money by school corporations for certain hardware. Relocates a provision regarding certain possession and storage of a firearm educational materials from the department to the department of homeland security. Allows use of temporary teacher contracts for teachers who have been issued an emergency permit. Removes or repeals various education and higher education provisions concerning the following: (1) Expired and expiring provisions. (2) Duties, discretionary actions, and restrictions regarding the department. (3) Posting of certain information by schools. (4) Discretionary display of certain words by qualified districts. (5) Academic receivership. (6) Staff performance evaluations regarding Indianapolis Public Schools. (7) Certain powers of governing bodies of school corporations. (8) Certain student teaching agreement requirements with postsecondary educational institutions. (9) Certain discretionary authority of school corporations regarding joining regional school study councils, distributing payroll based on contractual and compensation plans, and establishing and using funds for nursery schools. (10) Spending restrictions for remediation programs. (11) Certain website posting requirements for school corporations and charter schools. (12) Reporting regarding students who meet certain requirements during their expected graduation year. (13) Discretion regarding certain feasibility studies. (14) Certain rights and privileges of teachers employed in a joint program or special education cooperatives or with regard to certain interlocal cooperation agreements. (15) Joint investment funds. (16) Application of certain laws to joint programs. (17) Establishment of certain students as transfer students. (18) Discretion regarding employee health coverage for certain individuals. (19) Notification to the secretary of education by a superintendent regarding a conviction or certain final actions. (20) References to an online platform for training. (21) Reports regarding adjunct teachers. (22) Teacher contract requirements regarding the number of work hours per day. (23) Voiding of contracts with teachers if certain conditions apply. (24) Regular teacher's contract requirement for principals, assistant principals, and directors of special education. (25) The provision of certain individual test scores regarding examinations required for teacher licensure. (26) The definition of "secondary school" regarding the federal teacher loan forgiveness program. (27) The definition of "deficit financing" with regard to the Gary Community School Corporation and the Muncie Community school corporation. (28) Allowing instruction on bullying prevention and child abuse by certain individuals. (29) Timing of statewide assessment requirements for state accredited nonpublic schools and eligible schools. (30) Requirement that the department make available certain diagnostic tools. (31) Discretionary portfolio programs by governing bodies of school corporations. (32) Allowing expulsion if a student's legal settlement is not in an attendance area. (33) Report requirement by the education commission of the states. (34) Duty of a school corporation to preserve instructional programs. (35) The primary care physician loan forgiveness program. (36) Required payments by postsecondary credit bearing proprietary educational institutions regarding cost of performing team onsite investigations.

(Continued next page)



(37) Indiana excellence in teaching endowment. (38) Listing of funds established outside certain education provisions. Repeals and relocates education provisions regarding programs administered by the state with the following changes: (1) Removes or repeals the following: (A) Dissemination of certain information regarding the teacher referral system. (B) Expired provisions. (C) Certain uses of the Senator David C. Ford educational technology fund. (D) The technology plan grant program and requirements. (E) School social worker qualification requirements. (F) An annual report regarding system of teacher and student advancement grants. (G) The Indiana education residency pilot program. (H) A biannual progress report regarding the next level computer science program and fund. (I) A noncompliance and transfer of responsibility provision regarding the next level computer science program and fund. (2) Amends certain requirements regarding the process for evaluating curricular materials. Makes conforming changes.





Reprinted  
February 24, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

## ENGROSSED HOUSE BILL No. 1004

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A BILL FOR AN ACT to amend the Indiana Code concerning education.

*Be it enacted by the General Assembly of the State of Indiana:*

1       SECTION 1. IC 5-1-11.5-3, AS ADDED BY P.L.244-2017,  
2       SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
3       JULY 1, 2026]: Sec. 3. **(a)** This section applies only to a school  
4       corporation that has an ADM of more than fifteen thousand (15,000)  
5       for the school corporation's most recent fall count. Notwithstanding any  
6       other law, a school corporation subject to this section may not issue  
7       bonds after August 15, 2020, unless the school corporation has for its  
8       preceding budget year prepared an annual financial report using the  
9       modified accrual basis of accounting in accordance with generally  
10      accepted accounting principles. However, upon request of a school  
11      corporation to the state examiner, the state examiner may waive the  
12      requirement under this section if the state examiner determines that a  
13      waiver is in the best interest of the school corporation.  
14      **(b) If a school corporation described in subsection (a) uses the**  
15      **accounting described in subsection (a), the school corporation may**

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**not be required to use another form of accounting.**

SECTION 2. IC 5-11-10-1.6, AS AMENDED BY P.L.181-2023, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1.6. (a) As used in this section, "governmental entity" refers to any of the following:

- (1) A municipality (as defined in IC 36-1-2-11).
- (2) A school corporation (as defined in IC 36-1-2-17), including a school extracurricular account.
- (3) A county.
- (4) A regional water or sewer district organized under IC 13-26 or under IC 13-3-2 (before its repeal).
- (5) A municipally owned utility that is subject to IC 8-1.5-3 or IC 8-1.5-4.
- (6) A board of an airport authority under IC 8-22-3.
- (7) A board of aviation commissioners under IC 8-22-2.
- (8) A conservancy district.
- (9) A public transportation corporation under IC 36-9-4.
- (10) A commuter transportation district under IC 8-5-15.
- (11) The state.
- (12) A solid waste management district established under IC 13-21 or IC 13-9.5 (before its repeal).
- (13) A levee authority established under IC 14-27-6.
- (14) A county building authority under IC 36-9-13.
- (15) A soil and water conservation district established under IC 14-32.
- (16) The northwestern Indiana regional planning commission established by IC 36-7-7.6-3.

(b) As used in this section, "claim" means a bill or an invoice submitted to a governmental entity for goods or services.

(c) The fiscal officer of a governmental entity may not draw a warrant or check for payment of a claim unless all of the following apply:

- (1) There is a fully itemized invoice or bill for the claim.
- (2) The invoice or bill is approved by the officer or person receiving the goods and services.
- (3) The invoice or bill is filed with the governmental entity's fiscal officer.
- (4) The fiscal officer audits and certifies before payment that the invoice or bill is true and correct.
- (5) Payment of the claim is allowed by the governmental entity's legislative body or the board or official having jurisdiction over allowance of payment of the claim.



(d) Notwithstanding subsection (c), the following are permitted:

(1) A school corporation, with prior approval of the board having jurisdiction over allowance of payment of the claim, may make payment in advance of receipt of services as allowed by guidelines developed under ~~IC 20-20-13-10~~ **IC 20-20.5-6-5**.

(2) A municipality may make advance payment of meal expenses to a municipal employee who will be traveling on official municipal business if the municipal fiscal body has adopted an ordinance allowing the advance payment. An ordinance adopted under this subdivision must provide for all of the following:

(A) The maximum amount that may be paid in advance.

(B) The required invoices and other documentation that must be submitted by the municipal employee.

(C) Reimbursement from the wages of the municipal employee if the municipal employee does not submit the required invoices and documentation.

(3) A political subdivision (as defined in IC 36-1-2-13) may make advance payments to contractors to enable the contractors to purchase materials needed for a public works project of the political subdivision. The solicitation for the public works contract providing for advance payment for contractors under this subdivision must include the following information:

(A) That the political subdivision will make advance payments to contractors to enable contractors to purchase materials.

(B) Any limitations on the amount of advance payments that will be made.

(C) Requirements for documentation relating to making advance payments to contractors for materials.

(D) Any other information about advance payment for materials the political subdivision considers useful to contractors that make offers.

(4) A political subdivision (as defined in IC 36-1-2-13) may make advance payments for goods or services before the goods are delivered or services are completed if the fiscal body of the political subdivision authorizes making advance payments. If the fiscal body of the political subdivision authorizes making advance payments, the local fiscal officer or the local fiscal officer's designee must do all of the following when advance payments are made:

(A) Track prepayments by defining the prepayment on a purchase order.

(B) Create a prepayment invoice that is associated with the



- 1 purchase order.
- 2 (C) Require insurance or a surety bond in the amount of the
- 3 prepayment if the amount of the prepayment is more than one
- 4 hundred fifty thousand dollars (\$150,000).
- 5 (e) Advance payments made under subsection (d)(3) or (d)(4) may
- 6 not exceed the lesser of the following:
- 7 (1) Fifty percent (50%) of the entire cost of the contract.
- 8 (2) Two million dollars (\$2,000,000).
- 9 (f) The fiscal officer of a governmental entity shall issue checks or
- 10 warrants for claims by the governmental entity that meet all of the
- 11 requirements of this section. The fiscal officer does not incur personal
- 12 liability for disbursements:
- 13 (1) processed in accordance with this section; and
- 14 (2) for which funds are appropriated and available.
- 15 (g) The certification provided for in subsection (c)(4) must be on a
- 16 form prescribed by the state board of accounts.
- 17 SECTION 3. IC 5-22-1-2, AS AMENDED BY P.L.140-2022,
- 18 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 19 JULY 1, 2026]: Sec. 2. Except as provided in this article, this article
- 20 does not apply to the following:
- 21 (1) The commission for higher education.
- 22 (2) A state educational institution. However, IC 5-22-5-9 and
- 23 IC 5-22-15 apply to a state educational institution.
- 24 (3) Military officers and military and armory boards of the state.
- 25 (4) An entity established by the general assembly as a body
- 26 corporate and politic. However, IC 5-22-15 applies to a body
- 27 corporate and politic.
- 28 (5) A local hospital authority under IC 5-1-4.
- 29 (6) A municipally owned utility under IC 8-1-11.1 or IC 8-1.5.
- 30 (7) Hospitals established and operated under IC 16-22-1 through
- 31 IC 16-22-5, IC 16-22-8, IC 16-23-1, or IC 16-24-1.
- 32 (8) A library board under IC 36-12-3-16(b).
- 33 (9) A local housing authority under IC 36-7-18.
- 34 (10) Tax exempt Indiana nonprofit corporations leasing and
- 35 operating a city market owned by a political subdivision.
- 36 (11) A person paying for a purchase or lease with funds other than
- 37 public funds.
- 38 (12) A person that has entered into an agreement with a
- 39 governmental body under IC 5-23.
- 40 (13) A municipality for the operation of municipal facilities used
- 41 for the collection, treatment, purification, and disposal in a
- 42 sanitary manner of liquid and solid waste, sewage, night soil, and





1 industrial waste.

2 (14) The department of financial institutions established by  
3 IC 28-11-1-1.

4 (15) The insurance commissioner in retaining an examiner for  
5 purposes of IC 27-1-3.1-9.

6 (16) The department of natural resources for the procurement of  
7 supplies purchased for resale at properties owned or managed by  
8 the department of natural resources.

9 (17) The Indiana horse racing commission in making an  
10 expenditure under IC 4-31-3-15(b).

11 (18) An entity that has entered into a memorandum of  
12 understanding with the department of education under  
13 ~~IC 20-20-38.5-2(a)(2)~~; **IC 20-20.5-11-2(a)(2)**.

14 SECTION 4. IC 6-1.1-20-3.1, AS AMENDED BY P.L.68-2025,  
15 SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
16 JULY 1, 2026]: Sec. 3.1. (a) Subject to section 3.5(a)(1)(C) of this  
17 chapter, this section applies only to the following:

18 (1) A controlled project (as defined in section 1.1 of this chapter  
19 as in effect June 30, 2008) for which the proper officers of a  
20 political subdivision make a preliminary determination in the  
21 manner described in subsection (b) before July 1, 2008.

22 (2) An elementary school building, middle school building, high  
23 school building, or other school building for academic instruction  
24 that:

25 (A) is a controlled project;

26 (B) will be used for any combination of kindergarten through  
27 grade 12; and

28 (C) will not cost more than the lesser of the following:

29 (i) The threshold amount determined under this item. In the  
30 case of an ordinance or resolution adopted before January 1,  
31 2018, making a preliminary determination to issue bonds or  
32 enter into a lease for the project, the threshold amount is ten  
33 million dollars (\$10,000,000). In the case of an ordinance or  
34 resolution adopted after December 31, 2017, and before  
35 January 1, 2019, making a preliminary determination to  
36 issue bonds or enter into a lease for the project, the threshold  
37 amount is fifteen million dollars (\$15,000,000). In the case  
38 of an ordinance or resolution adopted in a calendar year after  
39 December 31, 2018, making a preliminary determination to  
40 issue bonds or enter into a lease for the project, the threshold  
41 amount is an amount (as determined by the department of  
42 local government finance) equal to the result of the



maximum levy growth quotient determined under IC 6-1.1-18.5-2 for the year multiplied by the threshold amount determined under this item for the preceding calendar year. In the case of a threshold amount determined under this item that applies for a calendar year after December 31, 2018, the department of local government finance shall publish the threshold in the Indiana Register under IC 4-22-7-7 not more than sixty (60) days after the date the budget agency releases the maximum levy growth quotient for the ensuing year under IC 6-1.1-18.5-2.

(ii) An amount equal to one percent (1%) of the total gross assessed value of property within the political subdivision on the last assessment date, if that total gross assessed value is more than one billion dollars (\$1,000,000,000), or ten million dollars (\$10,000,000), if the total gross assessed value of property within the political subdivision on the last assessment date is not more than one billion dollars (\$1,000,000,000).

(3) Any other controlled project that:

(A) is not a controlled project described in subdivision (1) or (2); and

(B) will not cost the political subdivision more than the lesser of the following:

(i) The threshold amount determined under this item. In the case of an ordinance or resolution adopted before January 1, 2018, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is twelve million dollars (\$12,000,000). In the case of an ordinance or resolution adopted after December 31, 2017, and before January 1, 2019, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is fifteen million dollars (\$15,000,000). In the case of an ordinance or resolution adopted in a calendar year after December 31, 2018, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is an amount (as determined by the department of local government finance) equal to the result of the maximum levy growth quotient determined under IC 6-1.1-18.5-2 for the year multiplied by the threshold amount determined under this item for the preceding calendar year. In the case of a threshold amount determined under this item that applies for a calendar year



after December 31, 2018, the department of local government finance shall publish the threshold in the Indiana Register under IC 4-22-7-7 not more than sixty (60) days after the date the budget agency releases the maximum levy growth quotient for the ensuing year under IC 6-1.1-18.5-2.

(ii) An amount equal to one percent (1%) of the total gross assessed value of property within the political subdivision on the last assessment date, if that total gross assessed value is more than one hundred million dollars (\$100,000,000), or one million dollars (\$1,000,000), if the total gross assessed value of property within the political subdivision on the last assessment date is not more than one hundred million dollars (\$100,000,000).

(4) A controlled project funded by debt service if the scope of the project changes from the purpose of the project initially advertised to taxpayers as determined under section 4.2(c) of this chapter.

(5) This subdivision does not apply to a project for which a public hearing to issue bonds or enter into a lease has been conducted under IC 20-26-7-37 before July 1, 2023, or to a project for which an ordinance or resolution making a preliminary determination to issue bonds or enter into a lease is adopted after June 30, 2025.

Any other controlled project if both of the following apply:

(A) The political subdivision's total debt service tax rate is more than forty cents (\$0.40) per one hundred dollars (\$100) of assessed value, but less than eighty cents (\$0.80) per one hundred dollars (\$100) of assessed value.

(B) The controlled project is not otherwise described in section 3.5(a)(1) of this chapter.

This subdivision expires December 31, 2025. For purposes of this subdivision, a political subdivision's total debt service tax rate does not include a tax rate imposed in a referendum debt service levy approved by voters.

(6) Any other controlled project if the following apply:

(A) An ordinance or resolution making a preliminary determination to issue bonds or enter into a lease for the project is adopted after June 30, 2025.

(B) The controlled project is not otherwise described in section 3.5(a)(1) of this chapter.

(C) In the case of a:

(i) school corporation, the school corporation's total debt



1 service tax rate is more than forty cents (\$0.40) per one  
 2 hundred dollars (\$100) of assessed value, but not more than  
 3 seventy cents (\$0.70) per one hundred dollars (\$100) of  
 4 assessed value;

5 (ii) city, county, or town, the city's, county's, or town's total  
 6 debt service tax rate is more than twenty-five cents (\$0.25)  
 7 per one hundred dollars (\$100) of assessed value, but not  
 8 more than forty cents (\$0.40) per one hundred dollars (\$100)  
 9 of assessed value; or

10 (iii) political subdivision not described in item (i) or (ii), the  
 11 political subdivision's total debt service tax rate is more than  
 12 five cents (\$0.05) per one hundred dollars (\$100) of  
 13 assessed value, but not more than ten cents (\$0.10) per one  
 14 hundred dollars (\$100) of assessed value.

15 However, this subdivision does not apply to a project for which a  
 16 public hearing to issue bonds or enter into a lease has been  
 17 conducted under IC 20-26-7-37 before July 1, 2025. For purposes  
 18 of this subdivision, a political subdivision's total debt service tax  
 19 rate does not include a tax rate imposed in a referendum debt  
 20 service tax levy approved by voters.

21 (b) A political subdivision may not impose property taxes to pay  
 22 debt service on bonds or lease rentals on a lease for a controlled project  
 23 without completing the following procedures:

24 (1) The proper officers of a political subdivision shall publish  
 25 notice in accordance with IC 5-3-1 and send notice by first class  
 26 mail to the circuit court clerk ~~and to any organization that delivers~~  
 27 ~~to the officers, before January 1 of that year, an annual written~~  
 28 ~~request for such notices of any meeting to consider adoption of a~~  
 29 ~~resolution or an ordinance making a preliminary determination to~~  
 30 ~~issue bonds or enter into a lease~~ and shall conduct at least two (2)  
 31 public hearings on a preliminary determination before adoption  
 32 of the resolution or ordinance. The political subdivision must at  
 33 each of the public hearings on the preliminary determination  
 34 allow the public to testify regarding the preliminary determination  
 35 and must make the following information available to the public  
 36 at each of the public hearings on the preliminary determination,  
 37 in addition to any other information required by law:

38 (A) The result of the political subdivision's current and  
 39 projected annual debt service payments divided by the net  
 40 assessed value of taxable property within the political  
 41 subdivision.

42 (B) The result of:



(i) the sum of the political subdivision's outstanding long term debt plus the outstanding long term debt of other taxing units that include any of the territory of the political subdivision; divided by

(ii) the net assessed value of taxable property within the political subdivision.

(C) The information specified in subdivision (3)(A) through (3)(H).

(2) When the proper officers of a political subdivision make a preliminary determination to issue bonds or enter into a lease for a controlled project, the officers shall give notice of the preliminary determination by:

(A) publication in accordance with IC 5-3-1; and

(B) first class mail to the circuit court clerk. ~~and to the organizations described in subdivision (1).~~

(3) A notice under subdivision (2) of the preliminary determination of the political subdivision to issue bonds or enter into a lease for a controlled project must include the following information:

(A) The maximum term of the bonds or lease.

(B) The maximum principal amount of the bonds or the maximum lease rental for the lease.

(C) The estimated interest rates that will be paid and the total interest costs associated with the bonds or lease.

(D) The purpose of the bonds or lease.

(E) A statement that any owners of property within the political subdivision or registered voters residing within the political subdivision who want to initiate a petition and remonstrance process against the proposed debt service or lease payments must file a petition that complies with subdivisions (4) and (5) not later than thirty (30) days after publication in accordance with IC 5-3-1.

(F) With respect to bonds issued or a lease entered into to open:

(i) a new school facility; or

(ii) an existing facility that has not been used for at least three (3) years and that is being reopened to provide additional classroom space;

the estimated costs the school corporation expects to incur annually to operate the facility.

(G) A statement of whether the school corporation expects to appeal for a new facility adjustment (as defined in



IC 20-45-1-16 (repealed) before January 1, 2009) for an increased maximum permissible tuition support levy to pay the estimated costs described in clause (F).

(H) The following information:

(i) The political subdivision's current debt service levy and rate.

(ii) The estimated increase to the political subdivision's debt service levy and rate that will result if the political subdivision issues the bonds or enters into the lease.

(iii) The estimated amount of the political subdivision's debt service levy and rate that will result during the following ten (10) years if the political subdivision issues the bonds or enters into the lease, after also considering any changes that will occur to the debt service levy and rate during that period on account of any outstanding bonds or lease obligations that will mature or terminate during that period.

(I) The information specified in subdivision (1)(A) through (1)(B).

(4) After notice is given, a petition requesting the application of a petition and remonstrance process may be filed by the lesser of:

(A) five hundred (500) persons who are either owners of property within the political subdivision or registered voters residing within the political subdivision; or

(B) five percent (5%) of the registered voters residing within the political subdivision.

(5) The state board of accounts shall design and, upon request by the county voter registration office, deliver to the county voter registration office or the county voter registration office's designated printer the petition forms to be used solely in the petition process described in this section. The county voter registration office shall issue to an owner or owners of property within the political subdivision or a registered voter residing within the political subdivision the number of petition forms requested by the owner or owners or the registered voter. Each form must be accompanied by instructions detailing the requirements that:

(A) the carrier and signers must be owners of property or registered voters;

(B) the carrier must be a signatory on at least one (1) petition;

(C) after the signatures have been collected, the carrier must swear or affirm before a notary public that the carrier witnessed each signature; and



- 1 (D) govern the closing date for the petition period.
- 2 Persons requesting forms may be required to identify themselves
- 3 as owners of property or registered voters and may be allowed to
- 4 pick up additional copies to distribute to other owners of property
- 5 or registered voters. Each person signing a petition must indicate
- 6 whether the person is signing the petition as a registered voter
- 7 within the political subdivision or is signing the petition as the
- 8 owner of property within the political subdivision. A person who
- 9 signs a petition as a registered voter must indicate the address at
- 10 which the person is registered to vote. A person who signs a
- 11 petition as an owner of property must indicate the address of the
- 12 property owned by the person in the political subdivision.
- 13 (6) Each petition must be verified under oath by at least one (1)
- 14 qualified petitioner in a manner prescribed by the state board of
- 15 accounts before the petition is filed with the county voter
- 16 registration office under subdivision (7).
- 17 (7) Each petition must be filed with the county voter registration
- 18 office not more than thirty (30) days after publication under
- 19 subdivision (2) of the notice of the preliminary determination.
- 20 (8) The county voter registration office shall determine whether
- 21 each person who signed the petition is a registered voter.
- 22 However, after the county voter registration office has determined
- 23 that at least five hundred twenty-five (525) persons who signed
- 24 the petition are registered voters within the political subdivision,
- 25 the county voter registration office is not required to verify
- 26 whether the remaining persons who signed the petition are
- 27 registered voters. If the county voter registration office does not
- 28 determine that at least five hundred twenty-five (525) persons
- 29 who signed the petition are registered voters, the county voter
- 30 registration office shall, not more than fifteen (15) business days
- 31 after receiving a petition, forward a copy of the petition to the
- 32 county auditor. Not more than ten (10) business days after
- 33 receiving the copy of the petition, the county auditor shall provide
- 34 to the county voter registration office a statement verifying:
- 35 (A) whether a person who signed the petition as a registered
- 36 voter but is not a registered voter, as determined by the county
- 37 voter registration office, is the owner of property in the
- 38 political subdivision; and
- 39 (B) whether a person who signed the petition as an owner of
- 40 property within the political subdivision does in fact own
- 41 property within the political subdivision.
- 42 (9) The county voter registration office, not more than ten (10)



1 business days after determining that at least five hundred  
2 twenty-five (525) persons who signed the petition are registered  
3 voters or receiving the statement from the county auditor under  
4 subdivision (8), as applicable, shall make the final determination  
5 of the number of petitioners that are registered voters in the  
6 political subdivision and, based on the statement provided by the  
7 county auditor, the number of petitioners that own property within  
8 the political subdivision. Whenever the name of an individual  
9 who signs a petition form as a registered voter contains a minor  
10 variation from the name of the registered voter as set forth in the  
11 records of the county voter registration office, the signature is  
12 presumed to be valid, and there is a presumption that the  
13 individual is entitled to sign the petition under this section. Except  
14 as otherwise provided in this chapter, in determining whether an  
15 individual is a registered voter, the county voter registration office  
16 shall apply the requirements and procedures used under IC 3 to  
17 determine whether a person is a registered voter for purposes of  
18 voting in an election governed by IC 3. However, an individual is  
19 not required to comply with the provisions concerning providing  
20 proof of identification to be considered a registered voter for  
21 purposes of this chapter. A person is entitled to sign a petition  
22 only one (1) time in a particular petition and remonstrance  
23 process under this chapter, regardless of whether the person owns  
24 more than one (1) parcel of real property, mobile home assessed  
25 as personal property, or manufactured home assessed as personal  
26 property, or a combination of those types of property within the  
27 subdivision and regardless of whether the person is both a  
28 registered voter in the political subdivision and the owner of  
29 property within the political subdivision. Notwithstanding any  
30 other provision of this section, if a petition is presented to the  
31 county voter registration office within forty-five (45) days before  
32 an election, the county voter registration office may defer acting  
33 on the petition, and the time requirements under this section for  
34 action by the county voter registration office do not begin to run  
35 until five (5) days after the date of the election.

36 (10) The county voter registration office must file a certificate and  
37 each petition with:

38 (A) the township trustee, if the political subdivision is a  
39 township, who shall present the petition or petitions to the  
40 township board; or

41 (B) the body that has the authority to authorize the issuance of  
42 the bonds or the execution of a lease, if the political





1 subdivision is not a township;  
2 within thirty-five (35) business days of the filing of the petition  
3 requesting a petition and remonstrance process. The certificate  
4 must state the number of petitioners that are owners of property  
5 within the political subdivision and the number of petitioners who  
6 are registered voters residing within the political subdivision.

7 If a sufficient petition requesting a petition and remonstrance process  
8 is not filed by owners of property or registered voters as set forth in this  
9 section, the political subdivision may issue bonds or enter into a lease  
10 by following the provisions of law relating to the bonds to be issued or  
11 lease to be entered into.

12 (c) A political subdivision may not divide a controlled project in  
13 order to avoid the requirements of this section and section 3.2 of this  
14 chapter. A person that owns property within a political subdivision or  
15 a person that is a registered voter residing within a political subdivision  
16 may file a petition with the department of local government finance  
17 objecting that the political subdivision has divided a controlled project  
18 in order to avoid the requirements of this section and section 3.2 of this  
19 chapter. The petition must be filed not more than ten (10) days after the  
20 political subdivision gives notice of the political subdivision's decision  
21 to issue bonds or enter into leases for a capital project that the person  
22 believes is the result of a division of a controlled project that is  
23 prohibited by this subsection. If the department of local government  
24 finance receives a petition under this subsection, the department shall  
25 not later than thirty (30) days after receiving the petition make a final  
26 determination on the issue of whether the political subdivision divided  
27 a controlled project in order to avoid the requirements of this section  
28 and section 3.2 of this chapter. If the department of local government  
29 finance determines that a political subdivision divided a controlled  
30 project in order to avoid the requirements of this section and section  
31 3.2 of this chapter and the political subdivision continues to desire to  
32 proceed with the project, the political subdivision shall fulfill the  
33 requirements of this section and section 3.2 of this chapter, if  
34 applicable, regardless of the cost of the project in dispute. A political  
35 subdivision shall be considered to have divided a capital project in  
36 order to avoid the requirements of this section and section 3.2 of this  
37 chapter if the result of one (1) or more of the subprojects cannot  
38 reasonably be considered an independently desirable end in itself  
39 without reference to another capital project. This subsection does not  
40 prohibit a political subdivision from undertaking a series of capital  
41 projects in which the result of each capital project can reasonably be  
42 considered an independently desirable end in itself without reference



1 to another capital project.

2 SECTION 5. IC 6-1.1-20-3.2, AS AMENDED BY P.L.246-2017,  
3 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
4 JULY 1, 2026]: Sec. 3.2. (a) Subject to section 3.5(a)(1)(C) of this  
5 chapter, this section applies only to controlled projects described in  
6 section 3.1(a) of this chapter.

7 (b) If a sufficient petition requesting the application of a petition and  
8 remonstrance process has been filed as set forth in section 3.1 of this  
9 chapter, a political subdivision may not impose property taxes to pay  
10 debt service on bonds or lease rentals on a lease for a controlled project  
11 without completing the following procedures:

12 (1) The proper officers of the political subdivision shall give  
13 notice of the applicability of the petition and remonstrance  
14 process by:

15 (A) publication in accordance with IC 5-3-1; and

16 (B) first class mail to the circuit court clerk. ~~and to the~~  
17 ~~organizations described in section 3.1(b)(1) of this chapter.~~

18 A notice under this subdivision must include a statement that any  
19 owners of property within the political subdivision or registered  
20 voters residing within the political subdivision who want to  
21 petition in favor of or remonstrate against the proposed debt  
22 service or lease payments must file petitions and remonstrances  
23 in compliance with subdivisions (2) through (4) not earlier than  
24 thirty (30) days or later than sixty (60) days after publication in  
25 accordance with IC 5-3-1.

26 (2) Not earlier than thirty (30) days or later than sixty (60) days  
27 after the notice under subdivision (1) is given:

28 (A) petitions (described in subdivision (3)) in favor of the  
29 bonds or lease; and

30 (B) remonstrances (described in subdivision (3)) against the  
31 bonds or lease;

32 may be filed by an owner or owners of property within the  
33 political subdivision or a registered voter residing within the  
34 political subdivision. Each signature on a petition must be dated,  
35 and the date of signature may not be before the date on which the  
36 petition and remonstrance forms may be issued under subdivision  
37 (3). A petition described in clause (A) or a remonstrance  
38 described in clause (B) must be verified in compliance with  
39 subdivision (4) before the petition or remonstrance is filed with  
40 the county voter registration office under subdivision (4).

41 (3) The state board of accounts shall design and, upon request by  
42 the county voter registration office, deliver to the county voter



1 registration office or the county voter registration office's  
 2 designated printer the petition and remonstrance forms to be used  
 3 solely in the petition and remonstrance process described in this  
 4 section. The county voter registration office shall issue to an  
 5 owner or owners of property within the political subdivision or a  
 6 registered voter residing within the political subdivision the  
 7 number of petition or remonstrance forms requested by the owner  
 8 or owners or the registered voter. Each form must be  
 9 accompanied by instructions detailing the requirements that:

10 (A) the carrier and signers must be owners of property or  
 11 registered voters;

12 (B) the carrier must be a signatory on at least one (1) petition;

13 (C) after the signatures have been collected, the carrier must  
 14 swear or affirm before a notary public that the carrier  
 15 witnessed each signature;

16 (D) govern the closing date for the petition and remonstrance  
 17 period; and

18 (E) apply to the carrier under section 10 of this chapter.

19 Persons requesting forms may be required to identify themselves  
 20 as owners of property or registered voters and may be allowed to  
 21 pick up additional copies to distribute to other owners of property  
 22 or registered voters. Each person signing a petition or  
 23 remonstrance must indicate whether the person is signing the  
 24 petition or remonstrance as a registered voter within the political  
 25 subdivision or is signing the petition or remonstrance as the  
 26 owner of property within the political subdivision. A person who  
 27 signs a petition or remonstrance as a registered voter must  
 28 indicate the address at which the person is registered to vote. A  
 29 person who signs a petition or remonstrance as an owner of  
 30 property must indicate the address of the property owned by the  
 31 person in the political subdivision. The county voter registration  
 32 office may not issue a petition or remonstrance form earlier than  
 33 twenty-nine (29) days after the notice is given under subdivision  
 34 (1). The county voter registration office shall certify the date of  
 35 issuance on each petition or remonstrance form that is distributed  
 36 under this subdivision.

37 (4) The petitions and remonstrances must be verified in the  
 38 manner prescribed by the state board of accounts and filed with  
 39 the county voter registration office within the sixty (60) day  
 40 period described in subdivision (2) in the manner set forth in  
 41 section 3.1 of this chapter relating to requests for a petition and  
 42 remonstrance process.



(5) The county voter registration office shall determine whether each person who signed the petition or remonstrance is a registered voter. The county voter registration office shall not more than fifteen (15) business days after receiving a petition or remonstrance forward a copy of the petition or remonstrance to the county auditor. Not more than ten (10) business days after receiving the copy of the petition or remonstrance, the county auditor shall provide to the county voter registration office a statement verifying:

(A) whether a person who signed the petition or remonstrance as a registered voter but is not a registered voter, as determined by the county voter registration office, is the owner of property in the political subdivision; and

(B) whether a person who signed the petition or remonstrance as an owner of property within the political subdivision does in fact own property within the political subdivision.

(6) The county voter registration office shall not more than ten (10) business days after receiving the statement from the county auditor under subdivision (5) make the final determination of:

(A) the number of registered voters in the political subdivision that signed a petition and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a petition; and

(B) the number of registered voters in the political subdivision that signed a remonstrance and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a remonstrance.

Whenever the name of an individual who signs a petition or remonstrance as a registered voter contains a minor variation from the name of the registered voter as set forth in the records of the county voter registration office, the signature is presumed to be valid, and there is a presumption that the individual is entitled to sign the petition or remonstrance under this section. Except as otherwise provided in this chapter, in determining whether an individual is a registered voter, the county voter registration office shall apply the requirements and procedures used under IC 3 to determine whether a person is a registered voter for purposes of voting in an election governed by IC 3. However, an individual is not required to comply with the provisions concerning providing proof of identification to be considered a registered voter for purposes of this chapter. A person is entitled to sign a petition or



1 remonstrance only one (1) time in a particular petition and  
 2 remonstrance process under this chapter, regardless of whether  
 3 the person owns more than one (1) parcel of real property, mobile  
 4 home assessed as personal property, or manufactured home  
 5 assessed as personal property or a combination of those types of  
 6 property within the subdivision and regardless of whether the  
 7 person is both a registered voter in the political subdivision and  
 8 the owner of property within the political subdivision.  
 9 Notwithstanding any other provision of this section, if a petition  
 10 or remonstrance is presented to the county voter registration  
 11 office within forty-five (45) days before an election, the county  
 12 voter registration office may defer acting on the petition or  
 13 remonstrance, and the time requirements under this section for  
 14 action by the county voter registration office do not begin to run  
 15 until five (5) days after the date of the election.

16 (7) The county voter registration office must file a certificate and  
 17 the petition or remonstrance with the body of the political  
 18 subdivision charged with issuing bonds or entering into leases  
 19 within thirty-five (35) business days of the filing of a petition or  
 20 remonstrance under subdivision (4), whichever applies,  
 21 containing ten thousand (10,000) signatures or less. The county  
 22 voter registration office may take an additional five (5) days to  
 23 review and certify the petition or remonstrance for each additional  
 24 five thousand (5,000) signatures up to a maximum of sixty (60)  
 25 days. The certificate must state the number of petitioners and  
 26 remonstrators that are owners of property within the political  
 27 subdivision and the number of petitioners who are registered  
 28 voters residing within the political subdivision.

29 (8) If a greater number of persons who are either owners of  
 30 property within the political subdivision or registered voters  
 31 residing within the political subdivision sign a remonstrance than  
 32 the number that signed a petition, the bonds petitioned for may  
 33 not be issued or the lease petitioned for may not be entered into.  
 34 The proper officers of the political subdivision may not make a  
 35 preliminary determination to issue bonds or enter into a lease for  
 36 the controlled project defeated by the petition and remonstrance  
 37 process under this section or any other controlled project that is  
 38 not substantially different within one (1) year after the date of the  
 39 county voter registration office's certificate under subdivision (7).  
 40 Withdrawal of a petition carries the same consequences as a  
 41 defeat of the petition.

42 (9) After a political subdivision has gone through the petition and



1 remonstrance process set forth in this section, the political  
 2 subdivision is not required to follow any other remonstrance or  
 3 objection procedures under any other law (including section 5 of  
 4 this chapter) relating to bonds or leases designed to protect  
 5 owners of property within the political subdivision from the  
 6 imposition of property taxes to pay debt service or lease rentals.  
 7 However, the political subdivision must still receive the approval  
 8 of the department of local government finance if required by:

9 (A) IC 6-1.1-18.5-8; or

10 (B) IC 20-46-7-8, IC 20-46-7-9, and IC 20-46-7-10.

11 SECTION 6. IC 6-1.1-20-4.2, AS ADDED BY P.L.136-2024,  
 12 SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 13 JULY 1, 2026]: Sec. 4.2. (a) This section applies only if, with respect  
 14 to a particular controlled project that fulfilled the petition and  
 15 remonstrance process under sections 3.1 and 3.2 of this chapter, the  
 16 political subdivision subsequently changes the scope of the controlled  
 17 project beyond that initially presented.

18 (b) Notwithstanding any other provision in this chapter, if at least  
 19 ten (10) persons who are either owners of property within the political  
 20 subdivision or registered voters residing within the political  
 21 subdivision file a petition with the proper officers of the political  
 22 subdivision contending that the scope of a controlled project has  
 23 changed from how it was initially presented, the proper officers of the  
 24 political subdivision shall hold a public hearing to determine whether  
 25 any change in scope is significant enough to warrant a new petition and  
 26 remonstrance process. A petition under this subsection must be filed  
 27 not later than one (1) year after the controlled project received final  
 28 approval.

29 (c) Notwithstanding any other provision in this chapter, if it is  
 30 determined at the hearing described in subsection (b) that the political  
 31 subdivision has subsequently changed the scope of a controlled project  
 32 beyond that initially presented as described in subsection (a), the  
 33 political subdivision must complete the following procedures under this  
 34 section:

35 (1) The proper officers of the political subdivision shall give  
 36 notice of the applicability of the petition and remonstrance  
 37 process by:

38 (A) publication in accordance with IC 5-3-1; and

39 (B) first class mail to the circuit court clerk. ~~and to the~~  
 40 ~~organizations described in section 3.1(b)(1) of this chapter.~~

41 A notice under this subdivision must include a statement that any  
 42 owners of property within the political subdivision or registered



1 voters residing within the political subdivision who want to  
 2 petition in favor of or remonstrate against the proposed debt  
 3 service or lease payments must file petitions and remonstrances  
 4 in compliance with subdivisions (2) through (4) not earlier than  
 5 thirty (30) days or later than sixty (60) days after publication in  
 6 accordance with IC 5-3-1.

7 (2) Not earlier than thirty (30) days or later than sixty (60) days  
 8 after the notice under subdivision (1) is given:

9 (A) petitions (described in subdivision (3)) in favor of the  
 10 bonds or lease; and

11 (B) remonstrances (described in subdivision (3)) against the  
 12 bonds or lease;

13 may be filed by an owner or owners of property within the  
 14 political subdivision or a registered voter residing within the  
 15 political subdivision. Each signature on a petition must be dated,  
 16 and the date of signature may not be before the date on which the  
 17 petition and remonstrance forms may be issued under subdivision  
 18 (3). A petition described in clause (A) or a remonstrance  
 19 described in clause (B) must be verified in compliance with  
 20 subdivision (4) before the petition or remonstrance is filed with  
 21 the county voter registration office under subdivision (4).

22 (3) The state board of accounts shall design and, upon request by  
 23 the county voter registration office, deliver to the county voter  
 24 registration office or the county voter registration office's  
 25 designated printer the petition and remonstrance forms to be used  
 26 solely in the petition and remonstrance process described in this  
 27 section. The county voter registration office shall issue to an  
 28 owner or owners of property within the political subdivision or a  
 29 registered voter residing within the political subdivision the  
 30 number of petition or remonstrance forms requested by the owner  
 31 or owners or the registered voter. Each form must be  
 32 accompanied by instructions detailing the requirements that:

33 (A) the carrier and signers must be owners of property or  
 34 registered voters;

35 (B) the carrier must be a signatory on at least one (1) petition;

36 (C) after the signatures have been collected, the carrier must  
 37 swear or affirm before a notary public that the carrier  
 38 witnessed each signature;

39 (D) govern the closing date for the petition and remonstrance  
 40 period; and

41 (E) apply to the carrier under section 10 of this chapter.

42 Persons requesting forms may be required to identify themselves



as owners of property or registered voters and may be allowed to pick up additional copies to distribute to other owners of property or registered voters. Each person signing a petition or remonstrance must indicate whether the person is signing the petition or remonstrance as a registered voter within the political subdivision or is signing the petition or remonstrance as the owner of property within the political subdivision. A person who signs a petition or remonstrance as a registered voter must indicate the address at which the person is registered to vote. A person who signs a petition or remonstrance as an owner of property must indicate the address of the property owned by the person in the political subdivision. The county voter registration office may not issue a petition or remonstrance form earlier than twenty-nine (29) days after the notice is given under subdivision (1). The county voter registration office shall certify the date of issuance on each petition or remonstrance form that is distributed under this subdivision.

(4) The petitions and remonstrances must be verified in the manner prescribed by the state board of accounts and filed with the county voter registration office within the sixty (60) day period described in subdivision (2) in the manner set forth in section 3.1 of this chapter relating to requests for a petition and remonstrance process.

(5) The county voter registration office shall determine whether each person who signed the petition or remonstrance is a registered voter. The county voter registration office shall not more than fifteen (15) business days after receiving a petition or remonstrance forward a copy of the petition or remonstrance to the county auditor. Not more than ten (10) business days after receiving the copy of the petition or remonstrance, the county auditor shall provide to the county voter registration office a statement verifying:

(A) whether a person who signed the petition or remonstrance as a registered voter but is not a registered voter, as determined by the county voter registration office, is the owner of property in the political subdivision; and

(B) whether a person who signed the petition or remonstrance as an owner of property within the political subdivision does in fact own property within the political subdivision.

(6) The county voter registration office shall not more than ten (10) business days after receiving the statement from the county auditor under subdivision (5) make the final determination of:





(A) the number of registered voters in the political subdivision that signed a petition and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a petition; and

(B) the number of registered voters in the political subdivision that signed a remonstrance and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a remonstrance.

Whenever the name of an individual who signs a petition or remonstrance as a registered voter contains a minor variation from the name of the registered voter as set forth in the records of the county voter registration office, the signature is presumed to be valid, and there is a presumption that the individual is entitled to sign the petition or remonstrance under this section. Except as otherwise provided in this chapter, in determining whether an individual is a registered voter, the county voter registration office shall apply the requirements and procedures used under IC 3 to determine whether a person is a registered voter for purposes of voting in an election governed by IC 3. However, an individual is not required to comply with the provisions concerning providing proof of identification to be considered a registered voter for purposes of this chapter. A person is entitled to sign a petition or remonstrance only one (1) time in a particular petition and remonstrance process under this chapter, regardless of whether the person owns more than one (1) parcel of real property, mobile home assessed as personal property, or manufactured home assessed as personal property or a combination of those types of property within the subdivision and regardless of whether the person is both a registered voter in the political subdivision and the owner of property within the political subdivision. Notwithstanding any other provision of this section, if a petition or remonstrance is presented to the county voter registration office within forty-five (45) days before an election, the county voter registration office may defer acting on the petition or remonstrance, and the time requirements under this section for action by the county voter registration office do not begin to run until five (5) days after the date of the election.

(7) The county voter registration office must file a certificate and the petition or remonstrance with the body of the political subdivision within thirty-five (35) business days of the filing of a petition or remonstrance under subdivision (4), whichever



1 applies, containing ten thousand (10,000) signatures or less. The  
 2 county voter registration office may take an additional five (5)  
 3 days to review and certify the petition or remonstrance for each  
 4 additional five thousand (5,000) signatures up to a maximum of  
 5 sixty (60) days. The certificate must state the number of  
 6 petitioners and remonstrators that are owners of property within  
 7 the political subdivision and the number of petitioners who are  
 8 registered voters residing within the political subdivision.

9 (8) If a greater number of persons who are either owners of  
 10 property within the political subdivision or registered voters  
 11 residing within the political subdivision sign a remonstrance than  
 12 the number that signed a petition, the political subdivision may  
 13 not proceed with the changed scope of the controlled project. In  
 14 that case, the political subdivision may either:

15 (A) proceed with the controlled project as it was initially  
 16 presented; or

17 (B) terminate the controlled project as it was initially  
 18 presented and initiate procedures for the controlled project that  
 19 reflects the change in scope.

20 Withdrawal of a petition carries the same consequences as a  
 21 defeat of the petition.

22 (9) After a political subdivision has gone through the petition and  
 23 remonstrance process set forth in this section, the political  
 24 subdivision is not required to follow any other remonstrance or  
 25 objection procedures under any other law (including section 5 of  
 26 this chapter) relating to bonds or leases designed to protect  
 27 owners of property within the political subdivision from the  
 28 imposition of property taxes to pay debt service or lease rentals.  
 29 However, the political subdivision must still receive the approval  
 30 of the department of local government finance if required by:

31 (A) IC 6-1.1-18.5-8; or

32 (B) IC 20-46-7-8, IC 20-46-7-9, and IC 20-46-7-10.

33 SECTION 7. IC 6-2.5-5-38.1, AS AMENDED BY P.L.118-2024,  
 34 SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 35 JULY 1, 2026]: Sec. 38.1. (a) As used in this section, "service center"  
 36 means an educational service center established under ~~IC 20-20-1.~~  
 37 **IC 20-20.5-1.**

38 (b) As used in this section, "school" means a public or private  
 39 elementary or secondary school containing students in any grade from  
 40 grade 1 through grade 12.

41 (c) As used in this chapter, "qualified computer equipment" means  
 42 computer equipment, including hardware and software, specified by the



1 state board of education under IC 6-3.1-15-10 (as in effect on January  
2 1, 2012).

3 (d) Sales of qualified computer equipment are exempt from the state  
4 gross retail tax, if:

5 (1) the seller is a service center or school;

6 (2) the purchaser is a parent or guardian of a student who is  
7 enrolled in a school; and

8 (3) the qualified computer equipment is sold to the parent or  
9 guardian under IC 6-3.1-15-12 (as in effect on January 1, 2012).

10 SECTION 8. IC 9-18.5-15-5, AS AMENDED BY P.L.43-2021,  
11 SECTION 33, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
12 JULY 1, 2026]: Sec. 5. The fees collected under this chapter shall be  
13 distributed as follows:

14 (1) Twenty-five percent (25%) to the secretary of education to  
15 administer the school intervention and career counseling  
16 development program and fund under ~~IC 20-20-17~~ **IC 20-20.5-7**.

17 (2) Seventy-five percent (75%) as provided under section 6 of this  
18 chapter.

19 SECTION 9. IC 10-19-2-3 IS ADDED TO THE INDIANA CODE  
20 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY  
21 1, 2026]: Sec. 3. **(a) The definitions in IC 20-18-2 apply to this**  
22 **section.**

23 **(b) The department, in collaboration with the state police**  
24 **department, shall:**

25 **(1) identify a set of best practices; and**

26 **(2) develop a set of educational materials;**

27 **regarding recommendations for the safe possession and storage of**  
28 **a firearm in a home with a child.**

29 **(c) The best practices and educational materials described in**  
30 **subsection (b) must include information on:**

31 **(1) firearm access;**

32 **(2) firearm handling;**

33 **(3) firearm storage;**

34 **(4) ammunition access; and**

35 **(5) ammunition storage.**

36 **(d) After December 31, 2026, the department shall provide the**  
37 **best practices and educational materials described in subsection (b)**  
38 **to public schools, charter schools, and state accredited nonpublic**  
39 **schools.**

40 **(e) The department shall maintain a public website that contains**  
41 **the best practices and educational materials described in**  
42 **subsection (b). The department shall publicize the website and**



1 **promote the best practices and educational materials to all**  
 2 **elementary and high schools operating in the state.**

3 SECTION 10. IC 10-21-1-2, AS AMENDED BY THE  
 4 TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL  
 5 ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 6 JULY 1, 2026]: Sec. 2. (a) The Indiana secured school fund is  
 7 established to provide:

8 (1) matching grants to school corporations, charter schools, and  
 9 accredited nonpublic schools, where the matching grants may be  
 10 used to:

11 (A) employ a school resource officer, employ a law  
 12 enforcement officer, or enter into a contract or a memorandum  
 13 of understanding with a:

- 14 (i) local law enforcement agency;
- 15 (ii) private entity; or
- 16 (iii) nonprofit corporation;

17 to employ a school resource officer or a law enforcement  
 18 officer;

19 (B) conduct:

- 20 (i) a site vulnerability assessment of the buildings within a
- 21 school corporation or the buildings that are operated by a
- 22 charter school or accredited nonpublic school; or
- 23 (ii) critical incident digital mapping of the buildings within
- 24 a school corporation or the buildings that are operated by a
- 25 charter school or accredited nonpublic school;

26 (C) purchase equipment, hardware, materials, and technology  
 27 to:

- 28 (i) restrict access to school property and classrooms;
- 29 (ii) assist with visitor management on school property;
- 30 (iii) expedite notification of first responders;
- 31 (iv) expedite access to school property for first responders;
- 32 (v) provide school staff with information about the open or
- 33 closed status of interior and exterior doors;
- 34 (vi) detect fire, chemical, visual, or audible threats;
- 35 (vii) enhance emergency communications inside the
- 36 building; or
- 37 (viii) assist with emergency medical response on school
- 38 property;

39 (D) implement a student and parent support services plan; ~~as~~  
 40 ~~described in IC 20-34-9;~~

41 (E) purchase or provide training for a canine trained to detect  
 42 drugs and illegal substances, explosives, or firearms, or to



otherwise provide protection for students and school employees and the canine shall:

(i) be primarily assigned to a school corporation, charter school, or accredited nonpublic school;

(ii) be primarily assigned to a school resource officer or law enforcement officer described in clause (A) who has received appropriate training for handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees, including training regarding handling a canine in a school setting; and

(iii) receive continuous training as appropriate;

(F) provide funding for school employees to receive training, including expenses for per diem, travel, and lodging, related to:

(i) site vulnerability assessments;

(ii) mental health or behavioral health threat assessments;

(iii) multi-disciplinary threat assessment teams; or

(iv) emergency preparedness or response activities;

(G) provide funding for school resource officers or law enforcement officers described in clause (A) to receive training, including expenses for per diem, travel, and lodging, related to handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees;

(H) purchase student safety management technology;

(I) design and construct additions or renovations on school property if the primary purpose of the construction project is to enhance the physical security of the school building; **or**

(J) implement a bullying prevention program; **or and**

~~(K) develop, implement, and carry out a Stop the Bleed program required by IC 20-34-3-24, including for the purchase of bleeding control kits; and~~

(2) one (1) time grants to enable school corporations, charter schools, and accredited nonpublic schools with the sheriff for the county in which the school corporation, charter school, or accredited nonpublic school is located, to provide the initial set up costs for an active event warning system.

(b) A school corporation or charter school may use money received under a matching grant for a purpose listed in subsection (a) to provide a response to a threat in a manner that the school corporation or charter school sees fit, including firearms training or other self-defense



- 1 training.
- 2 (c) The fund shall be administered by the department of homeland
- 3 security.
- 4 (d) The fund consists of:
- 5 (1) appropriations from the general assembly;
- 6 (2) federal grants;
- 7 (3) amounts deposited from any other public or private source;
- 8 and
- 9 (4) amounts deposited under IC 33-37-9-4.
- 10 (e) The expenses of administering the fund shall be paid from
- 11 money in the fund.
- 12 (f) The treasurer of state shall invest the money in the fund not
- 13 currently needed to meet the obligations of the fund in the same
- 14 manner as other public money may be invested. Interest that accrues
- 15 from these investments shall be deposited in the fund.
- 16 (g) Money in the fund at the end of a state fiscal year does not revert
- 17 to the state general fund.
- 18 SECTION 11. IC 10-21-1-4, AS AMENDED BY P.L.150-2023,
- 19 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 20 JULY 1, 2026]: Sec. 4. (a) The board may award a matching grant to
- 21 enable a school corporation, charter school, or accredited nonpublic
- 22 school (or a coalition of schools applying jointly) to:
- 23 (1) employ a school resource officer, employ a law enforcement
- 24 officer, or enter into a contract or memorandum of understanding
- 25 with a:
- 26 (A) local law enforcement agency;
- 27 (B) private entity; or
- 28 (C) nonprofit corporation;
- 29 to employ a school resource officer or a law enforcement officer;
- 30 (2) conduct a site vulnerability assessment of the buildings within
- 31 a school corporation or the buildings that are operated by a
- 32 charter school or accredited nonpublic school;
- 33 (3) conduct critical incident digital mapping of the buildings
- 34 within a school corporation or the buildings that are operated by
- 35 a charter school or accredited nonpublic school;
- 36 (4) purchase equipment, hardware, materials, and technology to:
- 37 (A) restrict access to school property and classrooms;
- 38 (B) assist with visitor management on school property;
- 39 (C) expedite notification of first responders;
- 40 (D) expedite access to school property for first responders;
- 41 (E) provide staff with information about open or closed status
- 42 of interior and exterior doors;



- 1 (F) detect fire, chemical, visual, or audible threats;
- 2 (G) enhance emergency communications inside the school
- 3 building; ~~or~~
- 4 (H) assist with emergency medical response on school
- 5 property; **or**
- 6 **(I) monitor areas of school property used for student**
- 7 **seclusion (as defined in IC 20-20.5-13-9) or time-out (as**
- 8 **defined in IC 20-20.5-13-10) with audiovisual devices;**
- 9 (5) implement a student and parent support services plan; ~~in the~~
- 10 ~~manner set forth in IC 20-34-9;~~
- 11 (6) purchase or provide training for a canine trained to detect
- 12 drugs and illegal substances, explosives, or firearms, or to
- 13 otherwise provide protection for students and school employees
- 14 and the canine shall:
- 15 (A) be primarily assigned to a school corporation, charter
- 16 school, or accredited nonpublic school;
- 17 (B) be primarily assigned to a school resource officer or law
- 18 enforcement officer described in subdivision (1)(A) who has
- 19 received appropriate training for handling a canine trained to
- 20 detect drugs and illegal substances, explosives, or firearms, or
- 21 to otherwise provide protection for students and school
- 22 employees, including training regarding handling a canine in
- 23 a school setting; and
- 24 (C) receive continuous training as appropriate;
- 25 (7) provide funding for:
- 26 (A) school employees to receive training, including expenses
- 27 for per diem, travel, and lodging, related to:
- 28 (i) site vulnerability assessments;
- 29 (ii) mental health or behavioral health threat assessments;
- 30 (iii) multi-disciplinary threat assessment teams; or
- 31 (iv) emergency preparedness or response activities; or
- 32 (B) school resource officers or law enforcement officers
- 33 described in subdivision (1)(A) to receive training, including
- 34 expenses for per diem, travel, and lodging, related to handling
- 35 a canine trained to detect drugs and illegal substances,
- 36 explosives, or firearms, or to otherwise provide protection for
- 37 students and school employees;
- 38 (8) design and construct additions or renovations on school
- 39 property if the primary purpose of the construction project is to
- 40 enhance the physical security of the school building;
- 41 (9) provide one (1) time grants to enable school corporations,
- 42 charter schools, and accredited nonpublic schools with the sheriff



for the county in which the school corporation, charter school, or accredited nonpublic school is located to provide the initial set up costs for an active event warning system;

(10) implement a bullying prevention program; or

(11) purchase student safety management technology;

in accordance with section 2(a) of this chapter.

(b) A matching grant awarded to a school corporation, charter school, or accredited nonpublic school (or a coalition of schools applying jointly) may not exceed the lesser of the following during a two (2) year period beginning on or after May 1, 2013:

(1) The total cost of the program established by the school corporation, charter school, or accredited nonpublic school (or the coalition of schools applying jointly).

(2) Except as provided in subsection (d), the following amounts:

(A) Thirty-five thousand dollars (\$35,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of at least one (1) and less than one thousand one (1,001) students; and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(B) Fifty thousand dollars (\$50,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of more than one thousand (1,000) and less than five thousand one (5,001) students; and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(C) Seventy-five thousand dollars (\$75,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of more than five thousand (5,000) and less than fifteen thousand one (15,001) students; and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(D) One hundred thousand dollars (\$100,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of more than fifteen thousand (15,000); and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(E) One hundred thousand dollars (\$100,000) per year, in the





1 case of a coalition of schools applying jointly.

2 (c) Except as provided in subsection (d), the match requirement for  
3 a grant under this chapter is based on the ADM for the school  
4 corporation, charter school, or accredited nonpublic school (or coalition  
5 of schools applying jointly) that is the subject of the grant as follows:

6 (1) For a school corporation, charter school, or accredited  
7 nonpublic school with an ADM of less than five hundred one  
8 (501) students, the grant match must be twenty-five percent  
9 (25%) of the grant amount described in subsection (b).

10 (2) For a school corporation, charter school, or accredited  
11 nonpublic school with an ADM of more than five hundred (500)  
12 and less than one thousand one (1,001) students, the grant match  
13 must be fifty percent (50%) of the grant amount described in  
14 subsection (b).

15 (3) For a school corporation, charter school, or accredited  
16 nonpublic school with an ADM of more than one thousand  
17 (1,000) students or a coalition of schools applying jointly, the  
18 grant match must be one hundred percent (100%) of the grant  
19 amount described in subsection (b).

20 (d) A school corporation, charter school, or accredited nonpublic  
21 school may be eligible to receive a grant of up to:

22 (1) one hundred thousand dollars (\$100,000) if:

23 (A) the school corporation, charter school, or accredited  
24 nonpublic school receives a grant match of one hundred  
25 percent (100%) of the requested grant amount; and

26 (B) the board approves the grant request; or

27 (2) for a school corporation, charter school, or accredited  
28 nonpublic school described in subsection (c)(1) or (c)(2), a grant  
29 of up to fifty thousand dollars (\$50,000) if:

30 (A) the school corporation, charter school, or accredited  
31 nonpublic school receives a grant match of fifty percent (50%)  
32 of the requested grant amount; and

33 (B) the board approves the grant request.

34 (e) A school corporation, charter school, or accredited nonpublic  
35 school may receive only one (1) matching grant under this section each  
36 year.

37 (f) The board may not award a grant to a school corporation, charter  
38 school, or accredited nonpublic school under this section unless the  
39 school corporation, charter school, or accredited nonpublic school is in  
40 a county that has a county school safety commission, as described in  
41 section 12 of this chapter.

42 SECTION 12. IC 12-14-2-17, AS AMENDED BY P.L.161-2007,



SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. (a) To retain eligibility for TANF assistance under this article, a recipient of TANF assistance and a dependent child who is a recipient of TANF assistance must attend school if all of the following apply:

(1) The recipient or the dependent child meets the compulsory attendance requirements under IC 20-33-2.

(2) The recipient or the dependent child has not graduated from a high school or has not obtained a high school equivalency certificate (as defined in IC 12-14-5-2).

(3) The recipient or the dependent child is not excused from attending school under IC 20-33-2-14 through ~~IC 20-33-2-17~~. **IC 20-33-2-15.**

(4) The recipient or the dependent child does not have good cause for failing to attend school, as determined by rules adopted by the director under IC 4-22-2.

(5) If the recipient or the dependent child is the mother of a child, a physician has not determined that the recipient or the dependent child should delay returning to school after giving birth.

(b) A recipient or the dependent child of a recipient described in subsection (a) who has more than three (3) unexcused absences during a school year is subject to revocation or suspension of assistance as provided in section 18 of this chapter.

(c) The director, in consultation with the department of education, shall adopt rules under IC 4-22-2 to establish a definition for the term "unexcused absence".

SECTION 13. IC 12-15-1-16, AS AMENDED BY P.L.35-2022, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) Each:

(1) school corporation; or

(2) school corporation's employed, licensed, or qualified provider; must enroll in a program to use federal funds under the Medicaid program (IC 12-15-1 et seq.) with the intent to share the costs of services that are reimbursable under the Medicaid program and that are provided to eligible children by the school corporation. However, a school corporation or a school corporation's employed, licensed, or qualified provider is not required to file any claims or participate in the program developed under this section.

(b) The secretary and the department of education may develop policies and adopt rules to administer the program developed under this section.

(c) The federal reimbursement for services provided under this



1 section must be distributed to the school corporation. The state shall  
 2 retain the nonfederal share of the reimbursement for Medicaid services  
 3 provided under this section.

4 (d) The office of Medicaid policy and planning, with the approval  
 5 of the budget agency and after consultation with the department of  
 6 education, shall establish procedures for the timely distribution of  
 7 federal reimbursement due to the school corporations. The distribution  
 8 procedures may provide for offsetting reductions to distributions of  
 9 state tuition support or other state funds to school corporations in the  
 10 amount of the nonfederal reimbursements required to be retained by the  
 11 state under subsection (c).

12 (e) The office may apply to the United States Department of Health  
 13 and Human Services for a state plan amendment to allow school  
 14 corporations to seek Medicaid reimbursement for medically necessary,  
 15 school based Medicaid covered services that are provided under federal  
 16 or state mandates. If the state plan amendment is approved and  
 17 implemented, services may be provided by a qualified provider in a  
 18 school setting to Medicaid enrolled students. Subject to subsection (f),  
 19 the services may be pursuant to any of the following:

20 (1) An individualized education program (as defined in  
 21 IC 20-18-2-9).

22 (2) A plan developed under Section 504 of the federal  
 23 Rehabilitation Act, 29 U.S.C. 794.

24 (3) A behavioral intervention plan (as defined in ~~IC 20-20-40-1~~;  
 25 **IC 20-20.5-13-1**).

26 (4) A service plan developed under 511 IAC 7-34.

27 (5) An individualized health care plan.

28 The office may, in consultation with the department of education,  
 29 develop any necessary state plan amendment under this subsection. The  
 30 office may apply for any state plan amendment necessary to implement  
 31 this subsection.

32 (f) Services under subsection (e) may not include the following:

33 (1) An abortion.

34 (2) Counseling for abortion procedures.

35 (3) Referrals for abortion services.

36 (4) Abortifacients.

37 (5) Contraceptives.

38 (g) If the state plan amendment described in subsection (e) is  
 39 approved and implemented, the medically necessary, school based  
 40 Medicaid covered services described in subsection (e):

41 (1) may only be performed by a qualified provider;

42 (2) must be within the qualified provider's scope of practice; and



(3) must be provided in accordance with this article and administrative rules concerning the Medicaid program.

SECTION 14. IC 20-17 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Effect of Recodification of Title 20).

SECTION 15. IC 20-18-2-12, AS ADDED BY P.L.1-2005, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) "Nonpublic school" means a school that is not:

(1) maintained by a school corporation; **or**

**(2) a charter school.**

(b) The term includes a private school or parochial school.

SECTION 16. IC 20-18-2-16, AS AMENDED BY P.L.211-2019, SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) "School corporation", for purposes of this title (except ~~IC 20-20-33~~, **IC 20-20.5-9**, IC 20-26-1 through IC 20-26-5, IC 20-26-7, IC 20-26-7.1, IC 20-28-11.5, IC 20-30-8, IC 20-30-16, IC 20-43, and IC 20-50), means a public school corporation established by Indiana law. The term includes a:

- (1) school city;
- (2) school town;
- (3) consolidated school corporation;
- (4) metropolitan school district;
- (5) township school corporation;
- (6) county school corporation;
- (7) united school corporation; or
- (8) community school corporation.

(b) "School corporation", for purposes of IC 20-26-1 through IC 20-26-5, IC 20-26-7, and IC 20-26-7.1, has the meaning set forth in IC 20-26-2-4.

(c) "School corporation", for purposes of ~~IC 20-20-33~~, **IC 20-20.5-9**, IC 20-26.5, IC 20-30-8, and IC 20-50, includes a charter school (as defined in IC 20-24-1-4).

(d) "School corporation", for purposes of IC 20-43, has the meaning set forth in IC 20-43-1-23.

(e) "School corporation", for purposes of IC 20-28-11.5, has the meaning set forth in IC 20-28-11.5-3.

(f) "School corporation", for purposes of IC 20-35, has the meaning set forth in IC 20-35-1-6.

(g) "School corporation", for purposes of IC 20-30-16, has the meaning set forth in IC 20-30-16-4.

SECTION 17. IC 20-18-2-18, AS AMENDED BY P.L.127-2016, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 18. (a) Except as provided in subsection (b);  
 "Secondary school" means a high school.

(b) For purposes of IC 20-28-9-25, "secondary school" has the  
 meaning set forth in IC 20-28-9-25.

SECTION 18. IC 20-19-2-2.2, AS AMENDED BY P.L.213-2025,  
 SECTION 160, IS AMENDED TO READ AS FOLLOWS  
 [EFFECTIVE JULY 1, 2026]: Sec. 2.2. (a) The state board consists of  
 the following members:

(1) The secretary of education.

(2) Eight (8) members appointed by the governor. The following  
 provisions apply to members of the state board appointed under  
 this subdivision:

(A) At least six (6) members appointed under this subdivision  
 must have professional experience in the field of education as  
 provided in subsection (b).

(B) Members shall be appointed from different parts of  
 Indiana with not more than one (1) member being appointed  
 from a particular congressional district.

(C) Not more than five (5) members of the state board may be  
 appointed from the membership of any one (1) political party.

(D) Subject to subsection (h), At least one (1) member shall be  
 a practicing licensed special education teacher or special  
 education director at the time the member is appointed.

(3) One (1) member, who is not a member of the general  
 assembly, appointed by the speaker of the house of  
 representatives.

(4) One (1) member, who is not a member of the general  
 assembly, appointed by the president pro tempore of the senate.

(b) For purposes of subsection (a), an individual is considered to  
 have professional experience in the field of education if the individual  
 has teaching or leadership experience at a postsecondary educational  
 institution or is currently employed as, or is retired from a position as:

(1) a teacher;

(2) a principal;

(3) an assistant superintendent; or

(4) a superintendent.

(c) A quorum consists of six (6) members of the state board. An  
 action of the state board is not official unless the action is authorized  
 by at least six (6) members.

(d) The members of the state board shall elect a chairperson and  
 vice chairperson annually from the members of the state board. The  
 vice chairperson shall act as chairperson in the absence of the



chairperson.

(e) Except as otherwise provided in subsection (f), each member appointed under subsection (a)(2) through (a)(4) serves a four (4) year term. The term begins on July 1.

(f) A member appointed under subsection (a)(2) through (a)(4) may be removed from the state board by the member's appointing authority for just cause. Vacancies in the appointments to the state board shall be filled by the appointing authority. A member appointed under this subsection serves for the remainder of the unexpired term.

(g) The state board shall meet at a minimum at least one (1) time each year. The state board shall establish the date of the next meeting during a meeting of the state board. In addition to the annual meeting required under this subsection, the state board shall meet at the call of the chairperson.

~~(h) This subsection expires July 1, 2024. The governor shall appoint a member who has the qualifications described in subsection (a)(2)(D) for the first appointment made by the governor to fill a vacancy on the state board after March 31, 2020.~~

SECTION 19. IC 20-19-2-2.3 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 2.3: (a) After May 31, 2015, a reference to the state board in a statute, rule, or other document is considered a reference to the state board established by section 2.1 of this chapter.~~

~~(b) After May 31, 2015, a rule adopted by the state board established by section 2 of this chapter (expired June 1, 2015) is considered a rule adopted by the state board established by section 2.1 of this chapter. However, a rule concerning driver education is considered a rule of the bureau of motor vehicles.~~

~~(c) On June 1, 2015, the property and obligations of the state board established by section 2 of this chapter (expired June 1, 2015) are transferred to the state board established by section 2.1 of this chapter.~~

~~(d) An action taken by the state board established by section 2 of this chapter (expired June 1, 2015) before June 1, 2015, shall be treated after May 31, 2015, as if it were originally taken by the state board established by section 2.1 of this chapter.~~

SECTION 20. IC 20-19-2-14, AS AMENDED BY P.L.242-2017, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. The state board shall do the following:

- (1) Establish the educational goals of the state, developing standards and objectives for local school corporations.
- (2) Assess the attainment of the established goals.
- (3) Assure compliance with established standards and objectives.
- ~~(4) Coordinate with the commission for higher education~~



(~~IC 21-18-1~~) and the department of workforce development (~~IC 22-4.1-2~~) to develop entrepreneurship education programs for elementary and secondary education, higher education, and individuals in the work force.

(~~5~~) (4) Make recommendations to the governor and general assembly concerning the educational needs of the state, including financial needs.

(~~6~~) (5) Provide for reviews to ensure the validity and reliability of the statewide assessment program.

SECTION 21. IC 20-19-3-4, AS AMENDED BY P.L.269-2019, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The department shall:

- (1) perform the duties required by statute;
- (2) implement the policies and procedures established by the state board;
- (3) conduct analytical research to assist the state board in determining the state's educational policy;
- (4) compile statistics concerning the ethnicity, gender, and disability status of students in Indiana schools, including statistics for all information that the department receives from school corporations on enrollment, number of suspensions, and number of expulsions; and
- (5) provide technical assistance to school corporations.

(b) In compiling statistics by gender, ethnicity, and disability status under subsection (a)(4), the department shall also categorize suspensions and expulsions by cause as follows:

- (1) Alcohol.
- (2) Drugs.
- (3) Deadly weapons (other than firearms).
- (4) Handguns.
- (5) Rifles or shotguns.
- (6) Other firearms.
- (7) Tobacco.
- (8) Attendance.
- (9) Destruction of property.
- (10) Legal settlement. (~~under IC 20-33-8-17~~).
- (11) Fighting (incident does not rise to the level of battery).
- (12) A battery offense included in IC 35-42-2.
- (13) Intimidation (IC 35-45-2-1).
- (14) Verbal aggression or profanity.
- (15) Defiance.
- (16) Other.



(c) The department shall provide the state board any data, including fiscal data, as determined by the state board, in a reasonable time frame established by the state board after consultation with the department, necessary to conduct an audit or evaluation of any federal or state supported program principally engaged in the provision of education, including, but not limited to:

- (1) early childhood education;
- (2) elementary and secondary education;
- (3) postsecondary education;
- (4) special education;
- (5) job training;
- (6) career and technical education; and
- (7) adult education;

or for the enforcement of or compliance with federal legal requirements related to those education programs as determined by the state board. The state board and the department are considered state educational authorities within the meaning of the federal Family Educational Rights and Privacy Act (20 U.S.C. 1232g and 34 CFR Part 99) for the purpose of allowing the free exchange of information between the department and the state board.

(d) The department may, upon request by a new school, assign an identification number for the new school.

(e) The department shall develop guidelines necessary to implement this section.

SECTION 22. IC 20-19-3-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 8: (a) The department may not approve or disapprove plans and specifications for the construction, alteration, or repair of school buildings, except as necessary under the terms of a federal grant or a federal law:

(b) Notwithstanding subsection (a), the department shall establish a central clearinghouse for access by school corporations that may want to use a prototype design in the construction of school facilities. The department shall compile necessary publications and may establish a computer data base to distribute information on prototype designs to school corporations. Architects and engineers registered to practice in Indiana may submit plans and specifications for a prototype design to the clearinghouse. The plans and specifications may be accessed by any person. However, the following provisions apply to a prototype design submitted to the clearinghouse:

- (1) The original architect of record or engineer of record retains ownership of and liability for a prototype design.
- (2) A school corporation or other person may not use a prototype





design without the site-specific, written permission of the original architect of record or engineer of record.

(3) An architect's or engineer's liability under subdivision (1) is subject to the requirements of subdivision (2).

The state board may adopt rules under IC 4-22-2 to implement this subsection.

SECTION 23. IC 20-19-3-10, AS ADDED BY P.L.83-2010, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) The department, in collaboration with organizations that have expertise in dating violence, domestic violence, and sexual abuse, shall identify or develop:

(1) model dating violence educational materials; and

(2) a model for dating violence response policies and reporting.

~~Not later than July 1, 2011,~~ The department shall make the models developed or identified under this section available to assist schools with the implementation of dating violence education programs in grades 6 through 12 and dating violence response policies.

(b) The model dating violence policy identified or developed under subsection (a) may include the following topics:

(1) Warning signs of dating violence.

(2) The basic principles of dating violence prevention.

(3) Methods of parental education and outreach.

SECTION 24. IC 20-19-3-12, AS AMENDED BY P.L.25-2016, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) The department, in collaboration with the Indiana criminal justice institute, the department of child services, the center for evaluation and education policy at Indiana University, the state police department, and any organization that has expertise in providing criminal organization education, prevention, or intervention that the department determines to be appropriate, shall:

(1) identify or develop evidence based model educational materials on criminal organization activity; and

(2) develop and maintain a model policy to address criminal organizations and criminal organization activity in schools.

(b) ~~Not later than July 1, 2015,~~ The department shall make the model policy developed under subsection (a)(2) available to assist schools. ~~in the development and implementation of a criminal organization policy.~~

(c) The model educational materials on criminal organization activity identified or developed under subsection (a)(1) must include information:

(1) to educate students and parents on the extent to which



- 1 criminal organization activity exists;
- 2 (2) regarding the negative societal impact that criminal
- 3 organizations have on the community;
- 4 (3) on methods to discourage participation in criminal
- 5 organizations; and
- 6 (4) on methods of providing intervention to a child suspected of
- 7 participating in criminal organization activity.
- 8 (d) The model criminal organization policy developed under
- 9 subsection (a)(2) must include:
  - 10 (1) a statement prohibiting criminal organization activity in
  - 11 schools;
  - 12 (2) a statement prohibiting reprisal or retaliation against an
  - 13 individual who reports suspected criminal organization activity;
  - 14 (3) definitions of "criminal organization" as set forth in
  - 15 IC 35-45-9-1 and "criminal organization activity";
  - 16 (4) model procedures for:
    - 17 (A) reporting suspected criminal organization activity; and
    - 18 (B) the prompt investigation of suspected criminal
    - 19 organization activity;
  - 20 (5) information about the types of support services, including
  - 21 family support services, available for a student suspected of
  - 22 participating in criminal organization activity; and
  - 23 (6) recommendations concerning criminal organization
  - 24 prevention and intervention services and programs for students
  - 25 that maximize community participation and the use of federal
  - 26 funding.
- 27 SECTION 25. IC 20-19-3-23 IS REPEALED [EFFECTIVE JULY
- 28 1, 2026]. Sec. 23: (a) The department may adopt and provide to schools
- 29 an early warning system or systems that:
  - 30 (1) provide actionable data on students as early as elementary
  - 31 school;
  - 32 (2) provide metrics based on student-level data to assist in
  - 33 identifying potential learning loss at the student, school, and
  - 34 district level;
  - 35 (3) research proven predictive analytics for on time high school
  - 36 graduation using local data to determine threshold based
  - 37 indicators; and
  - 38 (4) may include the following:
    - 39 (A) Recommendations regarding an actionable intervention
    - 40 plan for each student who, based on graduation indicators and
    - 41 multitiered systems of support, is not on track to graduate on
    - 42 time or prepared for postsecondary success.



(B) Summative success data by each intervention plan used by each student, student group, and school.

(b) The department may, not later than August 1, 2021, annually select one (1) or more vendors to make available an early warning system or systems described in subsection (a). The department may require that the vendor or vendors provide to the department, at least twice annually, a summary report in the aggregate regarding:

(1) students who, based on graduation indicators, are not on track to graduate on time;

(2) the intervention plans implemented for the students described in subdivision (1) in attempting to ensure the students graduate on time; and

(3) whether the intervention plans described in subdivision (2) are, based on graduation indicators, successful in moving students to be on track to graduate on time and, if applicable, graduating on time for the purpose of evaluating the return on investment of intervention programs.

The information provided in subdivisions (2) and (3) may be disaggregated by grade level.

SECTION 26. IC 20-19-3-25, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 25. (a) The department shall establish an online adjunct teacher portal on the department's ~~Internet web site~~ website or incorporate into the teacher referral system developed under ~~IC 20-20-3~~ **IC 20-20.5-2** a functionality to allow:

(1) a school corporation to post a vacant adjunct teacher position; and

(2) an individual to:

(A) post a resume;

(B) post any other information requested by the school corporation through the portal or system; **and**

(C) make inquiries to the school corporation through the portal or system. ~~and~~

(~~D~~) view information relating to adjunct teachers employed by a particular school corporation reported to the department in accordance with IC 20-28-5-27(g).

(b) The department shall post the information received under IC 20-28-5-27(g) on the department's portal or teacher referral system described in subsection (a).

SECTION 27. IC 20-19-3-28 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 28. Not later than September 1 of each year, the



department shall do the following:

(1) Compile and prepare a report regarding the information reported by school corporations and charter schools to the department under IC 20-26-5-42.1.

(2) Submit the report to the legislative council in an electronic format under IC 5-14-6.

SECTION 28. IC 20-19-3-29 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 29: (a) Not later than July 1, 2024, the department may establish or license for use an online platform that:

(1) provides information and training on each of the subjects and content described in IC 20-28-3-5.5 and IC 20-28-5.5-1.5;

(2) is accessible by both teachers and students enrolled in a teacher preparation program; and

(3) upon successful completion of the training, provides written confirmation to a teacher or student described in subdivision (2) that the teacher or student successfully completed the training.

(b) Not later than July 1, 2025, the department may include the following information and training on the online platform described in subsection (a):

(1) 29 CFR 1910.1030 concerning bloodborne pathogens;

(2) 29 CFR 1910.147 concerning lock out/tag out;

(3) 511 IAC 5-5-5 concerning assessment training;

(c) If a teacher successfully completes a training on the online platform, the training must count towards continuing education required for licensure renewal, as prescribed by the department.

SECTION 29. IC 20-19-3-30.4 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 30.4: (a) The department, in collaboration with the state police department, shall:

(1) identify a set of best practices; and

(2) develop a set of educational materials;

regarding recommendations for the safe possession and storage of a firearm in a home with a child.

(b) The best practices and educational materials described in subsection (a) must include information on:

(1) firearm access;

(2) firearm handling;

(3) firearm storage;

(4) ammunition access; and

(5) ammunition storage.

(c) After December 31, 2023, the department shall provide the best practices and educational materials described in subsection (a) to public schools, charter schools, and state accredited nonpublic schools



for annual distribution to parents of students:

(d) The department shall maintain a public website that contains the best practices and educational materials described in subsection (a). The department shall publicize the website and promote the best practices and educational materials to all elementary and high schools operating in the state.

SECTION 30. IC 20-19-3-35 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 35. (a) Not later than July 1, 2024, the department shall do the following:

(1) Establish an online, self-paced professional development module to support educators in doing the following with regard to mathematics:

(A) Implementing the Indiana academic standards;

(B) Applying effective teaching strategies;

(C) Emphasizing contextual problem solving;

(D) Fostering collaborative learning environments;

(E) Using universal supports for students.

(2) Develop math descriptions correlated to proficiency level descriptors to track proficiency at the student level that are:

(A) appropriately aligned to the Indiana academic standards; and

(B) readily available to educators, parents, and students across the state.

(3) Create and identify dedicated math resources for parents, families, and educators to assist with intervention and enrichment opportunities and instructional strategies.

(b) Not later than July 1, 2024, the department shall post the resources created and identified under subsection (a)(3) on the department's website.

(c) Not later than December 1, 2024, the department shall submit a plan to the legislative council in an electronic format under IC 5-14-6 that includes:

(1) strategies for the early identification of students who are at risk of not meeting grade level proficiency in mathematics; and

(2) recommendations for high quality intervention policies for mathematics that focus on:

(A) providing data driven, systematic small group or individualized instruction focused on building student understanding through mathematical learning progressions;

(B) using materials aligned to daily core instruction; and

(C) using evidence based instructional strategies to promote:

(i) conceptual understanding;



- (ii) procedural fluency; and
- (iii) real world problem solving.

This subsection expires July 1, 2025.

SECTION 31. IC 20-19-3-37 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 37: (a) The department shall do the following:

(1) Study the basis for student suspensions and expulsions categorized as "other" by school corporations.

(2) Prepare a report that includes the following:

(A) Information concerning the study under subdivision (1).

(B) Any recommendation regarding expanding the suspension and expulsion category options.

(3) Not later than November 1, 2025, submit the report prepared under subdivision (2) to the legislative council in an electronic format under IC 5-14-6.

(b) This section expires July 1, 2026.

SECTION 32. IC 20-19-3-37.4 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 37.4: Not later than October 1, 2025, the secretary of education shall compile and prepare a report concerning the feasibility of offering the school bus driver safety education training course described in IC 20-27-8-10 at several regional locations.

SECTION 33. IC 20-19-3-38 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 38: (a) As used in this section:

(1) "school health plan" refers to a school employee health plan offered under IC 20-26-17; and

(2) "state health plan" refers to a state employee health plan offered under IC 5-10-8-6.7.

(b) Before November 1, 2025, the department shall prepare and submit a report to the general assembly in an electronic format under IC 5-14-6 that provides an analysis of the feasibility and cost of increasing school corporation employee health plan options.

(c) The report described in subsection (b) must include the following:

(1) An analysis of the feasibility and cost of allowing a school corporation employee to elect to participate in a state health plan if the state health plan is less expensive than the school health plan offered by the employee's school corporation.

(2) An analysis of the feasibility and cost of allowing a school corporation employee who elects, as described in subdivision (1), to participate in a less expensive state health plan to apply the difference between the amount of the school health plan offered by the employee's school corporation and the amount of the state health plan to:



- (A) the employee's defined contribution account; if the employee maintains a defined contribution account; or  
 (B) the employee's annual salary.

(d) This section expires July 1, 2026.

SECTION 34. IC 20-19-3-40 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 40: (a) Not later than December 1, 2025, the department shall submit a report to the general assembly in an electronic format under IC 5-14-6 on the academic readiness of students who enroll in a virtual school or program. To the extent possible, the report must include course completion data and student performance data on the statewide assessment.

(b) This section expires June 30, 2026.

SECTION 35. IC 20-19-11-4 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 4: This chapter expires January 1, 2027.

SECTION 36. IC 20-20 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Programs Administered by the State).

SECTION 37. IC 20-20.5 IS ADDED TO THE INDIANA CODE AS A NEW ARTICLE TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

# **ARTICLE 20.5. PROGRAMS ADMINISTERED BY THE STATE**

## **Chapter 1. Educational Service Centers**

Sec. 1. As used in this chapter, "applicable nonpublic school" refers to a nonpublic school that has one (1) or more employees.

Sec. 2. As used in this chapter, "board" refers to the board of an educational service center described in section 8 of this chapter.

Sec. 3. (a) As used in this chapter, "educational service center" means an extended agency of school corporations, charter schools, and applicable nonpublic schools that:

- (1) operates under rules established by the state board;
- (2) is the administrative and operational unit that serves a definitive geographical boundary, which, to the extent possible, must be aligned with the boundary of a regional works council's region established under IC 20-19-6 (before its expiration); and
- (3) allows school corporations, charter schools, and applicable nonpublic schools to voluntarily cooperate and share programs and services that the school corporations, charter schools, and applicable nonpublic schools cannot individually provide but collectively may implement.

(b) Programs and services collectively implemented through an educational service center may include, but are not limited to, the



following:

- (1) Curriculum development.
- (2) Pupil personnel and special education services.
- (3) In-service education.
- (4) State-federal liaison services.
- (5) Instructional materials and multimedia services.
- (6) Career and technical education.
- (7) Purchasing and financial management.
- (8) Needs assessment.
- (9) Computer use.
- (10) Research and development.

**Sec. 4.** The state board may provide for the establishment of and procedures for the operation of educational service centers.

**Sec. 5. (a)** The state board shall do the following:

- (1) Adopt a comprehensive plan to implement this chapter.
- (2) Determine the areas in Indiana that will be served by an educational service center.

**(b)** In determining the geographic area to be served by an educational service center, the state board shall consider the following:

- (1) Physical factors.
- (2) Socio-economic factors.
- (3) Educational factors.
- (4) Existing cooperative efforts and agreements.

**Sec. 6.** An educational service center must be established under rules adopted by the state board to develop, provide, and make available to participating schools, including participating charter schools and applicable nonpublic schools, those services requested by the participating school corporations, participating charter schools, and applicable nonpublic schools and approved by the state board.

**Sec. 7.** Educational service centers shall be located throughout Indiana to allow each school corporation, charter school, and applicable nonpublic school to have an opportunity to:

- (1) be served by; and
- (2) participate in;

an approved center on a voluntary basis by resolution of the governing body of the school corporation, by the approval of an organizer of a charter school, or by the approval of the governing board or entity of an applicable nonpublic school.

**Sec. 8.** An educational service center shall be governed in its local administration by a board selected by an assembly comprised





of the:

- (1) superintendent or the superintendent's designee from each participating school corporation;
- (2) organizer of a charter school or the organizer's designee from each participating charter school; and
- (3) chief administrative officer of an applicable nonpublic school or the chief administrative officer's designee.

Sec. 9. (a) The state board shall adopt uniform rules to provide for the local selection, appointment, and continuity of membership for boards.

(b) Vacancies on a board shall be filled by appointment by the remaining members of the board.

(c) Members of a board serve without compensation.

Sec. 10. A board may employ the following:

- (1) An executive director for the educational service center.
- (2) Other personnel the board considers necessary to:
  - (A) carry out the functions of the educational service center; and
  - (B) do and perform all things the board considers proper for successful operation of the center.

Sec. 11. (a) Any funds, including donated funds and funds from federal or other local sources, shall be used to pay for the costs of establishing or operating an educational service center.

(b) An educational service center may administer programs and funds from any of the sources described in subsection (a). All activities funded from federal sources must follow all applicable federal guidelines, rules, and regulations.

Sec. 12. This chapter does not prohibit an educational service center from receiving and using matching funds from federal sources in any amount for which the educational service center may be eligible.

## Chapter 2. Teacher Referral System

Sec. 1. As used in this chapter, "referral system" refers to the teacher employment opportunities referral system established by section 2 of this chapter.

Sec. 2. The department shall establish and keep current a computerized teacher employment opportunities referral system.

Sec. 3. The referral system must:

- (1) be capable of identifying the available public school teaching positions within Indiana;
- (2) provide the pertinent information on individuals who are seeking employment as teachers; and



(3) be accessible to school corporations, teachers, prospective teachers, and state educational institutions.

### **Chapter 3. Teacher of the Year**

**Sec. 1.** A teacher of the year may be invited to serve one (1) year of professional leave with:

- (1) an Indiana postsecondary educational institution; or
- (2) the department.

**Sec. 2. (a)** The school where a teacher of the year is regularly employed shall do the following:

- (1) Grant the teacher a one (1) year professional leave to provide service as described in section 1 of this chapter.
- (2) Allow the teacher to return to the school from the professional leave:
  - (A) to the same or a comparable position as the teacher held before the professional leave; and
  - (B) without loss of accrued benefits or seniority.
- (3) Continue to provide the teacher all benefits of employment with the school other than salary.

(b) The department shall reimburse a school for the cost of benefits provided by the school to a teacher under subsection (a)(3).

**Sec. 3.** If a teacher of the year provides service for the department or an Indiana postsecondary educational institution under this chapter, the department or the Indiana postsecondary educational institution shall pay the teacher's salary for the term of the service and shall reimburse the teacher's regular employer for the teacher's benefits during the term of service.

### **Chapter 4. Curricular Materials**

**Sec. 1. (a)** Not later than July 1, 2027, and each July 1 thereafter, the department shall evaluate, approve, and publish a list of high quality curricular materials for use in the following subjects:

- (1) Science.
- (2) Technology.
- (3) Engineering.
- (4) Math.
- (5) English/language arts.

The department shall post the list approved under this subsection on the department's website.

(b) Subject to subsection (g), the department shall:

- (1) determine the:
  - (A) process for evaluating and approving curricular



materials under subsection (a); and  
 (B) requirements for curricular materials to be approved  
 and included on the list described in subsection (a); and  
 (2) collaborate with teachers in evaluating and approving high  
 quality curricular materials in English/language arts under  
 subsection (a).

(c) The department shall publish an annual report that  
 describes the method used to conduct the evaluation required  
 under subsection (a) and that contains the results of the evaluation.  
 The report must do the following:

- (1) Provide a list of each curricular material evaluated and a  
 summary of the evaluation for each curricular material.
- (2) Provide a listing and summary review for the high quality  
 curricular materials approved by the department.
- (3) Include any clarification or response from the publisher of  
 a curricular material related to the department's summary  
 review provided under subdivision (2).
- (4) Include the written, exact, and standard statewide price  
 provided by the publisher of the curricular material under  
 subsection (e) for each high quality curricular material  
 approved by the department under this section.

(d) A governing body and superintendent may use the list  
 approved under subsection (a) in complying with IC 20-26-12-24.

(e) Before the department may approve curricular material for  
 inclusion on the list under subsection (a), the publisher of the  
 curricular material must:

- (1) provide the department a written, exact, and standard  
 statewide price for each curricular material; and
- (2) enter into a data share agreement with the department in  
 the manner prescribed by the department.

(f) A publisher may request that an update to the publisher's  
 curricular materials and corresponding prices replace the  
 information on the curricular materials set forth in the report  
 under subsection (c).

(g) At a minimum, the process for evaluating curricular  
 materials and the requirements for curricular materials to be  
 approved and included on the list described in subsection (a) must  
 include the following:

- (1) The availability and use of benchmark, formative, interim,  
 or similar assessments to identify students that require  
 remediation or enrichment and provide individualized  
 instruction.



(2) The incorporation of experiential learning opportunities.

(3) An evaluation of the benchmark, formative, interim, or similar assessment data provided by the publisher of the curricular material pursuant to the data share agreement described in subsection (e).

(4) The alignment of the curricular material to Indiana's academic standards developed by the department under IC 20-31-3-2.

(5) The age appropriateness of the content.

**Sec. 2. (a)** The secretary of education shall notify the governing bodies of each school corporation, charter school, and state accredited nonpublic school immediately of:

(1) the initial publication and annual update on the department's website of the report described in section 1(c) of this chapter, including the website address where the report is published; and

(2) updates of the following types of information in the report described in section 1(c) of this chapter:

(A) The addition of materials.

(B) The removal of materials.

(C) Changes in the per unit price of curricular materials that exceed five percent (5%).

**(b)** A notification under this section must state that:

(1) the reviews of curricular materials included in the report described in section 1(c) of this chapter are departmental reviews only; and

(2) each governing body has authority to adopt curricular materials for a school corporation.

#### **Chapter 5. High School Diploma Program for Eligible Veterans**

**Sec. 1.** As used in this chapter, "department of veterans' affairs" refers to the Indiana department of veterans' affairs established by IC 10-17-1-2.

**Sec. 2.** As used in this chapter, "diploma" refers to a high school diploma.

**Sec. 3.** As used in this chapter, "eligible veteran" refers to an individual who has the following qualifications:

(1) Served as a member of the armed forces of the United States at any time during at least one (1) of the following periods:

(A) Beginning April 6, 1917, and ending November 11, 1918 (World War I).

(B) Beginning December 7, 1941, and ending December 31,



- 1                   **1946 (World War II).**
- 2                   **(C) Beginning June 27, 1950, and ending January 31, 1955**
- 3                   **(Korean Conflict).**
- 4                   **(D) Beginning August 5, 1964, and ending May 7, 1975**
- 5                   **(Vietnam Conflict).**
- 6                   **(2) Before the military service described in subdivision (1):**
- 7                         **(A) attended a public or nonpublic high school in Indiana;**
- 8                         **and**
- 9                         **(B) was a student in good standing at the high school**
- 10                        **described in clause (A), to the satisfaction of the**
- 11                        **department of veterans' affairs.**
- 12                   **(3) Did not graduate or receive a diploma because of leaving**
- 13                   **the high school described in subdivision (2) for the military**
- 14                   **service described in subdivision (1).**
- 15                   **(4) Was discharged from the armed forces of the United**
- 16                   **States under conditions other than conditions set forth in**
- 17                   **IC 10-17-12-7.5(2).**
- 18                   **Sec. 4. As used in this chapter, "program" refers to the high**
- 19                   **school diploma program for eligible veterans established by section**
- 20                   **6 of this chapter.**
- 21                   **Sec. 5. As used in this chapter, "school corporation" includes a**
- 22                   **successor school corporation serving the area where a high school**
- 23                   **that no longer exists was once located.**
- 24                   **Sec. 6. The high school diploma program for eligible veterans is**
- 25                   **established to provide for the issuance of high school diplomas to**
- 26                   **certain veterans.**
- 27                   **Sec. 7. (a) The department and the department of veterans'**
- 28                   **affairs shall jointly design a form for the application for issuance**
- 29                   **of a diploma under the program.**
- 30                        **(b) The application form must require at least the following**
- 31                        **information about an eligible veteran:**
- 32                            **(1) Personal identification information.**
- 33                            **(2) Military service information, including a copy of the**
- 34                            **eligible veteran's discharge from military service under**
- 35                            **conditions other than conditions set forth in**
- 36                            **IC 10-17-12-7.5(2).**
- 37                            **(3) High school information, including the following:**
- 38                                **(A) Name and address, including county, of the last high**
- 39                                **school attended.**
- 40                                **(B) Whether the high school was a public or nonpublic**
- 41                                **school.**
- 42                                **(C) Years attended.**



- 1 (D) Year of leaving high school to begin military service.
- 2 (E) Year in which the veteran would have graduated if the
- 3 veteran had not left high school to begin military service.
- 4 (4) If the high school attended was a public school, whether
- 5 the veteran prefers receiving a diploma issued by:
- 6 (A) the state board; or
- 7 (B) the governing body of the school corporation governing
- 8 the high school.
- 9 Sec. 8. The department of veterans' affairs shall do the following
- 10 for individuals that the department of veterans' affairs has reason
- 11 to believe may be eligible to apply for a diploma under the
- 12 program:
- 13 (1) Give notice of the program.
- 14 (2) Describe the application procedure.
- 15 (3) Furnish an application form.
- 16 Sec. 9. The following individuals may apply for the issuance of
- 17 a diploma to an eligible veteran under the program:
- 18 (1) An eligible veteran, including an eligible veteran who has
- 19 received a general educational development (GED) diploma
- 20 issued under IC 20-20-6 (before its repeal) or IC 22-4.1-18, or
- 21 a similar diploma.
- 22 (2) An individual who is:
- 23 (A) the surviving spouse of; or
- 24 (B) otherwise related to;
- 25 an eligible veteran who is deceased.
- 26 Sec. 10. An applicant for a diploma under the program must
- 27 submit a completed application form to the department of
- 28 veterans' affairs.
- 29 Sec. 11. Upon receipt of an application, the department of
- 30 veterans' affairs shall do the following:
- 31 (1) Verify the accuracy of the information in the application,
- 32 in consultation with the department, if necessary.
- 33 (2) Forward the verified application to the department.
- 34 Sec. 12. Upon receipt of a verified application, the department
- 35 shall do the following:
- 36 (1) If the applicant:
- 37 (A) expresses a preference in the application to receive a
- 38 diploma issued by the state board; or
- 39 (B) attended a nonpublic high school before leaving high
- 40 school for military service;
- 41 the department shall present a diploma issued by the state
- 42 board.



(2) If the applicant expresses a preference for receiving a diploma from the governing body of the school corporation containing the public high school that the eligible veteran left for military service, the department shall direct the governing body of the affected school corporation to issue and present the diploma.

Sec. 13. (a) The department and governing bodies are encouraged but are not required to hold a ceremony to present a diploma that is issued under the program.

(b) Upon request of a governing body, the department, in cooperation with the department of veterans' affairs, shall assist the governing body to develop a variety of formats for appropriate ceremonies at which to award diplomas under the program.

Sec. 14. (a) The state board shall design a unique commemorative diploma for the board to issue to eligible veterans who:

(1) attended a public high school and express in the application a preference for receiving a diploma that the state board issues; or

(2) attended a nonpublic high school.

(b) The state board shall design a unique commemorative diploma that a governing body may choose to issue under the program.

Sec. 15. (a) A governing body may design a unique commemorative diploma for the governing body to issue under the program.

(b) A governing body that issues a diploma under the program shall issue one (1) of the following types of diplomas:

(1) The diploma described in subsection (a).

(2) The diploma designed by the state board under section 14(b) of this chapter.

(3) The same diploma that the governing body issues to current graduates.

Sec. 16. The department and the department of veterans' affairs shall work cooperatively to jointly administer this chapter.

Sec. 17. A fee may not be charged to process an application or to award a diploma under this chapter.

Sec. 18. The department and the department of veterans' affairs may adopt rules under IC 4-22-2 to implement this chapter.

#### Chapter 6. Educational Technology Program and Grants

Sec. 1. As used in this chapter, "fund" refers to the Senator David C. Ford educational technology fund established under



section 3 of this chapter.

Sec. 2. As used in this chapter, "technology equipment" means computer hardware, computer software, related teacher training services, related instructional manuals and materials, and equipment servicing.

Sec. 3. (a) The Senator David C. Ford educational technology fund is established to extend educational technologies to elementary and secondary schools. The fund may be used for:

(1) a school technology program developed by the department. The program may include grants to school corporations for the purchase of:

(A) equipment, hardware, and software;

(B) learning and teaching systems; and

(C) other materials;

that promote student learning, as determined by the department;

(2) conducting educational technology training for teachers;

(3) other innovative educational technology programs; and

(4) providing professional learning opportunities for educators regarding digital learning.

(b) The department may also use money in the fund under contracts entered into with the office of technology established by IC 4-13.1-2-1 to study the feasibility of establishing an information telecommunications gateway that provides access to information on employment opportunities, career development, and instructional services from data bases operated by the state among the following:

(1) Elementary and secondary schools.

(2) Postsecondary educational institutions.

(3) Career and technical educational centers and institutions that are not postsecondary educational institutions.

(4) Libraries.

(5) Any other agencies offering education and training programs.

(c) The fund consists of:

(1) state appropriations;

(2) private donations to the fund; or

(3) any combination of the amounts described in subdivisions (1) and (2).

(d) The fund shall be administered by the department.

(e) Unexpended money appropriated to or otherwise available in the fund at the end of a state fiscal year does not revert to the





1 state general fund but remains available to the department for use  
2 under this chapter.

3 Sec. 4. Upon the approval of the governor and the budget  
4 agency, the department may use funds available under this chapter  
5 to provide or extend education technology to any school  
6 corporation for purposes described in this chapter.

7 Sec. 5. The department shall develop guidelines necessary to  
8 implement this chapter, including guidelines that require the  
9 school corporation to use the laboratories to the fullest extent  
10 possible.

11 Sec. 6. To be eligible to receive money under this chapter, a  
12 school corporation must apply to the department on forms  
13 provided by the department.

14 Sec. 7. A school corporation that receives a grant under this  
15 chapter must deposit the grant in the school corporation's  
16 education fund.

17 Chapter 7. School Intervention and Career Counseling  
18 Development Program and Fund

19 Sec. 1. As used in this chapter, "fund" refers to the school  
20 intervention and career counseling development fund established  
21 by section 4 of this chapter.

22 Sec. 2. As used in this chapter, "grant" refers to a grant from  
23 the fund.

24 Sec. 3. As used in this chapter, "school intervention and career  
25 counseling development program" refers to a program carried out  
26 under this chapter:

- 27 (1) for kindergarten through grade 6; and
- 28 (2) by a licensed school counselor.

29 Sec. 4. (a) As a result of a comprehensive study conducted by the  
30 department on the role of school counselors, including the  
31 expanding role of school counselors in career development under  
32 workforce development programs that affect public schools, the  
33 school intervention and career counseling development fund is  
34 established. The money in the fund shall be used to develop  
35 counseling models in a limited number of school corporations as  
36 determined by the department under this chapter.

37 (b) If a school corporation is awarded a grant under this  
38 chapter, the school corporation must:

- 39 (1) agree to evaluate the impact and results of the school  
40 corporation's program; and
- 41 (2) submit the school corporation's findings to the  
42 department.



(c) The department shall administer the fund.

(d) The fund consists of:

- (1) gifts to the fund;
- (2) appropriations from the general assembly;
- (3) grants, including grants from private entities; and
- (4) a combination of the resources described in subdivisions (1), (2), and (3).

Sec. 5. Subject to section 6 of this chapter, for a school corporation to be eligible to receive a grant under this chapter, the following must occur:

(1) The superintendent of the school corporation must apply to the department for a grant on forms provided by the department.

(2) The application for a grant must include the following information:

(A) A detailed description of a proposal for initiating or expanding a school intervention or career counseling program.

(B) Evidence supporting the school corporation's need to implement the school intervention or career counseling program.

(C) The number of elementary school counselors employed by the school corporation.

(D) The elementary school counselor/student ratio for the school corporation.

(E) Any other pertinent information required by the department, including evidence guaranteeing that if the school corporation receives a grant under this chapter, the school corporation has developed a plan to evaluate the impact and results of the school corporation's program.

Sec. 6. The department may award grants to school corporations:

(1) upon review of the applications received under section 5 of this chapter;

(2) subject to available money; and

(3) in accordance with the following priorities:

(A) To the extent possible, to achieve geographic balance throughout Indiana and to include urban, suburban, and rural school corporations.

(B) To address a documented need for new or expanded school intervention or career counseling programs, including considering the percentage of students within the



1 school corporation who are designated as at risk students.

2 (C) To promote innovative methods for initiating or  
3 expanding school intervention or career counseling  
4 programs.

5 (D) To reward school corporations that propose school  
6 intervention or career counseling programs that  
7 demonstrate the greatest potential for replication and  
8 implementation in Indiana.

9 (E) To lower school counselor/student ratios where the  
10 ratios are excessively high.

11 Sec. 7. (a) Subject to subsection (b), the department shall  
12 determine the amount of each grant that is awarded under this  
13 chapter.

14 (b) A grant to a particular school corporation may not exceed:

15 (1) fifteen thousand dollars (\$15,000) for each full-time  
16 counselor for each academic year, or seven thousand five  
17 hundred dollars (\$7,500) for each full-time counselor for each  
18 semester; and

19 (2) the following total grant awards as each relates to the  
20 ADM of the school corporation at the time the school  
21 corporation applies for the grant:

22 (A) For a school corporation with an ADM of not more  
23 than five thousand (5,000), seventy-five thousand dollars  
24 (\$75,000).

25 (B) For a school corporation with an ADM of at least five  
26 thousand one (5,001) and not more than nine thousand  
27 nine hundred ninety-nine (9,999), one hundred twenty  
28 thousand dollars (\$120,000).

29 (C) For a school corporation with an ADM of at least ten  
30 thousand (10,000), one hundred eighty thousand dollars  
31 (\$180,000).

32 Sec. 8. A grant received by a school corporation may be  
33 expended by the school corporation for a twenty-four (24) month  
34 period.

35 Sec. 9. The department shall develop guidelines necessary to  
36 implement this chapter.

#### 37 Chapter 8. Early Childhood Programs

38 Sec. 1. As used in this chapter, "early childhood program"  
39 refers to a voluntary parental education program for parents of  
40 children from birth to less than three (3) years of age that provides  
41 these parents with information and activities to help the parents  
42 better prepare children for school.



1       Sec. 2. As used in this chapter, "latch key program" means a  
2 voluntary school age child care program for children who attend  
3 kindergarten through grade 6 and that at a minimum, operates  
4 after the school day and may include periods before school is in  
5 session or during periods when school is not in session.

6       Sec. 3. As used in this chapter, "preschool program" refers to  
7 a voluntary school readiness program for children who are at least  
8 three (3) years of age and not enrolled in at least kindergarten.

9       Sec. 4. A school corporation may enter into an agreement with  
10 a private or nonprofit corporation to provide early childhood  
11 education programs, preschool programs, or latch key programs.  
12 However, if a school corporation enters into a contract for a  
13 preschool program, the private or nonprofit corporation must  
14 operate a federally approved preschool program.

15       Sec. 5. The department shall develop guidelines necessary to  
16 implement this chapter.

#### 17 Chapter 9. Alternative Education Program Grants

18       Sec. 1. As used in this chapter, "alternative education program"  
19 means an alternative education program (as defined in  
20 IC 20-30-8-1).

21       Sec. 2. As used in this chapter, "full-time equivalent students"  
22 means the number of students determined under IC 20-30-8-16.

23       Sec. 3. As used in this chapter, "qualifying school corporation"  
24 means a school corporation, including a charter school, that has  
25 been approved under IC 20-30-8-8 to receive a grant under this  
26 chapter.

27       Sec. 4. A qualifying school corporation is eligible to receive a  
28 grant from the state for each full-time equivalent student who is  
29 enrolled in an alternative education program conducted for the  
30 school corporation.

31       Sec. 5. The maximum amount that may be granted to a  
32 qualifying school corporation in a school year is seven hundred  
33 fifty dollars (\$750) per full-time equivalent student.

34       Sec. 6. To receive a grant under this chapter, a school  
35 corporation must expend on alternative education programs in the  
36 school year a matching amount of at least one-third (1/3) of the  
37 amount of the state grant per full-time equivalent student, as  
38 determined under the rules adopted by the state board.

39       Sec. 7. (a) Except as provided in subsection (b), the department  
40 shall distribute a grant under this chapter to a qualifying school  
41 corporation not later than September 1. The grant must be for the  
42 number of full-time equivalent students enrolled in and attending



1 an alternative education program from July 1 through June 30 of  
 2 the immediately preceding school year and reported to the  
 3 department under IC 20-30-8-15.

4 (b) The department may authorize additional distributions for  
 5 approved programs if the total amount of the distributions to a  
 6 school corporation during a school year under this subsection does  
 7 not exceed a maximum amount of seven hundred fifty dollars  
 8 (\$750) per full-time equivalent student reported under  
 9 IC 20-30-8-15.

#### 10 Chapter 10. Career and Technical Education

11 Sec. 1. As used in this chapter, "career and technical education"  
 12 means any secondary level vocational, agricultural, occupational,  
 13 manpower, employment, or technical training or retraining that:

- 14 (1) enhances an individual's career potential and further  
 15 education; and
- 16 (2) is accessible to individuals who desire to explore and learn  
 17 for economic and personal growth leading to employment  
 18 opportunities.

19 Sec. 2. As used in this chapter, "commission" refers to the  
 20 commission for higher education established by IC 21-18-2-1.

21 Sec. 3. As used in this chapter, "employment training" means all  
 22 programs administered by the following:

- 23 (1) The commission.
- 24 (2) The Indiana jobs training program.
- 25 (3) The department.

26 Sec. 4. (a) The state board shall develop and implement a long  
 27 range state plan for a comprehensive secondary level career and  
 28 technical education program in Indiana.

29 (b) The plan developed under this section must be updated as  
 30 changes occur. The state board shall make the plan and any  
 31 revisions made to the plan available to:

- 32 (1) the governor;
- 33 (2) the general assembly;
- 34 (3) the department of workforce development;
- 35 (4) the commission for higher education;
- 36 (5) the board for proprietary education; and
- 37 (6) any other appropriate state or federal agency.

38 A plan or revised plan submitted under this section to the general  
 39 assembly must be in an electronic format under IC 5-14-6.

40 (c) The plan developed under this section must set forth specific  
 41 goals for secondary level public career and technical education and  
 42 must include the following:



(1) The preparation of each graduate for both employment and further education.

(2) Accessibility of career and technical education to individuals of all ages who desire to explore and learn for economic and personal growth.

(3) Projected employment opportunities in various career and technical education fields.

(4) A study of the supply of and the demand for a labor force skilled in particular career and technical education areas.

(5) A study of technological and economic change affecting Indiana.

(6) An analysis of the private career and education sector in Indiana.

(7) Recommendations for improvement in the state career and technical education program.

(8) The educational levels expected of career and technical education programs proposed to meet the projected employment needs.

(d) When making any revisions to the plan, the state board shall consider the workforce needs and training and education needs identified in the occupational demand report prepared by the department of workforce development under IC 22-4.1-4-10 (before its expiration).

(e) The state board shall use data from the department of workforce development to develop and implement a plan or make revisions to a plan under this section.

**Sec. 5. (a) The state board shall do the following:**

(1) Prepare biennially a plan for implementing career and technical education.

(2) Implement, to the best of its ability, the career and technical education plan prepared under subdivision (1).

(3) Investigate the funding of career and technical education on a cost basis.

(4) Establish and monitor the operation of secondary level career and technical education in Indiana in accordance with the comprehensive long range state plan developed under section 4 of this chapter.

(5) In consultation with the Indiana professional licensing agency, adopt rules concerning secondary level career and technical education programs, courses, and classes in the areas of cosmetology, electrology, esthetics, barbering, and manicuring.



(6) To comply with this section and any federal law or regulation:

(A) adopt rules under IC 4-22-2; and

(B) develop policies and administrative procedures.

(b) The state board shall use data from the department of workforce development to carry out the state board's duties under this section.

Sec. 6. (a) The state board shall do the following:

(1) Make recommendations to the general assembly concerning the development, duplication, and accessibility of employment training and career and technical education on a regional and statewide basis.

(2) Consult with any state agency, commission, or organization that supervises or administers programs of career and technical education concerning the coordination of career and technical education, including the following:

(A) The Indiana economic development corporation.

(B) A private industry council (as defined in 29 U.S.C. 1501 et seq.).

(C) The department of labor.

(D) The commission for higher education.

(E) The department of workforce development.

(F) The board for proprietary education.

(G) The department of veterans' affairs.

(3) Review and make recommendations concerning plans submitted by the commission for higher education. The state board may request the resubmission of plans or parts of plans that:

(A) are not consistent with the long range state plan of the state board;

(B) are incompatible with other plans within the system; or

(C) duplicate existing services.

(4) Report to the general assembly on the state board's conclusions and recommendations concerning interagency cooperation, coordination, and articulation of career and technical education and employment training. A report under this subdivision must be in an electronic format under IC 5-14-6.

(5) Study and develop a plan concerning the transition between secondary level career and technical education and postsecondary level career and technical education.

(b) The state board shall use data from the department of



workforce development in carrying out the state board's duties under this section.

Sec. 7. (a) The state board may do the following:

(1) Make recommendations, including recommendations for policies to encourage involvement of minority groups in the career and technical education system in Indiana, to:

(A) the governor;

(B) the general assembly, in an electronic format under IC 5-14-6; and

(C) the various agencies, commissions, or organizations that administer career and technical education programs concerning all facets of career and technical education programming.

(2) Establish a regional planning and coordination system for career and technical education and employment training that will, either in whole or in part, serve career and technical education and employment training in Indiana.

(3) Appoint advisory committees whenever necessary.

(4) Contract for services necessary to carry out this chapter.

(5) Provide information and advice on career and technical education to a business, an industry, or a labor organization operating a job training program in the private sector.

(b) The state board shall use data from the department of workforce development in making recommendations, establishing a regional planning and coordination system, or providing information and advice under subsection (a).

Sec. 8. (a) The state board shall adopt statewide systems or policies concerning the following as the systems or policies relate to the implementation of career and technical education programs:

(1) Student records.

(2) Data processing at the secondary level.

(3) An evaluation system that must be conducted by the state board at least annually and that evaluates the following as each relates to the career and technical education programs and courses offered at the secondary level:

(A) Graduation rates.

(B) Student placement rates.

(C) Retention rates.

(D) Enrollment.

(E) Student transfer rates to postsecondary educational institutions.

(F) When applicable, student performance on state





1           licensing examinations or other external certification  
2           examinations.

3           (G) Cost data study.

4           (4) A system of financial audits to be conducted at least  
5           biennially at the secondary level.

6           (b) The state board shall use data from the department of  
7           workforce development in adopting statewide systems or policies  
8           under subsection (a).

9           Sec. 9. (a) The state board shall establish career and technical  
10          education evaluation criteria.

11          (b) Using the criteria established under subsection (a), the state  
12          board shall evaluate the effectiveness of career and technical  
13          education relative to the goals of the long range plan developed  
14          under section 4 of this chapter.

15          (c) The state board shall use data from the department of  
16          workforce development in establishing career and technical  
17          education evaluation criteria under subsection (a).

18          Sec. 10. (a) The state board shall develop a definition for and  
19          report biennially to:

20               (1) the general assembly; and

21               (2) the governor;

22          on attrition and persistence rates by students enrolled in secondary  
23          career and technical education. A biennial report under this section  
24          to the general assembly must be in an electronic format under  
25          IC 5-14-6.

26          (b) The state board shall use data from the department of  
27          workforce development in developing a definition and a report  
28          under subsection (a).

29          Sec. 11. Upon request of the budget director, the state board  
30          shall prepare a legislative budget request for state funds for  
31          secondary and postsecondary career and technical education. The  
32          budget director shall determine the period to be covered by the  
33          budget request. This budget request must be made available to the  
34          commission for higher education before the request's review by the  
35          budget committee.

36          Sec. 12. (a) The state board shall review the legislative budget  
37          requests for secondary and postsecondary career and technical  
38          education prepared by the state educational institutions.

39          (b) After the review under subsection (a) and a review of any  
40          recommendations from the commission for higher education, the  
41          state board shall make recommendations to the budget committee  
42          concerning the appropriation of state funds for secondary and



1 postsecondary career and technical education. The state board's  
 2 recommendations concerning appropriations and allocations for  
 3 secondary and postsecondary career and technical education by  
 4 secondary schools and state educational institutions must specify:

- 5 (1) the categories of expenditures and the distribution plan or
- 6 formula for secondary schools; and
- 7 (2) the categories of expenditures for each state educational
- 8 institution.

9 (c) After reviewing the state board's recommendations, and  
 10 each agency's budget request, the budget committee shall make  
 11 recommendations to the general assembly for funding to  
 12 implement secondary and postsecondary career and technical  
 13 education. The general assembly shall biennially appropriate state  
 14 funds for secondary and postsecondary career and technical  
 15 education and allocate federal funds available under 20 U.S.C.  
 16 2301 et seq. for secondary and postsecondary career and technical  
 17 education. At least sixty percent (60%) of the federal funds  
 18 available under 20 U.S.C. 2301 et seq. must be allocated to  
 19 secondary level career and technical education to implement the  
 20 long range state plan developed under section 4 of this chapter.

21 (d) The budget agency, with the advice of the state board, and  
 22 the budget committee, may augment or proportionately reduce an  
 23 allocation of federal funds made under subsection (c).

24 (e) The state board shall use data from the department of  
 25 workforce development in making a recommendation under this  
 26 section.

27 Sec. 13. The state board shall distribute state funds made  
 28 available for secondary and postsecondary career and technical  
 29 education that have been appropriated by the general assembly  
 30 and in accordance with the plan prepared by:

- 31 (1) the state board under section 5 of this chapter; and
- 32 (2) the commission for higher education.

33 Sec. 14. (a) The state board may employ any staff necessary to  
 34 perform the duties imposed by this chapter and fix the  
 35 compensation and terms of that employment, subject to approval  
 36 by the budget agency.

37 (b) The state board may authorize the department, whenever  
 38 practical or necessary, to assist the state board in carrying out the  
 39 duties prescribed by this chapter.

40 Sec. 15. (a) An emancipated student or the parent of a student  
 41 enrolled in a career or technical education course may voluntarily  
 42 release information, on a form prescribed by the department,



1 pertaining to the student's enrollment in the career and technical  
 2 education course to potential employers that contact the school to  
 3 recruit students with particular career and technical skills. A  
 4 school must provide a copy of the form described in this subsection  
 5 to the emancipated student or the parent of the student when the  
 6 student enrolls in the career and technical education course.

7 (b) If an emancipated student or the parent of a student  
 8 described in subsection (a) voluntarily releases information under  
 9 subsection (a), the school shall also provide the department of  
 10 workforce development a copy of the student's voluntarily released  
 11 enrollment information. The department of workforce  
 12 development may provide the student's voluntarily released  
 13 enrollment information to potential employers that contact the  
 14 department of workforce development to recruit students with  
 15 particular career and technical skills.

16 (c) The form prescribed in subsection (a) must comply with the  
 17 federal Family Education Rights and Privacy Act (20 U.S.C. 1232g  
 18 et seq.).

19 Sec. 16. The state board may adopt rules under IC 4-22-2 as  
 20 necessary to carry out the duties imposed by this chapter.

#### 21 Chapter 11. Insurance Coverage for Work Based Learning

22 Sec. 1. As used in this chapter, "work based learning course"  
 23 has the meaning set forth in IC 20-43-8-0.7.

24 Sec. 2. (a) The department shall maintain a:

25 (1) contract with a company to provide; or

26 (2) memorandum of understanding:

27 (A) with a statewide entity that represents business  
 28 interests in multiple industries; and

29 (B) that provides that the entity agrees to facilitate the  
 30 procurement of;

31 adequate employer liability and worker's compensation insurance  
 32 coverage for an employer described in section 3 of this chapter.

33 (b) The total amount of funds that the department may expend  
 34 to implement this section must be less than one hundred thousand  
 35 dollars (\$100,000).

36 Sec. 3. (a) Subject to subsection (b), an employer that employs  
 37 a student in a work based learning course may purchase employer  
 38 liability and worker's compensation insurance coverage described  
 39 in section 2 of this chapter for the student.

40 (b) An employer is responsible for any costs associated with the  
 41 purchase of employer liability and worker's compensation  
 42 insurance coverage under this chapter.



1        **Sec. 4.** If the department is unable to maintain a contract or  
 2 memorandum of understanding under section 2(a) of this chapter,  
 3 the department is not required to maintain a contract with a  
 4 company or a memorandum of understanding as provided under  
 5 section 2 of this chapter.

6        **Sec. 5.** The employer liability and worker's compensation  
 7 insurance coverage provided under this chapter must be approved  
 8 by the department of insurance.

9        **Sec. 6.** The department may adopt rules under IC 4-22-2 to  
 10 implement this chapter.

11        **Chapter 12. Operational Efficiency Reviews**

12        **Sec. 1.** A school corporation shall submit to the department any  
 13 information the department determines is necessary to:

- 14            (1) evaluate the school corporation's current operations; and
- 15            (2) recommend operational efficiencies and financial savings  
 16 for the school corporation.

17        **Chapter 13. Restraint and Seclusion Commission**

18        **Sec. 1.** As used in this chapter, "behavioral intervention plan"  
 19 means a plan that is agreed upon by the case conference committee  
 20 (as defined in IC 20-35-9-3) and incorporated into a student's  
 21 individualized education program (as defined in IC 20-18-2-9) and  
 22 that describes the following:

- 23            (1) The pattern of behavior that impedes the student's  
 24 learning or the learning of others.
- 25            (2) The purpose or function of the behavior as identified in a  
 26 functional behavioral assessment.
- 27            (3) The positive interventions and supports, and other  
 28 strategies, to:  
               (A) address the behavior; and  
               (B) maximize consistency of implementation across people  
 31 and settings in which the student is involved.
- 32            (4) If applicable, the skills that will be taught and monitored  
 33 in an effort to change a specific pattern of behavior of the  
 34 student.

35        The behavioral intervention plan seeks to maximize consistency of  
 36 implementation across people and settings in which the student is  
 37 involved.

38        **Sec. 2.** As used in this chapter, "chemical restraint" means the  
 39 administration of a drug or medication to manage a student's  
 40 behavior or restrict a student's freedom of movement that is not a  
 41 standard treatment and dosage for the student's medical or  
 42 psychiatric condition.



1       **Sec. 3.** As used in this chapter, "commission" refers to the  
 2 commission on seclusion and restraint in schools established by  
 3 section 11 of this chapter.

4       **Sec. 4. (a)** As used in this chapter, "mechanical restraint" means  
 5 the use of:

- 6           (1) a mechanical device;
- 7           (2) a material; or
- 8           (3) equipment;

9 attached or adjacent to a student's body that the student cannot  
 10 remove and that restricts the freedom of movement of all or part  
 11 of the student's body or restricts normal access to the student's  
 12 body.

13       **(b)** The term does not include:

- 14           (1) mechanical devices;
- 15           (2) a material; or
- 16           (3) equipment;

17 used as prescribed by a doctor.

18       **Sec. 5. (a)** As used in this chapter, "physical restraint" means  
 19 physical contact between a school employee and a student:

- 20           (1) in which the student unwillingly participates; and
- 21           (2) that involves the use of a manual hold to restrict freedom  
 22 of movement of all or part of a student's body or to restrict  
 23 normal access to the student's body.

24       **(b)** The term does not include:

- 25           (1) briefly holding a student without undue force in order to  
 26 calm or comfort the student, or to prevent unsafe behavior,  
 27 such as running into traffic or engaging in a physical  
 28 altercation;
- 29           (2) physical escort; or
- 30           (3) physical contact intended to gently assist or prompt a  
 31 student in performing a task or to guide or assist a student  
 32 from one (1) area to another.

33       **Sec. 6.** As used in this chapter, "positive behavior intervention  
 34 and support" means a systematic approach that:

- 35           (1) uses evidence based practices and data driven decision  
 36 making to improve school climate and culture; and
- 37           (2) includes a range of systematic and individualized  
 38 strategies to reinforce desired behavior and diminish  
 39 reoccurrence of problem behavior;

40 to achieve improved academic and social outcomes and increase  
 41 learning for all students.

42       **Sec. 7.** As used in this chapter, "school corporation" includes a



1 charter school that is not a virtual charter school.

2 Sec. 8. As used in this chapter, "school employee" means an  
3 individual employed by a school corporation or a state accredited  
4 nonpublic school.

5 Sec. 9. As used in this chapter, "seclusion" means the  
6 confinement of a student alone in a room or area from which the  
7 student physically is prevented from leaving. The term does not  
8 include a supervised time-out or scheduled break, as described in  
9 a student's individualized education program, in which an adult is  
10 continuously present in the room with the student.

11 Sec. 10. As used in this chapter, "time-out" means a behavior  
12 reduction procedure in which access to reinforcement is withdrawn  
13 for a certain period of time. Time-out occurs when the ability of a  
14 student to receive normal reinforcement in the school environment  
15 is restricted. The term does not include a supervised time-out or  
16 scheduled break, as described in a student's individualized  
17 education program.

18 Sec. 11. (a) The commission on seclusion and restraint in schools  
19 is established.

20 (b) The commission has the following ten (10) members:

21 (1) The designee of the secretary of education, who serves at  
22 the pleasure of the secretary of education.

23 (2) A representative of the Autism Society of Indiana, chosen  
24 by the organization, who serves a two (2) year term.

25 (3) A representative of the Arc of Indiana, chosen by the  
26 organization, who serves a two (2) year term.

27 (4) A representative of the Indiana Council of Administrators  
28 of Special Education, chosen by the organization, who serves  
29 a two (2) year term.

30 (5) A representative of Mental Health America of Indiana,  
31 chosen by the organization, who serves a two (2) year term.

32 (6) A parent of a student with a disability, nominated by a  
33 member described in subdivisions (2), (3), and (5) and  
34 approved by a majority of the members described in  
35 subdivisions (1) through (5) and (8) through (10), who serves  
36 a two (2) year term.

37 (7) A parent of a student who does not have a disability,  
38 nominated by a member described in subdivisions (2), (3), and  
39 (5) and approved by a majority of the members described in  
40 subdivisions (1) through (5) and (8) through (10), who serves  
41 a two (2) year term.

42 (8) One (1) state accredited nonpublic school administrator



1 nominated by the Indiana Non-public Education Association,  
2 who serves a two (2) year term.

3 (9) One (1) public school superintendent nominated by the  
4 Indiana Association of Public School Superintendents, who  
5 serves a two (2) year term.

6 (10) One (1) member of the Indiana School Resource Officers  
7 Association chosen by the organization, who serves a two (2)  
8 year term.

9 (c) Each member of the commission who is not a state employee  
10 is entitled to the minimum salary per diem provided by  
11 IC 4-10-11-2.1(b). A member who is not a state employee is also  
12 entitled to reimbursement for traveling expenses and other  
13 expenses actually incurred in connection with the member's duties,  
14 as provided in the state travel policies and procedures established  
15 by the Indiana department of administration and approved by the  
16 budget agency.

17 Sec. 12. (a) The designee of the secretary of education under  
18 section 11(b)(1) of this chapter serves as chairperson of the  
19 commission.

20 (b) The commission shall meet at least biannually on the call of  
21 the chairperson, and may meet as often as is necessary. The  
22 chairperson shall provide not less than fourteen (14) days notice of  
23 a meeting to the members of the commission and to the public.

24 (c) The affirmative votes of at least five (5) members of the  
25 commission are necessary for the commission to take action. The  
26 votes of the commission must be recorded.

27 (d) All commission meetings shall be open to the public, and  
28 each meeting must include opportunities for public comment.

29 (e) The department shall provide staff support for the  
30 commission.

31 Sec. 13. (a) The commission has the following duties:

32 (1) To adopt rules concerning the following:

33 (A) The use of restraint and seclusion in a school  
34 corporation or a state accredited nonpublic school, with an  
35 emphasis on eliminating or minimizing the use of restraint  
36 and seclusion.

37 (B) The prevention of the use of types of restraint or  
38 seclusion that may harm a student, a school employee, a  
39 school volunteer, or the educational environment of the  
40 school.

41 (C) Requirements for notifying parents.

42 (D) Training regarding the use of restraint and seclusion,



including the frequency of training and what employees must be trained.

(E) The distribution of the seclusion and restraint policy to parents and the public.

(F) Requirements for the reporting of incidents of restraint and seclusion in the annual school performance report, including incidents of restraint and seclusion involving school resource officers (as defined in IC 20-26-18.2-1).

(G) Circumstances that may require more timely incident reporting and the requirements for such reporting.

(2) To develop, maintain, and revise a model restraint and seclusion plan for schools that includes the following elements:

(A) A statement on how students will be treated with dignity and respect and how appropriate student behavior will be promoted and taught.

(B) A statement ensuring that the school will use prevention, positive behavior intervention and support, and conflict de-escalation to eliminate or minimize the need for use of any of the following:

(i) Seclusion.

(ii) Chemical restraint.

(iii) Mechanical restraint.

(iv) Physical restraint.

(v) Time-out.

(C) A statement ensuring that any behavioral intervention used will be consistent with the student's most current behavioral intervention plan, or individualized education program, if applicable.

(D) Definitions for restraint and seclusion, as defined in this chapter.

(E) A statement ensuring that if a procedure listed in clause (B) is used, the procedure will be used:

(i) as a last resort safety procedure, employed only after another, less restrictive procedure has been implemented without success; and

(ii) in a situation in which there is an imminent risk of injury to the student, other students, school employees, or visitors to the school.

(F) An indication that restraint or seclusion may be used only for a short time period, or until the imminent risk of injury has passed.





(G) A documentation and recording requirement governing instances in which procedures listed in clause (B) are used, including:

- (i) how every incident will be documented and debriefed;
- (ii) how responsibilities will be assigned to designated employees for evaluation and oversight; and
- (iii) designation of a school employee to be the keeper of such documents.

(H) A requirement that the student's parent must be notified as soon as possible when an incident involving the student occurs that includes use of procedures listed in clause (B).

(I) A requirement that a copy of an incident report must be sent to the student's parent after the student is subject to a procedure listed in clause (B).

(J) Required recurrent training for appropriate school employees on the appropriate use of effective alternatives to physical restraint and seclusion, including the use of positive behavioral intervention and support and conflict de-escalation. The training must include the safe use of physical restraint and seclusion in incidents involving imminent danger or serious harm to the student, school employees, or others. Consideration must be given to available school resources and the time commitments of school employees.

(3) To accept and review reports from the public and make nonbinding recommendations to the department of any suggested action to be taken.

(4) To biannually provide a report to the state advisory council on the education of children with disabilities appointed under IC 20-35-3-1 regarding the:

(A) execution of the commission's duties under this section; and

(B) review of incident reports under section 15 of this chapter.

(b) The model policy developed by the commission must take into consideration that implementation and reporting requirements for state accredited nonpublic schools may vary, and the model plan must provide state accredited nonpublic schools flexibility with regards to accountability under and implementation of the plan adopted by a state accredited nonpublic school under section 16 of this chapter.



1       **Sec. 14.** If the department has been advised of a discrepancy in  
2 a report under section 13(a)(3) of this chapter, the department  
3 shall require the school to provide a written explanation of the  
4 discrepancy to the department which must comply with the federal  
5 Family Educational Rights and Privacy Act (20 U.S.C. 1232g and  
6 34 CFR Part 99).

7       **Sec. 15. (a)** The department shall biannually review incident  
8 reports under rules established by the commission under IC 4-22-2  
9 and submit summary findings to the commission in compliance  
10 with the federal Family Educational Rights and Privacy Act (20  
11 U.S.C. 1232g and 34 CFR Part 99).

12       **(b)** The commission shall biannually review summary findings  
13 submitted by the department under subsection (a) and may make  
14 nonbinding recommendations to the department or other entities.

15       **(c)** If the department receives a recommendation from the  
16 commission under subsection (b), the department shall provide the  
17 commission a response with regard to the commission's  
18 recommendation in a manner prescribed by the department within  
19 a reasonable time after the department receives the  
20 recommendation from the commission.

21       **Sec. 16. (a)** A school corporation or state accredited nonpublic  
22 school shall adopt a restraint and seclusion plan that incorporates,  
23 at a minimum, the elements of the model plan developed under  
24 section 13 of this chapter. The school corporation's or state  
25 accredited nonpublic school's plan must become effective not later  
26 than July 1, 2014.

27       **(b)** The department has the authority to require schools to  
28 submit plans developed in accordance with section 13 of this  
29 chapter.

30       **Sec. 17. (a)** Nothing in this chapter may be construed to prevent  
31 a school employee from stopping a physical altercation, acting to  
32 prevent physical harm to a student or another individual, or acting  
33 to address an emergency until the emergency is over, whether or  
34 not the school employee has received training under this chapter.

35       **(b)** This chapter may not be construed to give rise to a cause of  
36 action, either civil or criminal, against the state, the department, a  
37 school corporation, a state accredited nonpublic school, the  
38 commission, or a member of the commission.

39       **(c)** In all matters relating to the plan adopted under section 16  
40 of this chapter, school corporation or state accredited nonpublic  
41 school personnel have qualified immunity with respect to an action  
42 taken to promote student conduct under a plan adopted under



1 section 16 of this chapter if the action is taken in good faith and is  
2 reasonable.

3 Sec. 18. The commission shall adopt rules under IC 4-22-2 to  
4 carry out the purposes of this chapter.

5 Chapter 14. Dual Language Pilot Program

6 Sec. 1. The department, with the approval of the state board,  
7 shall establish and maintain a dual language immersion program  
8 to provide grants, in an amount not to exceed fifty thousand dollars  
9 (\$50,000), to school corporations and charter schools that establish  
10 dual language immersion programs in:

- 11 (1) Chinese;
- 12 (2) Spanish;
- 13 (3) French; or
- 14 (4) any other language approved by the department.

15 Sec. 2. A school corporation or charter school may be eligible to  
16 receive a grant under this chapter if:

- 17 (1) the school corporation or charter school uses an  
18 instructional model that provides at least fifty percent (50%)  
19 of its instruction in English and fifty percent (50%) of its  
20 instruction in a language described in section 1 of this  
21 chapter;
- 22 (2) the program that uses an instructional model described in  
23 subdivision (1) begins either in kindergarten or in grade 1;  
24 and
- 25 (3) the program described in subdivision (2) meets any other  
26 requirements established by the department, with the  
27 approval of the state board.

28 Sec. 3. A school corporation or charter school desiring to receive  
29 a grant under this chapter shall apply to the department for a  
30 grant in the manner and on a form prescribed by the department.

31 Sec. 4. (a) The dual language immersion program fund is  
32 established to be used to provide grants under this chapter.

33 (b) The fund consists of:

- 34 (1) appropriations made by the general assembly; and
- 35 (2) gifts and donations to the fund.

36 (c) The fund shall be administered by the department.

37 (d) The expenses of administering the fund shall be paid from  
38 money in the fund.

39 (e) Money in the fund at the end of a state fiscal year does not  
40 revert to the state general fund.

41 (f) The treasurer of state shall invest the money in the fund not  
42 currently needed to meet the obligations of the fund in the same



manner as other public funds may be invested.

Sec. 5. The state board may establish rules necessary to administer this chapter.

**Chapter 15. System for Teacher and Student Advancement Grant Fund and Program**

Sec. 1. As used in this chapter, "fund" refers to the system for teacher and student advancement grant fund established by section 3 of this chapter.

Sec. 2. As used in this chapter, "program" refers to a teacher performance model program described in section 4 of this chapter.

Sec. 3. (a) The system for teacher and student advancement grant fund is established for the purpose of providing grants to school corporations and charter schools to implement programs described in section 4 of this chapter.

(b) The fund consists of the following:

(1) Appropriations made by the general assembly.

(2) Gifts, grants, devises, or bequests made to the commission for higher education to achieve the purposes of the fund.

(c) The state board, in consultation with the department, shall administer the fund.

(d) The expenses of administering the fund shall be paid from money in the fund.

(e) The treasurer of state shall invest the money in the fund not currently needed to meet the obligations of the fund in the same manner as other public funds may be invested. Interest that accrues from these investments shall be deposited in the fund.

(f) Money in the fund at the end of a state fiscal year does not revert to the state general fund.

Sec. 4. (a) As used in this section, "literacy coach" has the meaning set forth in IC 20-20.5-20-4.

(b) A school corporation or charter school may receive a grant to implement the following:

(1) The System for Teacher and Student Advancement (TAP) teacher performance model program.

(2) The Opportunity Culture teacher performance model.

(3) A model teacher performance program approved by a national school employee organization.

(4) A teacher performance model program that includes the implementation of all the following elements:

(A) A comprehensive pay progression for teacher leaders based on demonstrated skill development, escalating levels of responsibility and duties, and demonstrated academic



- 1 leadership.
- 2 (B) A quality teacher assessment system that measures the
- 3 effectiveness of teachers' practice.
- 4 (C) A pay system that supports early career educators by
- 5 incentivizing the following:
- 6 (i) Mentoring and coaching.
- 7 (ii) Reducing teaching loads or providing release time for
- 8 teacher leaders to support professional learning.
- 9 (iii) Reviewing professional portfolios and student
- 10 performance.
- 11 (D) Eligibility for all teachers rated effective and highly
- 12 effective.
- 13 (E) Connection to high quality professional development,
- 14 including release time for teacher leaders providing
- 15 professional development and instructional coaching, that
- 16 provides teachers with the knowledge and skills needed to
- 17 advance student learning.
- 18 (F) A rigorous and transparent advancement criterion that
- 19 is locally developed and implemented with teacher
- 20 involvement.
- 21 (G) A pay system providing competitive base pay.
- 22 (H) Evidence of teacher support for the proposed teacher
- 23 leadership and pay system, including support from the
- 24 local school employee organization (if applicable).
- 25 (I) Plans for ongoing evaluation of the pay system.
- 26 (J) A sustainable pay system.
- 27 (K) A plan for how teacher leadership positions and
- 28 ongoing training for teacher leaders will improve student
- 29 achievement.
- 30 (5) A literacy coaching model program that includes and
- 31 implements the following elements:
- 32 (A) A system that supports literacy coaches by
- 33 incentivizing the following:
- 34 (i) Mentoring and training of literacy coaches.
- 35 (ii) Reducing literacy coaching loads or providing release
- 36 time for literacy coaches to support professional
- 37 learning.
- 38 (iii) Reviewing professional portfolios and student
- 39 performance.
- 40 (B) Connection to high quality professional development,
- 41 including release time for literacy coaches providing
- 42 professional development and instructional coaching, that



provides literacy coaches with the knowledge and skills needed to advance the learning of teachers, administrators, and students.

(c) To receive a grant, a:

(1) school corporation, in consultation with the school corporation's school employee organization; or

(2) charter school, in consultation with the charter school's school employee organization (if applicable);

shall apply for the grant in a manner prescribed by the department. The department shall establish eligibility requirements. However, the department may not award grants to more than thirty (30) school corporations or charter schools during any school year. When awarding grants under this chapter, the department shall select a geographically diverse set of school corporations and charter schools, including school corporations and charter schools located in urban, suburban, and rural areas.

(d) A school corporation or charter school that is awarded a grant under this chapter shall receive a grant for three (3) consecutive school years. The amount of the grant may not exceed the costs incurred by the school corporation or charter school to implement the program. A school corporation or charter school may receive a matching grant from a corporation, foundation, or any other entity in addition to a grant awarded under this chapter.

**Chapter 16. Next Level Computer Science Program**

**Sec. 1.** As used in this chapter, "eligible entity" means:

(1) a postsecondary educational institution; or

(2) any organization that provides a nationally recognized and high quality professional development training program in computer science education.

**Sec. 2.** As used in this chapter, "fund" refers to the next level computer science fund established by section 7 of this chapter.

**Sec. 3.** As used in this chapter, "postsecondary educational institution" refers to any state educational institution (as defined in IC 21-7-13-32) or private postsecondary educational institution that receives state or federal funds.

**Sec. 4.** As used in this chapter, "program" refers to the next level computer science grant program established by section 5 of this chapter.

**Sec. 5.** The next level computer science grant program is established to provide grants to:

(1) eligible entities to develop and implement high quality teacher professional development programs in computer



1 science; and

2 (2) state accredited schools to:

3 (A) provide teachers with high quality teacher professional  
4 development programs in computer science; and

5 (B) develop and implement sustainable computer science  
6 curricular programs.

7 Sec. 6. The department, in consultation with the governor's  
8 office, shall develop guidelines to award grants to eligible entities  
9 and state accredited schools. The guidelines developed by the  
10 department must include:

11 (1) the ability of an eligible entity to provide effective training  
12 for a teacher who does not have previous exposure to teaching  
13 computer science;

14 (2) the ability of an eligible entity to implement effective  
15 practices for providing professional development in computer  
16 science that include:

17 (A) the eligible entity's ability to provide a teacher with  
18 practical training in teaching computer science that is  
19 founded on evidence based research; and

20 (B) the eligible entity's ability to tailor the professional  
21 development program to the needs of the teacher and the  
22 students the teacher serves; and

23 (3) any other criteria the department considers relevant.

24 Sec. 7. The next level computer science fund is established. The  
25 department must use money in the fund to provide grants from the  
26 fund to:

27 (1) eligible entities to develop and implement high quality  
28 teacher professional development programs in computer  
29 science; and

30 (2) state accredited schools for the purposes described in  
31 section 5(2) of this chapter.

32 Sec. 8. (a) The fund consists of the following:

33 (1) Appropriations from the general assembly.

34 (2) Gifts to the fund.

35 (3) Grants, including grants from private entities.

36 (4) Other state funds that are transferred to the fund.

37 (b) The expenses of administering the fund shall be paid from  
38 money in the fund.

39 (c) The treasurer of state shall invest the money in the fund not  
40 currently needed to meet the obligations of the fund in the same  
41 manner as other public money may be invested. Interest that  
42 accrues from these investments shall be deposited into the fund.



(d) Money in the fund at the end of a state fiscal year does not revert to the state general fund.

Sec. 9. The department shall administer the program and fund.

Sec. 10. Notwithstanding any other law or policy to the contrary, the secretary of education shall enter into and maintain a contract for professional development services with an organization that provides a nationally recognized training program for professional development in computer science education from early learning through postsecondary education.

Sec. 11. An eligible entity or state accredited school may apply to the department to receive a grant from the fund on a form provided by the department.

Sec. 12. The department may adopt rules under IC 4-22-2 to implement this chapter.

#### Chapter 17. Robotics Competition Program

Sec. 1. As used in this chapter, "allowable expenses" means:

- (1) payment of a stipend for a robotics team mentor;
- (2) fees, kits, and supplies required to:
  - (A) establish or maintain a robotics team; or
  - (B) participate in a robotics competition; and
- (3) event registrations, materials, transportation costs, travel costs, and other expenses associated with a robotics competition.

Sec. 2. As used in this chapter, "eligible school" means a:

- (1) public school, including a charter school (as defined in IC 20-24-1-4);
- (2) state accredited nonpublic school; or
- (3) nonpublic school accredited by a national or regional accreditation agency that is recognized by the state board.

Sec. 3. As used in this chapter, "eligible team" means a robotics competition team consisting of:

- (1) students in kindergarten through grade 12 who are:
  - (A) enrolled in an eligible school; or
  - (B) on a community based robotics competition team; and
- (2) at least one (1) adult who is a team mentor and team coach.

Sec. 4. As used in this chapter, "fund" refers to the robotics competition program fund established by section 8 of this chapter.

Sec. 5. As used in this chapter, "program" refers to the robotics competition program established by section 7 of this chapter.

Sec. 6. As used in this chapter, "robotics competition" means a competition that:





(1) requires participating teams to design, construct, program, and operate robots; and

(2) is sponsored by a nonstock, nonprofit corporation, described under Section 501(c)(3) of the Internal Revenue Code and exempt from taxation under Section 501(a) of the Internal Revenue Code, that has as one (1) of its organizational purposes the goal of encouraging young people to develop an interest in science, technology, engineering, and mathematics (STEM).

Sec. 7. The robotics competition program is established to provide grants to eligible teams to expand opportunities to increase interest and improve skills in science, technology, engineering, and mathematics (STEM) through participation in competitive robotics programs that:

- (1) provide hands on learning experiences;
- (2) establish community partnerships to increase awareness of local workforce and postsecondary opportunities;
- (3) highlight career opportunities through adult mentors; and
- (4) prioritize a connection to manufacturing, machining, and fabrication skills for students in grades 9 through 12.

Sec. 8. The robotics competition program fund is established. The department shall use money in the fund to provide grants to eligible teams to develop and implement competitive robotics programs.

Sec. 9. (a) The fund consists of the following:

- (1) Appropriations from the general assembly.
- (2) Gifts to the fund.
- (3) Grants, including grants from private entities.
- (4) Other state funds that are transferred to the fund.

(b) The expenses of administering the fund shall be paid from money in the fund.

(c) The treasurer of state shall invest the money in the fund not currently needed to meet the obligations of the fund in the same manner as other public money may be invested. Interest that accrues from these investments shall be deposited into the fund.

(d) Money in the fund at the end of a state fiscal year does not revert to the state general fund.

Sec. 10. Subject to appropriation by the general assembly, the department shall administer the program and fund.

Sec. 11. (a) An eligible team may apply to the department to receive a grant from the fund on a form provided by the department.



(b) To receive a grant, an eligible team must show proof of the following in its application:

- (1) A partnership for the purposes of a robotics competition with at least one (1) sponsor, business entity, higher education institution, or technical school.
- (2) An adult robotics team mentor.
- (3) A spending plan.
- (4) A commitment to compete in a robotics competition.
- (5) For grades 9 through 12, a commitment to creating an original, iteratively designed robot.
- (6) A local in kind or cash match from other private or local funds in an amount equal to at least twenty-five percent (25%) of the amount of the awarded grant.

Sec. 12. (a) The department shall develop guidelines to award grants to eligible teams for allowable expenses. The guidelines developed by the department must include a maximum grant award allotment for each eligible team based on the:

- (1) level of programming;
- (2) level of competition; and
- (3) number of participants;

of various robotics competitions as determined by the department.

(b) The department shall award grants in a manner that maximizes the number of eligible teams that will be able to receive funds, with an emphasis on increasing the number of high school teams, and that expands the geographical distribution of eligible teams.

(c) The department shall award grants under this chapter for each school year not later than August 1 of the applicable school year.

Sec. 13. The department shall establish guidelines to accommodate the participation of students with disabilities on an eligible team or in a robotics competition.

Sec. 14. The department may adopt rules under IC 4-22-2 to implement this chapter.

Sec. 15. The program and any participation by a team mentor and team coach in the program is not subject to collective bargaining.

#### **Chapter 18. Connecting Students With Careers Fund**

Sec. 1. As used in this chapter, "career fair" means an event at which employers and labor organizations can meet with high school students to discuss future career opportunities.

Sec. 2. As used in this chapter, "fund" means the connecting



1 students with careers fund established by section 6 of this chapter.

2 Sec. 3. As used in this chapter, "intermediary" has the meaning  
3 set forth in IC 21-18-1-3.5.

4 Sec. 4. As used in this chapter, "labor organization" has the  
5 meaning set forth in IC 22-6-6-5.

6 Sec. 5. As used in this chapter, "school" means the following:

7 (1) A school maintained by a school corporation.

8 (2) A charter school.

9 Sec. 6. The connecting students with careers fund is established.  
10 The department must use money in the fund to provide grants to  
11 schools for the purpose of hosting career fairs in accordance with  
12 IC 20-30-5.6.

13 Sec. 7. (a) The fund consists of the following:

14 (1) Gifts to the fund.

15 (2) Grants, including grants from private entities.

16 (b) The expenses of administering the fund shall be paid from  
17 money in the fund.

18 (c) The treasurer of state shall invest the money in the fund not  
19 currently needed to meet the obligations of the fund in the same  
20 manner as other public money may be invested. Interest that  
21 accrues from these investments shall be deposited into the fund.

22 (d) Money in the fund at the end of a state fiscal year does not  
23 revert to the state general fund.

24 Sec. 8. The department shall develop guidelines to award grants  
25 to schools under section 6 of this chapter.

26 Sec. 9. The department may adopt rules under IC 4-22-2 to  
27 implement this chapter.

28 **Chapter 19. Teacher Higher Education and Industry**  
29 **Collaboration Grant Program and Fund**

30 Sec. 1. As used in this chapter, "approved postsecondary  
31 educational institution" has the meaning set forth in  
32 IC 21-7-13-6(a).

33 Sec. 2. As used in this chapter, "approved teacher education  
34 course or program" means a teacher education course or program  
35 that has been approved by the department under section 8 of this  
36 chapter.

37 Sec. 3. As used in this chapter, "eligible applicant" means any  
38 of the following:

39 (1) A school corporation.

40 (2) A public school, including a charter school.

41 (3) A state accredited nonpublic school.

42 (4) A teacher employed by a:



1 (A) school corporation; or

2 (B) school listed in subdivision (2) or (3).

3 Sec. 4. As used in this chapter, "fund" refers to the teacher  
4 higher education and industry collaboration grant program fund  
5 established by section 7 of this chapter.

6 Sec. 5. As used in this chapter, "program" refers to the teacher  
7 higher education and industry collaboration grant program  
8 established by section 6 of this chapter.

9 Sec. 6. (a) There is established a teacher higher education and  
10 industry collaboration grant program for the purpose of funding  
11 through grants teacher participation in approved teacher  
12 education courses or programs.

13 (b) The department shall administer the program.

14 Sec. 7. (a) The teacher higher education and industry  
15 collaboration grant program fund is established for the purposes  
16 of implementing the program described in section 6 of this chapter.

17 (b) The fund consists of the following:

18 (1) Appropriations by the general assembly.

19 (2) Interest deposited in the fund under subsection (e).

20 (c) The department shall administer the fund.

21 (d) The expenses of administering the fund shall be paid from  
22 money in the fund.

23 (e) The treasurer of state shall invest the money in the fund not  
24 currently needed to meet the obligations of the fund in the same  
25 manner as other public funds may be invested. Interest that  
26 accrues from these investments shall be deposited in the fund.

27 (f) Money in the fund at the end of a state fiscal year reverts to  
28 the state general fund.

29 Sec. 8. (a) The department, in consultation with the commission  
30 for higher education, shall approve teacher education courses or  
31 programs that meet the criteria established under subsection (b).

32 (b) The department may only approve a teacher education  
33 course or program under subsection (a) that:

34 (1) is designed to:

35 (A) engage teachers with approved postsecondary  
36 educational institutions and employers for the purpose of  
37 connecting daily classroom lessons with innovations in  
38 workplace practices and postsecondary education  
39 research; and

40 (B) improve a teacher's:

41 (i) content area knowledge; and

42 (ii) familiarity with the application of the content area in



- postsecondary education research and the workplace;  
 (2) is offered:  
 (A) by an approved postsecondary educational institution;  
 (B) by an employer; or  
 (C) jointly, by an approved postsecondary educational institution and employer; and  
 (3) meets any other requirements established by the department.

Sec. 9. (a) To be eligible for a grant under the program, an eligible applicant must do the following:

- (1) Apply to the department in the manner and on a form prescribed by the department.  
 (2) If the eligible applicant is a school corporation or school described in section 3(1) through 3(3) of this chapter, include in the eligible applicant's application the following:  
 (A) The number of teachers employed by the eligible applicant who intend to voluntarily participate in an approved teacher education course or program.  
 (B) The amount of funding that the eligible applicant is requesting for each teacher who intends to voluntarily participate in an approved teacher education course or program.  
 (C) The timeline by which teachers will complete the approved teacher education course or program.  
 (3) Agree to use the grant funds for teacher participation in an approved teacher education course or program.  
 (4) Meet any other requirements established by the department.

(b) Subject to available funding, the department may award a grant under this chapter to an eligible applicant that meets the requirements under subsection (a) in an amount that does not exceed:

- (1) the cost for one (1) or more teachers, as applicable, to enroll in and complete an approved teacher education course or program; plus  
 (2) a stipend for one (1) or more teachers described in subdivision (1) in an amount determined by the department.

Sec. 10. The successful completion of an approved teacher course or program may count towards professional growth experience points required to renew a practitioner license or an accomplished practitioner license, as determined by the department.



1       **Sec. 11.** The department shall establish and maintain an online  
 2 platform that allows teachers to access and share information  
 3 regarding connecting daily classroom lessons with innovations in  
 4 workplace practices and postsecondary education research.

5       **Sec. 12.** Not later than July 1 of each year, the department shall:

6           (1) collect and compile information concerning the program  
 7 under this chapter; and

8           (2) submit the report described in subdivision (1) to the  
 9 following:

10           (A) The governor.

11           (B) The legislative council, in an electronic format under  
 12 IC 5-14-6.

13       **Sec. 13.** The state board may adopt rules under IC 4-22-2  
 14 necessary to implement this chapter.

15       **Chapter 20. Science of Reading Grant**

16       **Sec. 1.** As used in this chapter, "charter school" has the meaning  
 17 set forth in IC 20-24-1-4.

18       **Sec. 2.** As used in this chapter, "elementary school" means a  
 19 public elementary school, including a charter school.

20       **Sec. 3.** As used in this chapter, "grant" refers to a grant  
 21 awarded under section 7 of this chapter.

22       **Sec. 4. (a)** This subsection applies before July 1, 2027. As used  
 23 in this chapter, "literacy coach" refers to an individual whose  
 24 primary responsibility is to provide literacy training and support  
 25 to administrators and teachers. This subsection expires July 1,  
 26 2027.

27       **(b)** This subsection applies after June 30, 2027. As used in this  
 28 chapter, "literacy coach" means an individual:

29           (1) whose primary responsibility is to provide literacy  
 30 training and support to administrators and teachers; and

31           (2) who has received the literacy endorsement described in  
 32 IC 20-28-5-19.7.

33       **Sec. 5.** A literacy coach shall prioritize the following:

34           (1) Modeling effective instructional strategies for teachers.

35           (2) Facilitating study groups.

36           (3) Training teachers in:

37               (A) data analysis; and

38               (B) using data to differentiate instruction.

39           (4) Coaching and mentoring colleagues.

40           (5) Working with teachers to ensure that evidence based  
 41 reading programs, which include:

42               (A) comprehensive core reading programs;



- (B) supplemental reading programs; and
- (C) comprehensive intervention reading programs;
- are implemented with fidelity.
- (6) Training teachers to diagnose and address a reading deficiency.
- (7) Working with teachers in applying evidence based reading strategies in other content areas, including:
  - (A) prioritizing time spent on those teachers;
  - (B) activities and roles that will have the greatest impact on student achievement; and
  - (C) prioritizing coaching and mentoring in classrooms.
- (8) Helping to increase instructional density to meet the needs of all students.
- (9) Working with students through:
  - (A) whole and small group instruction; or
  - (B) tutoring;
 in the context of modeling and coaching in or outside of a teacher's classroom.

**Sec. 6. Money allocated for grants under this chapter must be used for the following:**

- (1) Placing literacy coaches in elementary schools for the purposes of training and supporting teachers and administrators in order to improve instruction related to the science of reading.
- (2) Training teachers and school principals in instructional practices aligned with the science of reading.
- (3) Increasing instructional time, including summer literacy programs or high-dosage tutoring, for students who have been identified as struggling readers based on a diagnostic screening authorized by the department under IC 20-35.5-2-2.
- (4) Elementary schools and school corporations purchasing curricular materials that:
  - (A) align with science of reading; and
  - (B) receive approval by the department.
- (5) Covering costs for teachers to obtain a literacy endorsement described in IC 20-28-5-19.7.

**Sec. 7. (a) Subject to section 8 of this chapter, the department may award a grant under this chapter to a school corporation or charter school that does the following:**

- (1) Applies for a grant on a form provided by the department.
- (2) Submits a detailed description of a plan that:
  - (A) must include:



(i) placing literacy coaches in elementary schools for the purposes of training and supporting teachers and administrators in order to improve instruction related to the science of reading; and

(ii) training teachers and school principals in instructional practices aligned with the science of reading; and

(B) may include, if the school corporation or charter school is requesting grant funds for the purpose described in section 6(3) or 6(4) of this chapter the following, as applicable:

(i) Increasing instructional time, including summer literacy programs or high-dosage tutoring, for students who have been identified as struggling readers based on a diagnostic screening authorized by the department under IC 20-35.5-2-2.

(ii) Elementary schools and school corporations purchasing curricular materials that align with the science of reading and receive approval by the department.

(3) Submits the following information:

(A) Evidence supporting the school corporation's or charter school's plan under subdivision (2).

(B) The number of elementary school teachers and literacy coaches employed by the school corporation or charter school.

(C) Any other pertinent information required by the department.

(b) Any instruction under a plan that includes increasing instructional time as described in subsection (a)(2)(B)(i) must align with the science of reading.

Sec. 8. Upon review of applications received under section 7 of this chapter, the department may award grants to school corporations and charter schools subject to available money and in accordance with the following priorities:

(1) To the extent possible, to achieve geographic balance throughout Indiana and to include urban, suburban, and rural school corporations.

(2) To address a documented need for literacy coaches, additional science of reading training, or compliance with IC 20-26-12-24.5.

(3) To provide targeted support for Indiana students





1 experiencing the greatest reading challenges.

2 **Sec. 9. The department:**

3 (1) may adopt rules under IC 4-22-2 to implement this  
4 chapter; and

5 (2) shall adopt rules under IC 4-22-2 regarding the following:

6 (A) Distribution of award amounts under this chapter.

7 (B) Prioritizing grants for the purposes described in  
8 section 6(1) and 6(2) of this chapter.

9 **Chapter 21. Indiana Teacher Recruitment Program**

10 **Sec. 1.** As used in this chapter, "program" refers to the Indiana  
11 teacher recruitment program established by section 2 of this  
12 chapter.

13 **Sec. 2. (a)** The Indiana teacher recruitment program is  
14 established. The purpose of the program is to provide grants to  
15 training and recruitment programs for teachers in critical shortage  
16 areas, as determined by the department, based on data contained  
17 in the educator supply and demand marketplace maintained on the  
18 department's website.

19 (b) The department shall administer the program.

20 **Sec. 3.** The department shall do the following:

21 (1) Create an application and approval process for training  
22 and recruitment programs.

23 (2) Determine guidelines for awarding grants under the  
24 program.

25 **Sec. 4.** This chapter expires June 30, 2027.

26 **Chapter 22. Centralized School Facilities Pilot Program and**  
27 **Local Boards**

28 **Sec. 1.** As used in this chapter, "local board" refers to a:

29 (1) local centralized school facilities board established under  
30 section 6(a) of this chapter; or

31 (2) if applicable, local centralized school facilities and  
32 transportation board established under section 6(e) of this  
33 chapter.

34 **Sec. 2.** As used in this chapter, "pilot program" means the  
35 centralized school facilities pilot program established by section 4  
36 of this chapter.

37 **Sec. 3.** As used in this chapter, "school" means a:

38 (1) charter school; or

39 (2) nonpublic school with at least one (1) employee.

40 **Sec. 4. (a)** The centralized school facilities pilot program is  
41 established to provide innovative approaches concerning the use,  
42 operation, and management of school facilities to promote:



1           (1) enhanced learning environments;  
 2           (2) unique learning opportunities; and  
 3           (3) improved student academic and health outcomes;  
 4 in accordance with the plan submitted to the general assembly by  
 5 the secretary of education under IC 20-19-3-32 (before its repeal).

6           (b) The pilot program is established for a three (3) year period  
 7 consisting of the 2026-2027, 2027-2028, and 2028-2029 school  
 8 years.

9           Sec. 5. (a) A school corporation or school, in partnership with  
 10 other school corporations, schools, or both other school  
 11 corporations and schools, may apply to the department to  
 12 participate in the pilot program.

13           (b) The department:

14               (1) may approve not more than a total of three (3)  
 15 applications under this section to participate in the pilot  
 16 program; and

17               (2) shall establish the application process and criteria to  
 18 participate in the pilot program.

19           (c) The criteria established under subsection (b)(2) must require  
 20 that school corporations and schools include information  
 21 concerning the geographic boundaries of the area to which the  
 22 application to participate in the pilot program applies.

23           Sec. 6. (a) Except as provided under subsection (e), not later  
 24 than October 31, 2025, a local centralized school facilities board is  
 25 established for participating school corporations and schools.

26           (b) Each local board must be independent from any school  
 27 corporation and school.

28           (c) The local board consists of seven (7) members who:

29               (1) are proportionately appointed as either representatives of  
 30 participating school corporations, charter schools, or  
 31 nonpublic schools described in section 3(2) of this chapter  
 32 based on:

33                   (A) the total pupil enrollment of the participating school  
 34 corporations;

35                   (B) the total pupil enrollment of participating charter  
 36 schools; and

37                   (C) the total pupil enrollment of participating nonpublic  
 38 schools;

39               that are partnering under the pilot program; and

40               (2) are members of the:

41                   (A) governing body of a participating school corporation;

42                   (B) charter school board of a participating charter school;



1 or

2 (C) equivalent of a governing body for a participating  
3 nonpublic school;

4 described in subdivision (1).

5 (d) Each local board must collaborate with individuals or  
6 entities that have expertise in the following:

7 (1) Facility management, construction, or real estate.

8 (2) Public finance or public debt issuance.

9 (3) Demographic analysis and urban planning.

10 (4) Organizational effectiveness, operations management, and  
11 implementing best practices.

12 (5) Government contracts.

13 (6) Budget development and oversight.

14 (e) If a school corporation or school, in partnership with other  
15 school corporations, schools, or both other school corporations and  
16 schools, receives approval to participate in the:

17 (1) pilot program; and

18 (2) student transportation pilot program under IC 20-20.5-23;  
19 the school corporation or schools may elect to establish, not later  
20 than October 31, 2025, one (1) local centralized school facilities and  
21 transportation board consisting of the members described in  
22 subsection (c) that has the powers and duties and is subject to the  
23 requirements of a local centralized school facilities board under  
24 this chapter and local student transportation board under  
25 IC 20-20.5-23.

26 Sec. 7. Notwithstanding any other state law or rule, each local  
27 board shall, during the pilot program, provide oversight and  
28 management of school facilities with a focus on best use and  
29 upkeep of assets funded by taxpayers.

30 Sec. 8. (a) Each local board shall create and implement a pilot  
31 program plan that includes measures to:

32 (1) determine the:

33 (A) term lengths of the members; and

34 (B) member replacement processes;

35 for the local board;

36 (2) conduct school facility assessments for all applicable  
37 school facilities;

38 (3) establish a process for the transfer to and receipt of funds,  
39 as applicable, by the local board from the participating school  
40 corporations and schools;

41 (4) accept and use donations, gifts, or bequests for the  
42 purposes of this chapter;



- (5) improve the health and safety of students and teachers;
- (6) allow for additional flexibility and creativity in terms of what is considered a school facility, including considerations surrounding colocation with other schools, governmental entities, or community organizations;
- (7) enter into revenue sharing agreements and asset use agreements for all school facilities within the geographic boundaries described in the application under section 5(c) of this chapter for the three (3) year period of the pilot program;
- (8) address any existing excess capacity in school facilities;
- (9) inspire opportunities for partnership with other governmental entities or local nonprofit organizations to transform school facilities into broader community assets for residents;
- (10) implement best practices in facilities management and operations;
- (11) track qualitative and quantitative data to gauge the success of the pilot program;
- (12) collect and report data in a manner prescribed by the department regarding school facilities included in the pilot program; and
- (13) implement a maintenance plan and contract with vendors, as needed, for the duration of the pilot program.

(b) Not later than July 1, 2028, each local board shall develop and submit to the department an implementation plan that includes the following:

- (1) Whether at the conclusion of the pilot program the:
  - (A) participating school corporations and schools, as applicable, elect to continue operating with a local board; and
  - (B) local board established under section 6 of this chapter should be maintained or a new local board should be established.
- (2) If a new local board should be established, the following components:
  - (A) The appointment of members to the new local board, including the appointing authority for the members.
  - (B) The term lengths of the members.
  - (C) The member replacement process.
- (3) A process to ensure that the powers and duties under this chapter are maintained by the local board or transferred to the new local board after completion of the pilot program.



(4) The transfer of all assets and related funding regarding school facilities to the local board or new local board.

(5) The development and implementation of a long term asset management and sustainability plan.

**Sec. 9.** Notwithstanding any other state law or rule, beginning with the 2026-2027 school year, each local board established under section 6 of this chapter:

(1) shall exercise the full powers and duties provided under the pilot program plan created under section 8(a) of this chapter; and

(2) shall make recommendations regarding property tax levies approved by the governing bodies of the applicable participating school corporations.

**Sec. 10.** Each local board may contract with outside individuals and entities to create and implement the pilot program plan described in section 8(a) of this chapter.

**Sec. 11.** Subject to any agreement entered into by a school corporation or school, a school corporation or school may at any time opt out of participating in the pilot program if the school corporation or school provides notice to all school corporations and schools that the school corporation or school partnered with under this chapter at least one (1) year before the school corporation or school intends to terminate the partnership and its participation under this chapter.

**Sec. 12.** Not later than November 1, 2027, the department of local government finance, in consultation with the department, shall do the following:

(1) Prepare a report that includes recommendations regarding legislation and procedures to transfer the duties and powers of a participating school corporation to a local board or new local board as described in section 8(b) of this chapter.

(2) Submit the report to the legislative council in an electronic format under IC 5-14-6.

**Sec. 13.** Not later than November 1, 2028, the department shall do the following:

(1) Prepare a report that includes the following:

(A) A summary regarding the:

(i) school corporations and schools participating in the pilot program;

(ii) implementation of the pilot program by each local board;



(iii) results and outcomes regarding the pilot program;  
and  
(iv) implementation plans submitted by the local boards  
under section 8(b) of this chapter.

(B) Any recommendations regarding:

(i) legislation or procedures to further carry out the  
purposes of this chapter and an implementation plan  
submitted under section 8(b) of this chapter; and  
(ii) whether to extend the pilot program to additional  
applicants.

(C) A plan to adopt best practices from the pilot program  
statewide.

(2) Submit the report to the legislative council in an electronic  
format under IC 5-14-6.

Sec. 14. The department shall waive any state law or rule  
requirement necessary to exempt participating school corporations  
and schools from requirements for purposes of participation in the  
pilot program under this chapter.

Sec. 15. This chapter shall be liberally construed to effect the  
purposes of this chapter.

Sec. 16. Except as otherwise specifically provided by law, to the  
extent the provisions of this chapter are inconsistent with the  
provisions of any other general, special, or local law, the provisions  
of this chapter are controlling, and compliance with this chapter  
shall be treated as compliance with the conflicting law.

#### Chapter 23. Student Transportation Pilot Program and Local Boards

Sec. 1. As used in this chapter, "local board" refers to a:

(1) local student transportation board established under  
section 6(a) of this chapter; or  
(2) if applicable, local centralized school facilities and  
transportation board established under section 6(e) of this  
chapter.

Sec. 2. As used in this chapter, "pilot program" refers to the  
student transportation pilot program established by section 4 of  
this chapter.

Sec. 3. As used in this chapter, "school" means a:

(1) charter school; or  
(2) nonpublic school with at least one (1) employee.

Sec. 4. (a) The student transportation pilot program is  
established to provide transportation to all students attending:

(1) school corporations;



1           (2) charter schools; and  
 2           (3) nonpublic schools with at least one (1) employee;  
 3 within the geographic boundaries described in the application  
 4 under section 5(c) of this chapter.

5           (b) The pilot program is established for a three (3) year period  
 6 consisting of the 2026-2027, 2027-2028, and 2028-2029 school  
 7 years.

8           Sec. 5. (a) A school corporation or school, in partnership with  
 9 other school corporations, schools, or both school corporations and  
 10 schools, may apply to the department to participate in the pilot  
 11 program.

12           (b) The department:

13               (1) may approve not more than a total of three (3)  
 14 applications under this section to participate in the pilot  
 15 program; and

16               (2) shall establish the application process and criteria to  
 17 participate in the pilot program.

18           (c) The criteria established under subsection (b)(2) must require  
 19 that school corporations and schools include information  
 20 concerning the geographic boundaries of the area to which the  
 21 application to participate in the pilot program applies.

22           Sec. 6. (a) Except as provided under subsection (e), not later  
 23 than October 31, 2025, a local student transportation board is  
 24 established for participating school corporations and schools.

25           (b) Each local board must be independent from any school  
 26 corporation and school.

27           (c) The local board consists of seven (7) members who:

28               (1) are proportionately appointed as either representatives of  
 29 participating school corporations, charter schools, or  
 30 nonpublic schools described in section 3(2) of this chapter  
 31 based on:

32                   (A) the total pupil enrollment of the participating school  
 33 corporations;

34                   (B) the total pupil enrollment of participating charter  
 35 schools; and

36                   (C) the total pupil enrollment of participating nonpublic  
 37 schools;

38           that are partnering under the pilot program; and

39           (2) are members of the:

40               (A) governing body of a participating school corporation;

41               (B) charter school board of a participating charter school;

42           or



- 1 (C) equivalent of a governing body for a participating
- 2 nonpublic school;
- 3 described in subdivision (1).
- 4 (d) Each local board must collaborate with individuals or
- 5 entities that have expertise in the following:
- 6 (1) Transportation logistics, particularly involving movement
- 7 of passengers.
- 8 (2) Finance and business.
- 9 (3) Organizational effectiveness, operations management, and
- 10 implementing best practices.
- 11 (4) Government contracts.
- 12 (5) Budget development and oversight.
- 13 (e) If a school corporation or school, in partnership with other
- 14 school corporations, schools, or both other school corporations and
- 15 schools, receives approval to participate in the:
- 16 (1) pilot program; and
- 17 (2) centralized school facilities pilot program under
- 18 IC 20-20.5-22;
- 19 the school corporation or schools may elect to establish, not later
- 20 than October 31, 2025, one (1) local centralized school facilities and
- 21 transportation board that has the powers and duties and is subject
- 22 to the requirements of a local centralized school facilities board
- 23 under IC 20-20.5-22 and local student transportation board under
- 24 this chapter.
- 25 Sec. 7. Notwithstanding any other state law or rule, each local
- 26 board shall be responsible for the oversight and management of the
- 27 transportation of students described in section 4 of this chapter in
- 28 a safe and efficient manner in accordance with the plan submitted
- 29 to the general assembly by the secretary of education under
- 30 IC 20-19-3-33 (before its repeal).
- 31 Sec. 8. (a) Each local board shall create and implement a pilot
- 32 program plan that includes measures to:
- 33 (1) determine the:
- 34 (A) term lengths of the members; and
- 35 (B) member replacement processes;
- 36 for the local board;
- 37 (2) allow for additional flexibility and creativity to
- 38 accommodate student needs throughout the school day,
- 39 including transportation:
- 40 (A) to and from school;
- 41 (B) for before and after school opportunities;
- 42 (C) for work based learning experiences;





- 1 (D) for extracurricular activities; and
- 2 (E) for specialized educational opportunities;
- 3 (3) improve safety and efficiency for students;
- 4 (4) increase collaboration between school corporations,
- 5 schools, governmental entities, and community organizations;
- 6 (5) track qualitative and quantitative data to gauge the
- 7 success of the pilot program;
- 8 (6) collect and report data in a manner prescribed by the
- 9 department regarding the pilot program;
- 10 (7) provide uninterrupted transportation services for
- 11 homeless students or students in foster care as provided by
- 12 the McKinney-Vento Homeless Education Assistance
- 13 Improvements Act (42 U.S.C. 11431 et seq.);
- 14 (8) inspire opportunities for public-private partnerships or
- 15 partnerships with other governmental entities or local
- 16 nonprofit organizations;
- 17 (9) enter into revenue sharing agreements and asset use
- 18 agreements with participating school corporations and
- 19 schools for the duration of the three (3) year period of the
- 20 pilot program;
- 21 (10) establish a process for the transfer to and receipt of
- 22 funds, as applicable, by the local board from the participating
- 23 school corporations and schools;
- 24 (11) accept and use donations, gifts, or bequests for the
- 25 purposes of this chapter; and
- 26 (12) implement purchasing and maintenance plans and
- 27 contracts with vendors, as needed, for the three (3) year
- 28 period of the pilot program.
- 29 (b) Not later than July 1, 2028, each local board shall develop
- 30 and submit to the department an implementation plan that
- 31 includes the following:
- 32 (1) Whether at the conclusion of the pilot program the:
- 33 (A) participating school corporations and schools, as
- 34 applicable, elect to continue operating with a local board;
- 35 and
- 36 (B) local board established under section 6 of this chapter
- 37 should be maintained or a new local board should be
- 38 established.
- 39 (2) If a new local board should be established, the following
- 40 components:
- 41 (A) The appointment of members to the new local board,
- 42 including the appointing authority for the members.



(B) The term lengths of the members.

(C) The member replacement process.

(3) A process to ensure that the powers and duties under this chapter are maintained by the local board or transferred to the new local board after completion of the pilot program.

(4) The transfer of all assets and related funding regarding school transportation to the local board or new local board.

(5) The development and implementation of a long term asset management and sustainability plan.

Sec. 9. Notwithstanding any other state law or rule, beginning with the 2026-2027 school year, each local board established under section 6 of this chapter:

(1) shall exercise the full powers and duties provided under the pilot program plan created under section 8(a) of this chapter; and

(2) shall make recommendations regarding property tax levies approved by the governing bodies of the applicable participating school corporations.

Sec. 10. Each local board may contract with outside entities to create and implement the pilot program plan described in section 8(a) of this chapter.

Sec. 11. Subject to any agreement entered into by a school corporation or school, a school corporation or school may at any time opt out of participating in the pilot program if the school corporation or school provides notice to all school corporations and schools that the school corporation or school partnered with under this chapter at least one (1) year before the school corporation or school intends to terminate the partnership and its participation under this chapter.

Sec. 12. Not later than November 1, 2027, the department of local government finance, in consultation with the department, shall do the following:

(1) Prepare a report that includes recommendations regarding legislation and procedures to transfer the duties and powers of a participating school corporation to a local board or new local board as described in section 8(b) of this chapter.

(2) Submit the report to the legislative council in an electronic format under IC 5-14-6.

Sec. 13. Not later than November 1, 2028, the department shall do the following:

(1) Prepare a report that includes the following:



**(A) A summary regarding the:**

- (i) school corporations and schools participating in the pilot program;**
- (ii) implementation of the pilot program by each local board;**
- (iii) results and outcomes regarding the pilot program; and**
- (iv) implementation plans submitted by the local boards under section 8(b) of this chapter.**

**(B) Any recommendations regarding:**

- (i) legislation or procedures to further carry out the purposes of this chapter and an implementation plan submitted under section 8(b) of this chapter; and**
- (ii) whether to extend the pilot program to additional applicants.**

**(C) A plan to adopt best practices from the pilot program statewide.**

**(2) Submit the report to the legislative council in an electronic format under IC 5-14-6.**

**Sec. 14. The department shall waive any state law or rule requirement necessary to exempt participating school corporations and schools from requirements for purposes of participation in the pilot program under this chapter.**

**Sec. 15. This chapter shall be liberally construed to effect the purposes of this chapter.**

**Sec. 16. Except as otherwise specifically provided by law, to the extent the provisions of this chapter are inconsistent with the provisions of any other general, special, or local law, the provisions of this chapter are controlling, and compliance with this chapter shall be treated as compliance with the conflicting law.**

**Chapter 24. Mastery Based Education Pilot Program**

**Sec. 1. As used in this chapter, "mastery" means evidenced attainment of predefined, rigorous learning objectives that:**

- (1) are transferable; and**
- (2) qualify a student for advancement to subsequent educational levels or competencies.**

**Sec. 2. As used in this chapter, "mastery based education" means an innovative, learner centered approach to teaching and learning that focuses on the mastery of specific skills or knowledge areas rather than the amount of time spent in a classroom.**

**Sec. 3. As used in this chapter, "pilot program" refers to the mastery based education pilot program established by section 4 of**



1 this chapter.

2 Sec. 4. (a) The mastery based education pilot program is  
3 established to support a school corporation or charter school that  
4 is selected by the department under subsection (b) in implementing  
5 mastery based education.

6 (b) The department:

7 (1) shall administer the pilot program; and

8 (2) may select school corporations and charter schools that  
9 meet the requirements under this chapter to participate in the  
10 pilot program.

11 Sec. 5. (a) To apply for participation in the pilot program, a  
12 school corporation or charter school shall do the following:

13 (1) Apply on a form and in a manner established by the  
14 department.

15 (2) Develop and submit a plan to the department that includes  
16 the following:

17 (A) A description of the following:

18 (i) The educational programming the school corporation  
19 or charter school intends to offer, including specific goals  
20 and the measurable student outcomes to be obtained by  
21 the school corporation or charter school.

22 (ii) How mastery based student performance will be  
23 used, measured, evaluated, and reported by the school  
24 corporation or charter school.

25 (iii) Any business, postsecondary educational institutions,  
26 or community partners with which the school  
27 corporation or charter school intends to work.

28 (B) If the school corporation or charter school intends to  
29 suspend any requirements under IC 20-28 as listed in  
30 section 8(a)(2) of this chapter, the school corporation's or  
31 charter school's criteria and goals for teacher quality,  
32 training, and compensation.

33 (b) The department shall do the following:

34 (1) Subject to subdivision (2), approve or deny an application  
35 and plan submitted by a school corporation or charter school  
36 under this section.

37 (2) Approve an application and plan only if the department  
38 determines that the plan:

39 (A) will promote innovative educational approaches to  
40 student learning; and

41 (B) is likely to improve student performance and outcomes.

42 Sec. 6. If a school corporation or charter school participates in



the pilot program, the school corporation or charter school shall post the school corporation's or charter school's plan approved by the department under section 5 of this chapter on the school corporation's or charter school's website.

Sec. 7. (a) The department may make reasonable requests for information from a school corporation or charter school participating in the pilot program for the purpose of assessing the effectiveness of the plan.

(b) A school corporation or charter school shall respond to a request for information under subsection (a) in a form, manner, and frequency determined by the department.

Sec. 8. (a) Any of the following may be suspended for a school corporation or charter school in accordance with the school corporation's or charter school's plan approved under section 5 of this chapter:

(1) Any statute or rule that may be suspended under IC 20-26.5-2-3.

(2) Any provision under the following:

(A) IC 20-28-4.

(B) IC 20-28-11.5.

(C) IC 20-30-2-2.

(D) IC 20-30-4.

(3) Subject to subsection (b), any provisions under the statewide assessment program under IC 20-32-5.1.

(b) A statewide assessment program test requirement may not be suspended under subsection (a)(3) unless a school corporation or charter school agrees to administer an assessment that can be used to compare the performance of students who attend the school corporation or charter school with the performance of students who take the statewide summative assessment.

(c) After a school corporation or charter school has participated for at least three (3) years in the pilot program, the department may:

(1) revoke the suspension of any statute or rule under subsection (a) for the school corporation or charter school; or

(2) terminate the participation of the school corporation or charter school in the pilot program;

if the department determines that the school corporation or charter school has not met the specific goals and the measurable student outcomes in the school corporation's or charter school's plan approved under section 5 of this chapter.

Sec. 9. This chapter expires June 30, 2035.



1 SECTION 38. IC 20-24-13-3, AS AMENDED BY P.L.244-2017,  
 2 SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 3 JULY 1, 2026]: Sec. 3. (a) An annual grant program is established to  
 4 provide funding to a school for the following:

5 (1) Capital improvements for the school, including the renovation  
 6 or expansion of a facility, or for debt or lease payments owed on  
 7 a facility, including advances from the common school fund under  
 8 IC 20-49-9.

9 (2) The purposes for which the school corporation's operations  
 10 fund may be used by a school corporation under IC 20-40-18.

11 (3) The purposes for which a technology grant from the Senator  
 12 David C. Ford educational technology fund may be used by a  
 13 school corporation under ~~IC 20-20-13-6~~ **IC 20-20.5-6-3**.

14 (b) The program shall be administered by the state board.

15 (c) The state board shall establish a written application and  
 16 procedure for providing grants under this chapter to a school described  
 17 in section 5 of this chapter.

18 SECTION 39. IC 20-24.2-4-3, AS AMENDED BY P.L.214-2025,  
 19 SECTION 67, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 20 JULY 1, 2026]: Sec. 3. (a) Except as specifically provided in this  
 21 article and section 4 of this chapter, the following provisions of this  
 22 title and a rule or guideline adopted by the state board under one (1) of  
 23 the following provisions of this title do not apply to a qualified district  
 24 or qualified high school:

25 (1) Provisions that do not apply to school corporations in general.

26 (2) ~~IC 20-20~~ **IC 20-20.5** (programs administered by the state),  
 27 except for ~~IC 20-20-1~~ **IC 20-20.5-1** (educational service centers).

28 (3) IC 20-28 (school teachers), except for IC 20-28-3-4 (teacher  
 29 continuing education), IC 20-28-4-8 (hiring of transition to  
 30 teaching participants; restrictions), IC 20-28-4-11 (transition to  
 31 teaching participants; school corporation or subject area;  
 32 transition to teaching permit), IC 20-28-5-8 (conviction of certain  
 33 felonies or misdemeanors; notice and hearing; permanent  
 34 revocation of license; data base of school employees who have  
 35 been reported), IC 20-28-6 (teacher contracts), IC 20-28-7.5  
 36 (cancellation of teacher contracts), IC 20-28-8 (contracts with  
 37 school administrators), IC 20-28-9 (teacher salary and related  
 38 payments), IC 20-28-10 (conditions of employment), and  
 39 IC 20-28-11.5 (staff performance evaluations).

40 (4) IC 20-30 (curriculum), except for IC 20-30-3-2 and  
 41 IC 20-30-3-4 (patriotic commemorative observances),  
 42 IC 20-30-5-13 (human sexuality instructional requirements), and



1 IC 20-30-5-19 (personal financial responsibility instruction).  
 2 (5) IC 20-32 (student standards, assessments, and performance),  
 3 except for IC 20-32-4 (graduation requirements), IC 20-32-5  
 4 (Indiana statewide testing for educational progress for a school  
 5 year ending before July 1, 2018), IC 20-32-5.1 (statewide  
 6 assessment program for a school year beginning after June 30,  
 7 2018), and IC 20-32-8.5 (reading improvement and remediation  
 8 plans).  
 9 (6) IC 20-37 (career and technical education).

10 (b) Notwithstanding any other law, a school corporation may not  
 11 receive a decrease in state funding based upon the school corporation's  
 12 status as a qualified district or the status of a high school within the  
 13 school corporation as a qualified high school, or because of the  
 14 implementation of a waiver of a statute or rule that is allowed to be  
 15 waived by a qualified district or qualified high school.

16 SECTION 40. IC 20-24.2-4-4, AS AMENDED BY P.L.214-2025,  
 17 SECTION 68, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 18 JULY 1, 2026]: Sec. 4. The following provisions of this title and rules  
 19 and guidelines adopted under the following provisions of this title  
 20 apply to a qualified district or qualified high school:

21 ~~IC 20-20-1~~ **IC 20-20.5-1** (educational service centers).  
 22 IC 20-23 (organization of school corporations).  
 23 IC 20-26 (school corporation general administrative provisions).  
 24 IC 20-27 (school transportation).  
 25 IC 20-28-3-4 (teacher continuing education).  
 26 IC 20-28-4-8 (hiring of transition to teaching participants;  
 27 restrictions).  
 28 IC 20-28-4-11 (transition to teaching participants; school  
 29 corporation or subject area; transition to teaching permit).  
 30 IC 20-28-5-8 (conviction of certain felonies or misdemeanors;  
 31 notice and hearing; permanent revocation of license; data base of  
 32 school employees who have been reported).  
 33 IC 20-28-6 (teacher contracts).  
 34 IC 20-28-7.5 (cancellation of teacher contracts).  
 35 IC 20-28-8 (contracts with school administrators).  
 36 IC 20-28-9 (teacher salary and related payments).  
 37 IC 20-28-10 (conditions of employment).  
 38 IC 20-28-11.5 (staff performance evaluations).  
 39 IC 20-29 (collective bargaining for teachers).  
 40 IC 20-30-3-2 and IC 20-30-3-4 (patriotic commemorative  
 41 observances).  
 42 IC 20-30-5-13 (human sexuality instructional requirements).



1 IC 20-30-5-19 (personal financial responsibility instruction).

2 **IC 20-30-18 (middle school advanced math course automatic**  
3 **enrollment).**

4 IC 20-31 (accountability for school performance and  
5 improvement).

6 IC 20-32-4, IC 20-32-5 (for a school year beginning before July  
7 1, 2018), IC 20-32-5.1 (assessment), or any other statute, rule, or  
8 guideline related to standardized assessments.

9 IC 20-32-8.5 (reading improvement and remediation plans).

10 IC 20-33 (students: general provisions).

11 IC 20-34-3 (health and safety measures).

12 IC 20-35 (special education).

13 IC 20-35.5 (dyslexia screening and intervention).

14 IC 20-36 (high ability students).

15 IC 20-39 (accounting and financial reporting procedures).

16 IC 20-40 (government funds and accounts).

17 IC 20-41 (extracurricular funds and accounts).

18 IC 20-42.5 (allocation of expenditures to student instruction and  
19 learning).

20 IC 20-43 (state tuition support).

21 IC 20-44 (property tax levies).

22 IC 20-46 (levies other than general fund levies).

23 IC 20-47 (related entities; holding companies; lease agreements).

24 IC 20-48 (borrowing and bonds).

25 IC 20-49 (state management of common school funds; state  
26 advances and loans).

27 IC 20-50 (homeless children and foster care children).

28 SECTION 41. IC 20-24.2-4-5 IS REPEALED [EFFECTIVE JULY  
29 1, 2026]. Sec. 5: (a) ~~A qualified district may display the words "Indiana~~  
30 ~~Performance Qualified School District" on the qualified district's~~  
31 ~~correspondence, Internet web site, and any other communications~~  
32 ~~representing the qualified district.~~

33 (b) ~~A qualified high school may display the words "Indiana~~  
34 ~~Performance Qualified High School" on the high school's~~  
35 ~~correspondence, Internet web site, and any other communications~~  
36 ~~representing the high school.~~

37 SECTION 42. IC 20-24.5-2-10, AS AMENDED BY P.L.205-2013,  
38 SECTION 237, IS AMENDED TO READ AS FOLLOWS  
39 [EFFECTIVE JULY 1, 2026]: Sec. 10. A laboratory school that:

40 (1) is operated without an agreement; and

41 (2) has an ADM in the fall count of a school year of not more than  
42 seven hundred fifty (750);





1 must be treated as a charter school for purposes of funding under  
2 ~~IC 20-20-33~~ **IC 20-20.5-9** and IC 20-43.

3 SECTION 43. IC 20-25-4-20, AS AMENDED BY P.L.155-2020,  
4 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
5 JULY 1, 2026]: Sec. 20. (a) The general school laws of Indiana and all  
6 laws and parts of laws applicable to the general system of common  
7 schools in school cities, so far as not inconsistent with this chapter and  
8 other provisions of this article, and unless made inapplicable by this  
9 article, are in full force and effect in a school city to which this chapter  
10 applies.

11 (b) ~~Notwithstanding IC 20-25-13,~~ Staff performance evaluation  
12 plans in a school city shall be developed and implemented as provided  
13 in IC 20-28-11.5-4.

14 SECTION 44. IC 20-25-9-3, AS ADDED BY P.L.1-2005,  
15 SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
16 JULY 1, 2026]: Sec. 3. The board shall use the student performance  
17 improvement levels established under IC 20-25-11 to:

- 18 (1) implement the board's plan;
- 19 (2) evaluate school performance; **and**
- 20 (3) publish annual reports. **and**
- 21 ~~(4) determine academic receivership under IC 20-25-15.~~

22 SECTION 45. IC 20-25-9-4 IS REPEALED [EFFECTIVE JULY 1,  
23 2026]. ~~Sec. 4. The board shall use student performance improvement~~  
24 ~~levels to determine whether to place a school in academic receivership~~  
25 ~~under IC 20-25-15.~~

26 SECTION 46. IC 20-25-13 IS REPEALED [EFFECTIVE JULY 1,  
27 2026]. (Staff Performance Evaluations).

28 SECTION 47. IC 20-25-15 IS REPEALED [EFFECTIVE JULY 1,  
29 2026]. (Academic Receivership).

30 SECTION 48. IC 20-26-4-3, AS AMENDED BY P.L.233-2015,  
31 SECTION 93, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
32 JULY 1, 2026]: Sec. 3. (a) Regular meetings must be held by each  
33 governing body at a time and place established by resolution of the  
34 board or may be incorporated in the rules provided in IC 20-26-5-4. A  
35 notice need not be given **to** a member for holding or taking any action  
36 at a regular meeting.

37 (b) If a meeting is held according to a procedure set forth by statute  
38 or rule and if publication of notice of the meeting is required, notice of  
39 the meeting is not required and need not be given **to** a member for  
40 holding or taking any action at the meeting contemplated by the notice.  
41 The meeting must be held at the time and place specified in the  
42 published notice.



(c) Special meetings of a governing body must be held on call by the governing body's president or by the superintendent of the school corporation. The call must be evidenced by a written notice specifying the date, time, and place of the meeting, delivered to each member personally or sent by mail or telegram so that each member has at least seventy-two (72) hours notice of the special meeting. Special meetings must be held at the regular meeting place of the board.

(d) All meetings of a governing body must be open to the public to the extent required by IC 5-14-1.5. The governing body shall comply with IC 5-14-1.5.

(e) If notice of a meeting is required and each member of a governing body has waived notice of the meeting, as provided in this subsection, notice of the meeting is not necessary. Waiver of notice of a meeting by a member consists of the following:

(1) The member's presence at the meeting.

(2) The member's execution of a written notice waiving the date, time, and place of the meeting, executed either before or after the meeting. If a waiver specifies that the waiver was executed before the meeting, third persons are entitled to rely on the statement.

(f) At a meeting of the governing body, a majority of the members constitutes a quorum. Action may not be taken unless a quorum is present. Except where a larger vote is required by statute or rule with respect to any matter, a majority of the members present may adopt a resolution or take any action.

(g) All meetings of the governing body for the conduct of business must be held within the school corporation, except as follows:

(1) Meetings may be held at the administrative offices of the school corporation if the offices are outside the geographic limits of the school corporation but are within a county where all or a part of the school corporation is located.

(2) Meetings may be held at a place where the statute or rule according to which a statutory meeting is held permits meeting outside the school corporation. ~~as may occur when the meeting is held jointly with another governing body.~~

**(3) Meetings held jointly with another governing body must be held within the boundaries of one (1) of the school corporations.**

(h) A governing body may hold up to two (2) training sessions each year outside the school corporation. The sessions may be conducted as executive sessions under IC 5-14-1.5.

SECTION 49. IC 20-26-5-4, AS AMENDED BY P.L.135-2025, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



JULY 1, 2026]: Sec. 4. (a) In carrying out the school purposes of a school corporation, the governing body acting on the school corporation's behalf has the following specific powers:

(1) In the name of the school corporation, to sue and be sued and to enter into contracts in matters permitted by applicable law. However, a governing body may not use funds received from the state to bring or join in an action against the state, unless the governing body is challenging an adverse decision by a state agency, board, or commission.

(2) To take charge of, manage, and conduct the educational affairs of the school corporation and to establish, locate, and provide the necessary schools, school libraries, other libraries where permitted by law, other buildings, facilities, property, and equipment.

(3) To appropriate from the school corporation's ~~general fund (before January 1, 2019) or the school corporation's operations fund (after December 31, 2018)~~ an amount, not to exceed the greater of three thousand dollars (\$3,000) per budget year or one dollar (\$1) per pupil, not to exceed twelve thousand five hundred dollars (\$12,500), based on the school corporation's ADM of the previous year (as defined in IC 20-43-1-7) to promote the best interests of the school corporation through:

(A) the purchase of meals, decorations, memorabilia, or awards;

(B) provision for expenses incurred in interviewing job applicants; or

(C) developing relations with other governmental units.

(4) To do the following:

(A) Acquire, construct, erect, maintain, hold, and contract for construction, erection, or maintenance of real estate, real estate improvements, or an interest in real estate or real estate improvements, as the governing body considers necessary for school purposes, including buildings, parts of buildings, additions to buildings, rooms, gymnasiums, auditoriums, playgrounds, playing and athletic fields, facilities for physical training, buildings for administrative, office, warehouse, repair activities, or housing school owned buses, landscaping, walks, drives, parking areas, roadways, easements and facilities for power, sewer, water, roadway, access, storm and surface water, drinking water, gas, electricity, other utilities and similar purposes, by purchase, either outright for cash (or under conditional sales or purchase money contracts providing



for a retention of a security interest by the seller until payment is made or by notes where the contract, security retention, or note is permitted by applicable law), by exchange, by gift, by devise, by eminent domain, by lease with or without option to purchase, or by lease under IC 20-47-2, IC 20-47-3, or IC 20-47-5.

(B) Repair, remodel, remove, or demolish, or to contract for the repair, remodeling, removal, or demolition of the real estate, real estate improvements, or interest in the real estate or real estate improvements, as the governing body considers necessary for school purposes.

(C) Provide for conservation measures through utility efficiency programs or under a guaranteed savings contract as described in IC 36-1-12.5.

(5) To acquire personal property or an interest in personal property as the governing body considers necessary for school purposes, including buses, motor vehicles, equipment, apparatus, appliances, books, furniture, and supplies, either by cash purchase or under conditional sales or purchase money contracts providing for a security interest by the seller until payment is made or by notes where the contract, security, retention, or note is permitted by applicable law, by gift, by devise, by loan, or by lease with or without option to purchase and to repair, remodel, remove, relocate, and demolish the personal property. All purchases and contracts specified under the powers authorized under subdivision (4) and this subdivision are subject solely to applicable law relating to purchases and contracting by municipal corporations in general and to the supervisory control of state agencies as provided in section 6 of this chapter.

(6) To sell or exchange real or personal property or interest in real or personal property that, in the opinion of the governing body, is not necessary for school purposes, in accordance with IC 20-26-7 and IC 20-26-7.1, to demolish or otherwise dispose of the property if, in the opinion of the governing body, the property is not necessary for school purposes and is worthless, and to pay the expenses for the demolition or disposition.

(7) Except as provided under subsections (c) and (d), to lease any school property for a rental that the governing body considers reasonable or to permit the free use of school property for:

(A) civic or public purposes; or

(B) the operation of a school age child care program for children who are at least five (5) years of age and less than



1           fifteen (15) years of age that operates before or after the school  
 2           day, or both, and during periods when school is not in session;  
 3           if the school property continues to be used primarily for  
 4           classroom instruction by the school corporation, is not subject to  
 5           closure under IC 20-26-7-47, and is not a covered school building  
 6           that must be made available for lease or purchase under  
 7           IC 20-26-7.1. Under this subdivision, the governing body may  
 8           enter into a lease or use agreement with a nonprofit corporation,  
 9           community service organization, or other governmental entity, if  
 10          the corporation, organization, or other governmental entity will  
 11          use the property to be leased for civic or public purposes or for a  
 12          school age child care program. However, if payment for the  
 13          property subject to a lease or use agreement is made from money  
 14          in the school corporation's debt service fund, all proceeds from  
 15          the lease or use agreement must be deposited in the school  
 16          corporation's debt service fund so long as payment for the  
 17          property has not been made. The governing body may, at the  
 18          governing body's option, use the procedure specified in  
 19          IC 36-1-11-10 in leasing property under this subdivision. If the  
 20          school property is not being used primarily for classroom  
 21          instruction or is subject to closure under IC 20-26-7-47, the  
 22          governing body must first comply with IC 20-26-7 and  
 23          IC 20-26-7.1 before leasing the school property under this  
 24          subdivision.

25       (8) To do the following:

26           (A) Employ, contract for, and discharge superintendents,  
 27           supervisors, principals, teachers, librarians, athletic coaches  
 28           (whether or not they are otherwise employed by the school  
 29           corporation and whether or not they are licensed under  
 30           IC 20-28-5), business managers, superintendents of buildings  
 31           and grounds, janitors, engineers, architects, physicians,  
 32           dentists, nurses, accountants, teacher aides performing  
 33           noninstructional duties, educational and other professional  
 34           consultants, data processing and computer service for school  
 35           purposes, including the making of schedules, the keeping and  
 36           analyzing of grades and other student data, the keeping and  
 37           preparing of warrants, payroll, and similar data where  
 38           approved by the state board of accounts as provided below,  
 39           and other personnel or services as the governing body  
 40           considers necessary for school purposes.

41           (B) Fix and pay the salaries and compensation of persons and  
 42           services described in this subdivision that are consistent with



- 1 IC 20-28-9-1.5.
- 2 (C) Classify persons or services described in this subdivision
- 3 and to adopt a compensation plan with a salary range that is
- 4 consistent with IC 20-28-9-1.5.
- 5 (D) Determine the number of the persons or the amount of the
- 6 services employed or contracted for as provided in this
- 7 subdivision.
- 8 (E) Determine the nature and extent of the duties of the
- 9 persons described in this subdivision.
- 10 The compensation, terms of employment, and discharge of
- 11 teachers are, however, subject to and governed by the laws
- 12 relating to employment, contracting, compensation, and discharge
- 13 of teachers. The compensation, terms of employment, and
- 14 discharge of bus drivers are subject to and governed by laws
- 15 relating to employment, contracting, compensation, and discharge
- 16 of bus drivers.
- 17 (9) Notwithstanding the appropriation limitation in subdivision
- 18 (3), when the governing body by resolution considers a trip by an
- 19 employee of the school corporation or by a member of the
- 20 governing body to be in the interest of the school corporation,
- 21 including attending meetings, conferences, or examining
- 22 equipment, buildings, and installation in other areas, to permit the
- 23 employee to be absent in connection with the trip without any loss
- 24 in pay and to reimburse the employee or the member the
- 25 employee's or member's reasonable lodging and meal expenses
- 26 and necessary transportation expenses. To pay teaching personnel
- 27 for time spent in sponsoring and working with school related trips
- 28 or activities.
- 29 (10) Subject to IC 20-27-13, to transport children to and from
- 30 school, when in the opinion of the governing body the
- 31 transportation is necessary, including considerations for the safety
- 32 of the children. The transportation must be otherwise in
- 33 accordance with applicable law.
- 34 (11) To provide a lunch program for a part or all of the students
- 35 attending the schools of the school corporation, including the
- 36 establishment of kitchens, kitchen facilities, kitchen equipment,
- 37 lunch rooms, the hiring of the necessary personnel to operate the
- 38 lunch program, and the purchase of material and supplies for the
- 39 lunch program, charging students for the operational costs of the
- 40 lunch program, fixing the price per meal or per food item. To
- 41 operate the lunch program as an extracurricular activity, subject
- 42 to the supervision of the governing body. To participate in a



surplus commodity or lunch aid program.

(12) To:

(A) purchase curricular materials and to furnish curricular materials without cost; and

(B) assess and collect a reasonable fee for lost or significantly damaged curricular materials.

(13) To accept students transferred from other school corporations and to transfer students to other school corporations in accordance with applicable law.

(14) To make budgets, to appropriate funds, and to disburse the money of the school corporation in accordance with applicable law. To borrow money against current tax collections and otherwise to borrow money, in accordance with IC 20-48-1.

(15) To purchase insurance or to establish and maintain a program of self-insurance relating to the liability of the school corporation or the school corporation's employees in connection with motor vehicles or property and for additional coverage to the extent permitted and in accordance with IC 34-13-3-20. To purchase additional insurance or to establish and maintain a program of self-insurance protecting the school corporation and members of the governing body, employees, contractors, or agents of the school corporation from liability, risk, accident, or loss related to school property, school contract, school or school related activity, including the purchase of insurance or the establishment and maintenance of a self-insurance program protecting persons described in this subdivision against false imprisonment, false arrest, libel, or slander for acts committed in the course of the persons' employment, protecting the school corporation for fire and extended coverage and other casualty risks to the extent of replacement cost, loss of use, and other insurable risks relating to property owned, leased, or held by the school corporation. In accordance with IC 20-26-17, to:

(A) participate in a state employee health plan under IC 5-10-8-6.7;

(B) purchase insurance; or

(C) establish and maintain a program of self-insurance; to benefit school corporation employees, including accident, sickness, health, or dental coverage, provided that a plan of self-insurance must include an aggregate stop-loss provision.

**(16) Enter into agreements with one (1) or more other school corporations for a cooperative program of self-insurance protecting the school corporations and members of the**



governing bodies, employees, contractors, or agents of the school corporations from liability, risk, accident, or loss related to school property, school contract, school or school related activity, including maintenance of a cooperative self-insurance program protecting persons described in this subdivision against false imprisonment, false arrest, libel, or slander for acts committed in the course of the persons' employment, protecting the school corporation for fire and extended coverage and other casualty risks to the extent of replacement cost, loss of use, and other insurable risks relating to property owned, leased, or held by the school corporations. This subdivision does not authorize a governing body to enter into agreements with one (1) or more school corporations for the provision of health insurance coverage.

~~(+6)~~ (17) To make all applications, to enter into all contracts, and to sign all documents necessary for the receipt of aid, money, or property from the state, the federal government, or from any other source.

~~(+7)~~ (18) To defend a member of the governing body or any employee of the school corporation in any suit arising out of the performance of the member's or employee's duties for or employment with, the school corporation, if the governing body by resolution determined that the action was taken in good faith. To save any member or employee harmless from any liability, cost, or damage in connection with the performance, including the payment of legal fees, except where the liability, cost, or damage is predicated on or arises out of the bad faith of the member or employee, or is a claim or judgment based on the member's or employee's malfeasance in office or employment.

~~(+8)~~ (19) To prepare, make, enforce, amend, or repeal rules, regulations, and procedures:

(A) for the government and management of the schools, property, facilities, and activities of the school corporation, the school corporation's agents, employees, and pupils and for the operation of the governing body; and

(B) that may be designated by an appropriate title such as "policy handbook", "bylaws", or "rules and regulations".

~~(+9)~~ (20) To ratify and approve any action taken by a member of the governing body, an officer of the governing body, or an employee of the school corporation after the action is taken, if the action could have been approved in advance, and in connection with the action to pay the expense or compensation permitted





under IC 20-26-1 through IC 20-26-5, IC 20-26-7, IC 20-26-12-1, IC 20-40-12, and IC 20-48-1 or any other law.

~~(20)~~ **(21)** To exercise any other power and make any expenditure in carrying out the governing body's general powers and purposes provided in this chapter or in carrying out the powers delineated in this section which is reasonable from a business or educational standpoint in carrying out school purposes of the school corporation, including the acquisition of property or the employment or contracting for services, even though the power or expenditure is not specifically set out in this chapter. The specific powers set out in this section do not limit the general grant of powers provided in this chapter except where a limitation is set out in IC 20-26-1 through IC 20-26-5, IC 20-26-7, IC 20-40-12, IC 20-40-18 (after December 31, 2018), and IC 20-48-1 by specific language or by reference to other law.

(b) A superintendent hired under subsection (a)(8):

(1) is not required to hold a teacher's license under IC 20-28-5; and

(2) is preferred to have obtained at least a master's degree from an accredited postsecondary institution.

(c) The governing body acting on the school corporation's behalf may renew a lease or memorandum of understanding described in IC 20-26-7.1-3(d) with a nonprofit organization as described in IC 20-26-7.1-3(d).

(d) The governing body acting on the school corporation's behalf may lease any school property for a rental to one (1) or both of the following:

(1) The Indiana School for the Blind and Visually Impaired established by IC 20-21-2-1.

(2) The Indiana School for the Deaf established by IC 20-22-2-1.

This subsection expires June 30, 2030.

SECTION 50. IC 20-26-5-10, AS AMENDED BY P.L.9-2024, SECTION 389, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) This section applies to a:

(1) school corporation;

(2) charter school; or

(3) nonpublic school that employs one (1) or more employees.

(b) A school corporation, a charter school, and a nonpublic school shall adopt a policy concerning criminal history information for individuals who:

(1) apply for:

(A) employment with the school corporation, charter school,



- 1 or nonpublic school; or
- 2 (B) employment with an entity with which the school
- 3 corporation, charter school, or nonpublic school contracts for
- 4 services;
- 5 (2) seek to enter into a contract to provide services to the school
- 6 corporation, charter school, or nonpublic school; or
- 7 (3) are employed by an entity that seeks to enter into a contract to
- 8 provide services to the school corporation, charter school, or
- 9 nonpublic school;
- 10 if the individuals are likely to have direct, ongoing contact with
- 11 children within the scope of the individuals' employment.
- 12 (c) Except as provided in subsections (f) and (g), a school
- 13 corporation, a charter school, and a nonpublic school shall administer
- 14 a policy adopted under this section uniformly for all individuals to
- 15 whom the policy applies.
- 16 (d) A policy adopted under this section must require that the school
- 17 corporation, charter school, or nonpublic school conduct an expanded
- 18 criminal history check concerning each applicant for employment who
- 19 is likely to have direct, ongoing contact with children within the scope
- 20 of the individual's employment before or not later than thirty (30) days
- 21 after the start date of the applicant's employment by the school
- 22 corporation, charter school, or nonpublic school. If a vendor providing
- 23 an expanded criminal history check offers more than one (1) type of
- 24 expanded criminal history check, the policy shall require that the
- 25 school corporation, charter school, or nonpublic school evaluate all
- 26 available types of criminal history checks and determine whether a
- 27 more comprehensive expanded criminal history check would better
- 28 protect the students.
- 29 (e) A policy adopted under this section:
- 30 (1) must require that the school corporation, charter school, or
- 31 nonpublic school conduct an Indiana expanded child protection
- 32 index check; and
- 33 (2) may require that the school corporation, charter school, or
- 34 nonpublic school conduct an expanded child protection index
- 35 check in other states;
- 36 concerning each applicant for employment who is likely to have direct,
- 37 ongoing contact with children within the scope of the individual's
- 38 employment. An Indiana expanded child protection index check must
- 39 be completed before or not later than sixty (60) days after the start date
- 40 of the applicant's employment by the school corporation, charter
- 41 school, or nonpublic school.
- 42 (f) A policy adopted under this section must state that the school



1 corporation, charter school, or nonpublic school requires an expanded  
 2 criminal history check concerning an employee of the school  
 3 corporation, charter school, or nonpublic school who is likely to have  
 4 direct, ongoing contact with children within the scope of the  
 5 employee's employment. The checks must be conducted every five (5)  
 6 years. A school corporation, charter school, or nonpublic school may  
 7 adopt a policy to require an employee to obtain an expanded child  
 8 protection index check every five (5) years.

9 (g) In implementing subsection (f), and subject to subsection (j), a  
 10 school corporation, charter school, or nonpublic school may update the  
 11 checks required under subsection (f) for employees who are employed  
 12 by the school corporation, charter school, or nonpublic school as of  
 13 July 1, 2017, over a period not to exceed five (5) years by annually  
 14 conducting updated expanded criminal history checks and expanded  
 15 child protection index checks for at least one-fifth (1/5) of the number  
 16 of employees who are employed by the school corporation, charter  
 17 school, or nonpublic school on July 1, 2017.

18 (h) An applicant or employee may be required to provide a written  
 19 consent for the school corporation, charter school, or nonpublic school  
 20 to request an expanded criminal history check and an expanded child  
 21 protection index check concerning the individual before the  
 22 individual's employment by the school corporation, charter school, or  
 23 nonpublic school. The school corporation, charter school, or nonpublic  
 24 school may require the individual to provide a set of fingerprints and  
 25 pay any fees required for the expanded criminal history check and  
 26 expanded child protection index check. Each applicant for employment  
 27 or employee described in subsection (f) may be required:

28 (1) at the time the individual applies or updates an expanded  
 29 criminal history check under subsection (f); or

30 (2) while an expanded criminal history check or expanded child  
 31 protection index check is being conducted;

32 to answer questions concerning the individual's expanded criminal  
 33 history check and expanded child protection index check. The failure  
 34 to answer honestly questions asked under this subsection is grounds for  
 35 termination of the employee's employment.

36 (i) An applicant is responsible for all costs associated with obtaining  
 37 the expanded criminal history check and expanded child protection  
 38 index check unless the school corporation, charter school, or nonpublic  
 39 school agrees to pay the costs. A school corporation, charter school, or  
 40 nonpublic school may agree to pay the costs associated with obtaining  
 41 an expanded criminal history background check for an employee. An  
 42 employee of a school corporation, charter school, or nonpublic school



1 may not be required to pay the costs of an expanded child protection  
2 index check.

3 (j) An applicant or employee may not be required by a school  
4 corporation, charter school, or nonpublic school to obtain an expanded  
5 criminal history check more than one (1) time during a five (5) year  
6 period. However, a school corporation, charter school, or nonpublic  
7 school may obtain an expanded criminal history check or an expanded  
8 child protection index check at any time if the school corporation,  
9 charter school, or nonpublic school has reason to believe that the  
10 applicant or employee:

11 (1) is the subject of a substantiated report of child abuse or  
12 neglect; or

13 (2) has been charged with or convicted of a crime listed in section  
14 11.2(b) of this chapter or ~~IC 20-28-5-8(c)~~ **IC 20-28-5-8(b)**.

15 (k) As used in this subsection, "offense requiring license revocation"  
16 means an offense listed in ~~IC 20-28-5-8(c)~~ **IC 20-28-5-8(b)**. A policy  
17 adopted under this section must prohibit a school corporation, charter  
18 school, or nonpublic school from:

19 (1) hiring;

20 (2) continuing the employment of;

21 (3) contracting with; or

22 (4) continuing to contract with;

23 a person who has been convicted of an offense requiring license  
24 revocation, unless the conviction has been reversed, vacated, or set  
25 aside on appeal.

26 (l) Information obtained under this section must be used in  
27 accordance with law.

28 SECTION 51. IC 20-26-5-18 IS REPEALED [EFFECTIVE JULY  
29 1, 2026]. ~~Sec. 18: For purposes of section 1 of this chapter and under~~  
30 ~~the powers of section 4(a)(20) of this chapter, the governing body of~~  
31 ~~any school corporation may join and associate with groups of other~~  
32 ~~school corporations within Indiana in regional school study councils to~~  
33 ~~examine common school problems and exchange educational~~  
34 ~~information of mutual benefit, and dues to the study councils shall be~~  
35 ~~paid by the school corporation from the operations fund.~~

36 SECTION 52. IC 20-26-5-19 IS REPEALED [EFFECTIVE JULY  
37 1, 2026]. ~~Sec. 19: A governing body under its powers to fix and pay the~~  
38 ~~salaries and compensation of employees of the school corporation and~~  
39 ~~to contract for services under section 4(a)(8) of this chapter may~~  
40 ~~distribute payroll based on contractual and compensation plan~~  
41 ~~commitments instead of payroll estimates approved in advance by the~~  
42 ~~governing body.~~



1 SECTION 53. IC 20-26-5-23 IS REPEALED [EFFECTIVE JULY  
2 1, 2026]. Sec. 23: Public school corporations may enter into agreements  
3 with postsecondary educational institutions to provide teaching  
4 experience for students of the institutions preparing for the educational  
5 profession and for the services of persons working jointly for the school  
6 corporation and an institution:

7 SECTION 54. IC 20-26-5-24 IS REPEALED [EFFECTIVE JULY  
8 1, 2026]. Sec. 24: (a) An agreement under section 23 of this chapter  
9 must set out the responsibilities and rights of the public school  
10 corporations; the institutions; and the students or persons who  
11 supervise the students and who are working jointly for a school  
12 corporation and an institution:

13 (b) An agreement must contain:

14 (1) a provision for the payment of an honorarium for consulting  
15 services by the postsecondary educational institution directly to  
16 the supervisor;

17 (2) a provision that, if the sum paid by the institution to the  
18 supervisor should ever be lawfully determined to be a wage rather  
19 than an honorarium by an instrumentality of the United States;  
20 then the postsecondary educational institution shall be considered  
21 under the agreement to be the supervisor's part-time employer;  
22 and

23 (3) a provision requiring a student to be supervised by a  
24 certificated employee:

25 (c) The provision required by subsection (b)(3) must be included in  
26 an agreement entered into or renewed under this chapter after June 30,  
27 2015. Public school corporations and postsecondary educational  
28 institutions shall revise agreements in effect on July 1, 2015, to include  
29 the provisions required by subsection (b):

30 SECTION 55. IC 20-26-5-29 IS REPEALED [EFFECTIVE JULY  
31 1, 2026]. Sec. 29: A school corporation may establish and maintain  
32 nursery schools from the same revenue in the same manner as other  
33 grades and departments in the common schools of the school  
34 corporation are provided for and may apply for and receive from any  
35 state or federal governmental agency any funds as may be made  
36 available through the agencies for that purpose:

37 SECTION 56. IC 20-26-5-30 IS REPEALED [EFFECTIVE JULY  
38 1, 2026]. Sec. 30: A school corporation may use funds under  
39 IC 36-12-15-4 for the aid, maintenance, and support of nursery schools  
40 conducted by an association incorporated to operate a nursery school:

41 SECTION 57. IC 20-26-5-32 IS REPEALED [EFFECTIVE JULY  
42 1, 2026]. Sec. 32: The department shall:



1           (1) create a list of best practices to reduce student discipline; and

2           (2) post the list on the department's website.

3           SECTION 58. IC 20-26-5-32.4 IS REPEALED [EFFECTIVE JULY  
4 1, 2026]. Sec. 32.4. The Department of Education shall create a  
5 document explaining aspects of autism including behaviors that  
6 students with autism may exhibit. Said document is to be distributed to  
7 school corporations for distribution to nonecertificated employees (as  
8 defined in IC 20-29-2-11).

9           SECTION 59. IC 20-26-5-33 IS REPEALED [EFFECTIVE JULY  
10 1, 2026]. Sec. 33. A school corporation may offer classes, instruction,  
11 or programs regarding the potential risks and consequences of creating  
12 and sharing sexually suggestive or explicit materials through cellular  
13 telephones, social networking web sites, computer networks, and other  
14 digital media.

15           SECTION 60. IC 20-26-5-36, AS ADDED BY P.L.213-2015,  
16 SECTION 167, IS AMENDED TO READ AS FOLLOWS  
17 [EFFECTIVE JULY 1, 2026]: Sec. 36. (a) Each school year, the  
18 governing body of a school corporation may spend an amount for  
19 remediation programs for students enrolled in kindergarten through  
20 grade 12 not to exceed one percent (1%) of the state tuition support that  
21 the school corporation receives for the school year.

22           (b) (a) A remediation program for any subset of students enrolled  
23 in kindergarten through grade 12 must be in writing and adopted at a  
24 public hearing of the governing body of the school corporation before  
25 the governing body may spend money for the remediation program.

26           (c) (b) After the governing body of a school corporation adopts a  
27 remediation program under subsection (b), (a), the school corporation  
28 shall promptly file the adopted plan with the department. The  
29 department shall review a plan for a remediation program adopted by  
30 the governing body of a school corporation and may comment on the  
31 plan.

32           SECTION 61. IC 20-26-5-40.5, AS AMENDED BY THE  
33 TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL  
34 ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
35 JULY 1, 2026]: Sec. 40.5. (a) Not later than January 1, 2022, Each  
36 school corporation and charter school shall adopt and implement an  
37 Internet use policy that:

38           (1) prohibits the sending, receiving, viewing, or downloading of  
39 materials that are harmful to minors (as described in  
40 IC 35-49-2-2) on computers and other technology related devices  
41 owned by the school corporation or charter school;

42           (2) provides for the use of hardware or installation of software on



computers and other technology related devices described in subdivision (1) to filter or block Internet access to materials that are harmful to minors; and

(3) establishes appropriate disciplinary measures to be taken against persons violating the policy established under this section.

(b) ~~Not later than January 1, 2022,~~ Each school corporation and charter school shall use hardware or install software on computers and other technology related devices described in subsection (a)(1) to filter or block Internet access to materials that are harmful to minors.

**(c) Except as provided in subsection (e), not later than January 1, 2027, each school corporation and charter school shall adopt and implement a policy that enables the parent of a student to:**

**(1) increase the strength of the filter described in subsection**

**(b);**

**(2) block access to websites or content accessible on a device described in subsection (a)(1); and**

**(3) limit the amount of time a device described in subsection (a)(1) may be used by the student;**

**while the student is not in school or engaged in virtual instruction or remote learning. A school to which this subsection applies must inform each parent of a student enrolled in the school of the policy described in this subsection.**

~~(c)~~ **(d)** Each school corporation and charter school shall post on the school corporation's or charter school's ~~Internet web site~~ website the Internet use policy established under subsection (a).

**(e) A school to which this section applies that, as of June 30, 2026, has a contract with a vendor that:**

**(1) provides for the implementation of the requirements of subsection (b); and**

**(2) cannot provide for the implementation of the requirements of subsection (c);**

**is exempt from the requirements of subsection (c) until the expiration or renewal of the contract. This subsection expires July 1, 2030.**

SECTION 62. IC 20-26-5-40.7, AS ADDED BY P.L.24-2024, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40.7. (a) As used in this section, "instructional time" has the meaning set forth in IC 20-30-2-1.

(b) As used in this section, "wireless communication device" means any portable wireless device that has the capability to provide voice, messaging, or other data communication between two (2) or more parties, including a:



- (1) cellular telephone;
- (2) tablet computer;
- (3) laptop computer; or
- (4) gaming device.

(c) Each school corporation and charter school shall adopt and implement a wireless communication device policy that:

- (1) except as provided in subdivisions (2) and (3) and subsection (d), prohibits a student from using a:

(A) wireless communication device during instructional time; **and**

(B) **school supplied wireless communication device for a noneducational purpose during the school day;**

- (2) authorizes a teacher to allow a student to use a wireless communication device for educational purposes during instructional time; and

- (3) permits a student to use a wireless communication device in the event of an emergency or to manage the student's health care.

(d) The policy adopted and implemented under subsection (c) may not prohibit a student from using a wireless communication device during instructional time if the use of the wireless communication device is included in the student's:

- (1) individualized education program; or
- (2) plan developed under Section 504 of the federal Rehabilitation Act of 1973, 29 U.S.C. 794.

(e) Each school corporation and charter school shall publish on its website the wireless communication device policy established under subsection (c).

SECTION 63. IC 20-26-5-41, AS AMENDED BY P.L.181-2025, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 41. The governing body of a school corporation **or the equivalent for a charter school** may enter into a public-private agreement for the construction or renovation of school buildings under IC 5-23.

SECTION 64. IC 20-26-5-42.1 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. ~~42.1~~: (a) ~~Not later than April 15 of each year, each school corporation and charter school shall report to the department the number of students who meet the following conditions during the student's expected graduation year (as defined in IC 20-26-13-4):~~

~~(1) The student was enrolled in the school corporation on the fall count day of ADM established under IC 20-43-4-3.~~

~~(2) The student successfully completed Indiana high school graduation requirements before the day in February fixed by the~~





1 state board for the spring count of students under IC 20-43-4-3.  
 2 (3) The student was not enrolled in the school corporation on the  
 3 day in February fixed by the state board for the spring count of  
 4 students under IC 20-43-4-3.

5 (b) In addition to the number provided under subsection (a); each  
 6 school corporation and charter school shall submit information  
 7 prescribed by the department that is necessary to verify the number  
 8 reported under subsection (a).

9 SECTION 65. IC 20-26-5-43 IS REPEALED [EFFECTIVE JULY  
 10 1, 2026]. Sec. 43. Each school corporation shall publish on the school  
 11 corporation's website the graduation rate for each high school in the  
 12 school corporation.

13 SECTION 66. IC 20-26-5-46, AS ADDED BY P.L.165-2025,  
 14 SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 15 JULY 1, 2026]: Sec. 46. (a) Not later than January 1, 2026, each school  
 16 corporation shall ensure at least one (1) employee in each school  
 17 building that is used for classroom instruction:

- 18 (1) has obtained nonviolent crisis intervention training; and
- 19 (2) is present in the school building during the school year while
- 20 school is in session.

21 (b) An employee described in subsection (a) shall be available:

- 22 (1) for de-escalation and to respond to instances where
- 23 de-escalation is needed; and
- 24 (2) to respond to any use of:

25 (A) a chemical restraint (as defined in IC 20-20-40-2);

26 **IC 20-20.5-13-2);**

27 (B) a mechanical restraint (as defined in IC 20-20-40-4);

28 **IC 20-20.5-13-4);**

29 (C) physical restraint (as defined in IC 20-20-40-5);

30 **IC 20-20.5-13-5);**

31 (D) seclusion (as defined in IC 20-20-40-9); **IC 20-20.5-13-9);**

32 or

33 (E) time-out (as defined in IC 20-20-40-10);

34 **IC 20-20.5-13-10).**

35 SECTION 67. IC 20-26-7-7, AS AMENDED BY P.L.233-2015,  
 36 SECTION 109, IS AMENDED TO READ AS FOLLOWS  
 37 [EFFECTIVE JULY 1, 2026]: Sec. 7. If a ~~common~~ school corporation  
 38 has acquired or acquires any personal property or real estate by gift,  
 39 devise, or bequest concerning which the donor or testator, at the time  
 40 of making the gift, bequest, or devise, does not include conditions or  
 41 directions concerning the gift, bequest, or devise inconsistent with this  
 42 section, the principal of the gifts, devises, and bequests is inviolate, but



the interest, rents, incomes, issues, and profits thereof may be expended by the school corporation.

SECTION 68. IC 20-26-7-13, AS ADDED BY P.L.1-2005, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. If:

(1) the trustees of school corporations of a city or town believe;  
or

(2) the township trustee of a township believes;  
it is necessary to purchase any real estate on which to build a ~~schoolhouse~~, **school**, or for any other purpose connected with the real estate, the township trustee or school trustees, or a majority of them, may file a petition in the circuit court of the county asking for the appointment of appraisers to appraise and assess the value of the real estate.

SECTION 69. IC 20-26-7-26, AS ADDED BY P.L.1-2005, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 26. (a) A ~~common~~ school corporation:

(1) has the same powers; and  
(2) is subject to the same duties and liabilities;

concerning municipal assessments for the cost of public improvements affecting the common school corporation's real estate that private owners of real estate possess or to which private owners of real estate are subject.

(b) The real estate of a ~~common~~ school corporation is subject to liens for municipal assessments for public improvements if the real estate:

(1) had been owned by a private owner; and  
(2) would have been subject to a lien at the time the lien was attached.

(c) A penalty or an attorney's fee concerning a municipal assessment may not be collected from a school corporation.

SECTION 70. IC 20-26-7-36 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 36. ~~Before the governing body exercises power granted by any law to spend more than one million dollars (\$1,000,000) to build, repair, or alter school buildings that would be financed by:~~

(1) ~~entering into a lease agreement under IC 20-47-2-11 through IC 20-47-2-14 or IC 20-47-3-9 through IC 20-47-3-12;~~  
(2) ~~issuing bonds under IC 20-48-1; or~~  
(3) ~~any other available method;~~

~~the governing body may order the preparation and pay the costs of a feasibility study.~~

SECTION 71. IC 20-26-9-11 IS REPEALED [EFFECTIVE JULY



1, 2026]. Sec. 11: The secretary of education may, to the extent that funds are available and in cooperation with other appropriate agencies and organizations, do the following:

(1) Conduct studies of methods of improving and expending school lunch programs and promoting nutritional education in the schools.

(2) Conduct appraisals of the nutritive benefits of school lunch programs.

(3) Report the findings and recommendations periodically to the governor.

SECTION 72. IC 20-26-10-1, AS AMENDED BY P.L.234-2007, SECTION 104, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. As used in sections 2 through 9 of this chapter, "joint program" means the joint employment of personnel, joint purchase of supplies or other material, or joint purchase or lease of equipment, joint lease of land or buildings, or both, or joint construction of, remodeling of, or additions to school buildings, by two (2) or more school corporations, for a particular program or purpose. The term includes the joint investment of money under IC 5-13, data processing operations, career and technical education, psychological services, audiovisual services, guidance services, special education, and joint purchasing related to the acquisition of supplies or equipment that are not to be used jointly.

SECTION 73. IC 20-26-10-2, AS ADDED BY P.L.1-2005, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. As used in sections 3 through 9 of this chapter, "participating school corporations" means all school corporations engaging in a joint program.

SECTION 74. IC 20-26-10-5 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 5: (a) A teacher employed in a joint program who does not have existing years of service in one (1) of the member corporations of the joint program is considered to have been employed as a teacher by the governing body that is administering the joint program at the time that the teacher is first employed by the joint program.

(b) The teacher is entitled to the same rights and privileges as set forth in IC 20-28-6 through IC 20-28-10 as if employed as a regular teacher by the governing body that is administering the joint program at the time that the teacher is first employed by the joint program.

SECTION 75. IC 20-26-10-6 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 6: A teacher who has existing years of service in one (1) of the member school corporations of the joint program shall retain the



1 same rights and privileges as set forth in IC 20-28-6 through  
 2 IC 20-28-10 as if still employed as a teacher in the school corporation  
 3 in which the teacher has already acquired years of service.

4 SECTION 76. IC 20-26-10-7 IS REPEALED [EFFECTIVE JULY  
 5 1, 2026]. Sec. 7: (a) A teacher who loses the teacher's job in a joint  
 6 program because of:

- 7 (1) a reduction in services;
- 8 (2) a reorganization;
- 9 (3) the discontinuance of the joint program; or
- 10 (4) a withdrawal in whole or in part of a participating school from  
 11 the joint program;

12 shall be accorded the same rights that are provided under  
 13 IC 20-35-5-11 for teachers from special education cooperatives.

14 (b) A teacher who:

- 15 (1) is employed in a joint program under this chapter;
- 16 (2) loses the teacher's job in the joint program as described in  
 17 subsection (a); and
- 18 (3) subsequently is employed by a participating school  
 19 corporation as described in subsection (a);

20 retains the rights and privileges under IC 20-28-6 through IC 20-28-10  
 21 that the teacher held at the time the teacher lost the job in the joint  
 22 program as described in subdivision (2):

23 SECTION 77. IC 20-26-10-9 IS REPEALED [EFFECTIVE JULY  
 24 1, 2026]. Sec. 9: (a) The governing bodies of participating school  
 25 corporations may pay into a joint fund; to be known as the joint  
 26 investment fund; all or part of the money the governing bodies may  
 27 otherwise invest under IC 5-13-9. The fund shall be administered by  
 28 the governing body of the school corporation designated in the written  
 29 agreement under section 3 of this chapter. The designated governing  
 30 body shall receive, invest, maintain an account for, and disburse the  
 31 fund in the same manner as prescribed for other funds for the  
 32 governing body representing money available for investment and in  
 33 accordance with the written agreement:

34 (b) With respect to an investment described in IC 5-13-9, quotes  
 35 may be solicited and received orally, and the investment shall be made  
 36 with the designated depository that submitted the highest quote. If two  
 37 (2) or more designated depositories submit the highest quote, the  
 38 investment shall be made either:

- 39 (1) by dividing the investment among the depositories so as not  
 40 to lose the benefits of the quotes received; or
- 41 (2) if division is not practicable, by lot.

42 (c) The designated depository holding the investment shall remit to



the governing body administering the joint program any money due under the investment on the date the investment matures and in the manner directed by the governing body. A designated depository participating in an agreement for joint investment of money under IC 5-13 shall provide a detailed accounting of the transactions as required for audit purposes by the state board of accounts.

SECTION 78. IC 20-26-10-12 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 12: The purchasing of equipment, supplies, and materials shall be under the same laws and regulations as the purchasing would be if it were by a single school corporation. However, the bids shall be submitted by the superintendent of county schools to the participating corporations for approval.

SECTION 79. IC 20-26-11-10, AS AMENDED BY P.L.2-2007, SECTION 212, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) A student who is the child of a state employee who resides on state owned property; resides on state owned property; or is the child of a full-time employee of a state educational institution; who resides on property owned or operated by the state educational institution and used for educational; research; or public service programs is considered a transferred student if:

(1) the student attends a public school in the school corporation located nearest to the student's residence within the county in which all or a part of either the state owned property; or the property owned or operated by the state supported postsecondary institution; is located; or

(2) the state owned property is the Soldiers' and Sailors' Children's Home and the student attends a public school in the county in which the home is located or in an adjacent county.

Transfer tuition for a student transferred under this subsection shall be paid by the state. However, this subsection does not apply to children of state employees residing in student housing on property owned by any state educational institution.

(b) A foreign student visiting in Indiana under any student exchange program approved by the state board is considered a resident student with legal settlement in the school corporation where the foreign exchange student resides. The student may attend a school in the school corporation in which the family with whom the student is living resides. A school corporation that receives a foreign student may not be paid any transfer tuition. The school corporation shall include the foreign student in computations to determine the amount of state aid that it is entitled to receive.

SECTION 80. IC 20-26-11-15, AS ADDED BY P.L.1-2005,



SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
JULY 1, 2026]: Sec. 15. (a) The state board shall hear the following:

~~(1) All appeals from an order expelling a child under  
IC 20-33-8-17.~~

~~(2)~~ (1) All appeals provided in this chapter.

~~(3)~~ (2) All disputes on the following:

(A) Legal settlement.

(B) Right to transfer.

(C) Right to attend school in any school corporation.

(D) Amount of transfer tuition.

(E) Any other matter arising under this chapter.

The board shall hold a hearing on the timely written application of any  
interested party.

(b) The state board shall make its determination under the following  
procedure:

(1) A hearing shall be held on each matter presented.

(2) Each interested party, including where appropriate, the  
parents, the student, the transferor corporation, the transferee  
corporation, or the state, shall be given at least ten (10) days  
notice of the hearing by certified mail or by personal delivery.

(3) The date of giving the notice is the date of mailing or delivery.

(4) Any interested party may appear at the hearing in person or by  
counsel, present evidence, cross-examine witnesses, and present  
in writing or orally summary statements of position.

(5) A written or recorded transcript of the hearing shall be made.

(6) The hearing may be held by the state board or by a hearing  
examiner appointed by it who must be a state employee.

(7) The hearing, at the option of the state board or hearing  
examiner, may be held at any place in Indiana.

(8) The hearing examiner shall make written findings of fact and  
recommendations.

(9) The determination of the state board must be made on the  
basis of the record, summaries, and findings, but it is required to  
examine only those parts of the entire record as it considers  
necessary.

(c) The hearing and proceedings are not governed by IC 4-21.5.

(d) The determination of the state board is final and binding on the  
parties to the proceeding.

(e) A notice of the state board's determination shall be mailed to  
each party by certified mail. An action to contest the validity of the  
decision may not be instituted more than thirty (30) days after the  
mailing of the notice.



1 SECTION 81. IC 20-26-12-1, AS AMENDED BY P.L.214-2025,  
 2 SECTION 94, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 3 JULY 1, 2026]: Sec. 1. (a) Except as provided in subsection (b) but  
 4 notwithstanding any other law, each governing body of a school  
 5 corporation and each organizer of a charter school shall purchase from  
 6 a publisher, either individually or through a purchasing cooperative of  
 7 school corporations, as applicable, the curricular materials selected by  
 8 the proper local officials, and shall provide at no cost the curricular  
 9 materials to each student enrolled in the school corporation or charter  
 10 school. Curricular materials provided to a student under this section  
 11 remain the property of the governing body of the school corporation or  
 12 organizer of the charter school.

13 (b) This section does not prohibit a governing body of a school  
 14 corporation or an organizer of a charter school from assessing and  
 15 collecting a reasonable fee for lost or significantly damaged curricular  
 16 materials. ~~in accordance with rules established by the state board under~~  
 17 ~~subsection (d).~~ Fees collected under this subsection must be deposited  
 18 in the:

- 19 (1) education fund of the school corporation; or  
 20 (2) education fund of the charter school, or, if the charter school  
 21 does not have an education fund, the same fund into which state  
 22 tuition support is deposited for the charter school;  
 23 in which the student was enrolled at the time the fee was imposed.

24 (c) This section does not prohibit a governing body of a school  
 25 corporation or an organizer of a charter school from assessing and  
 26 collecting a reasonable fee for supplies and materials that:

- 27 (1) are not curricular materials; and  
 28 (2) supplement the instruction in a particular course of study.

29 ~~(d) The state board shall adopt rules under IC 4-22-2 to implement~~  
 30 ~~this section.~~

31 SECTION 82. IC 20-26-12-23, AS AMENDED BY P.L.244-2017,  
 32 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 33 JULY 1, 2026]: Sec. 23. A school corporation may:

- 34 (1) borrow money to buy ~~curricular materials;~~ **student issued**  
 35 **hardware, including laptop computers, that may be necessary**  
 36 **for accessing curriculum;** and  
 37 (2) issue notes, maturing serially in not more than four (4) years  
 38 and payable from its education fund, to secure the loan.

39 SECTION 83. IC 20-26-12-24, AS AMENDED BY P.L.243-2023,  
 40 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 41 JULY 1, 2026]: Sec. 24. (a) Except as provided in section 24.5 of this  
 42 chapter, the superintendent, after approval from the governing body,



1 shall establish procedures for adoption of curricular materials.

2 (b) Except as provided in section 24.5 of this chapter, the governing  
3 body, after reviewing any recommendations from the superintendent,  
4 shall adopt curricular materials for use in teaching each subject in the  
5 school corporation.

6 (c) A special committee of teachers and parents may also be  
7 appointed to review books, magazines, and audiovisual material used  
8 or proposed for use in the classroom to supplement state adopted  
9 curricular materials and may make recommendations to the  
10 superintendent and the governing body concerning the use of these  
11 materials.

12 (d) The governing body may, if the governing body considers it  
13 appropriate, retain curricular materials adopted under this section and  
14 authorize the purchase of supplemental materials to ensure continued  
15 alignment with academic standards adopted by the state board.

16 (e) The superintendent, advisory committee, and governing body  
17 may consider using the list of curricular materials provided by the  
18 department under ~~IC 20-20-5.5~~. **IC 20-20.5-4**.

19 (f) A governing body may not purchase curricular materials from a  
20 publisher unless the publisher agrees, in accordance with Sections  
21 612(a)(23)(A) and 674(e)(4) of the Individuals with Disabilities  
22 Education Improvement Act 2004 (20 U.S.C. 1400 et seq.), to provide  
23 or grant a license to the school corporation to allow for the  
24 reproduction of adopted curricular materials in:

- 25 (1) large type;
- 26 (2) Braille; and
- 27 (3) audio format.

28 SECTION 84. IC 20-26-14-8, AS AMENDED BY P.L.142-2020,  
29 SECTION 22, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
30 JULY 1, 2026]: Sec. 8. (a) The department shall notify the association  
31 of any license revocation or suspension involving a licensed teacher (as  
32 defined in IC 20-18-2-22) under IC 20-28-5-8 who:

33 (1) has:

- 34 (A) been convicted of an offense described in ~~IC 20-28-5-8(c)~~;  
35 **IC 20-28-5-8(b)**; or
- 36 (B) committed misconduct described in IC 20-28-5-7(1) or  
37 IC 20-28-5-7(2); and

38 (2) is also a coach accredited by the association.

39 (b) A school corporation, charter high school, or nonpublic high  
40 school with at least one (1) employee must report to the association, in  
41 a manner prescribed by the association, when a nonteaching or  
42 volunteer coach accredited by the association has been convicted of an





1 offense described in ~~IC 20-28-5-8(c)~~: **IC 20-28-5-8(b)**.

2 (c) The association shall develop a rule, as soon as practicable, to  
3 suspend or revoke the coaching accreditation of a teacher who has been  
4 reported to the association under subsection (a) for committing  
5 misconduct described in IC 20-28-5-7(1) or IC 20-28-5-7(2).

6 (d) The association shall revoke the accreditation of any coach who  
7 has been convicted of an offense described in IC 20-28-5-8. The  
8 association may, after holding a hearing on the matter, reinstate the  
9 accreditation of an individual whose accreditation has been revoked by  
10 the association if the individual's conviction has been reversed,  
11 vacated, or set aside on appeal.

12 (e) Nothing in this section shall be construed to prohibit the  
13 association from revoking a coaching accreditation or otherwise  
14 imposing any other form of discipline for misconduct not described in  
15 IC 20-28-5-7(1), IC 20-28-5-7(2), or IC 20-28-5-8.

16 (f) The:

17 (1) association or its employees;

18 (2) department or its employees; or

19 (3) school corporation, charter high school, or nonpublic high  
20 school with at least one (1) employee or its employees;

21 are immune from civil liability for any act done or omitted under this  
22 section or section 9 of this chapter unless the action constitutes gross  
23 negligence or willful or wanton misconduct.

24 SECTION 85. IC 20-26-17-5, AS AMENDED BY P.L.143-2016,  
25 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
26 JULY 1, 2026]: Sec. 5. (a) The following apply with respect to a school  
27 corporation's employee health coverage program:

28 (1) If the school corporation pays a commission, a bonus, an  
29 override, a contingency fee, or any other compensation to an  
30 insurance producer or other adviser in connection with the health  
31 coverage, the school corporation shall:

32 (A) specify the commission, bonus, override, contingency fee,  
33 or other compensation in the school corporation's annual  
34 budget fixed under IC 6-1.1-17; and

35 (B) make the information specified under clause (A) available  
36 to the public upon request.

37 ~~(2) The school corporation may allow:~~

38 ~~(A) members of the school corporation's governing body; or~~

39 ~~(B) an attorney of the school corporation's governing body;~~

40 ~~to be covered under the school corporation's employee health~~  
41 ~~coverage program.~~

42 ~~(3) (2) Except as provided in subsection (b), all individuals~~



insured under the school corporation's employee health coverage program:

(A) are eligible for the same coverage as all other individuals insured under the program; and

(B) to the extent allowed by federal law, may pay different amounts for the coverage.

(b) Except as provided in IC 5-10-8-6.7(b), a school corporation:

(1) may:

(A) make an assignment of wages upon the request of a school corporation employee in accordance with IC 22-2-6-2 to pay the school corporation employee's share of premiums for health insurance that is available to the school corporation employee as a result of a collective bargaining agreement:

(i) negotiated with the school corporation by a labor organization; and

(ii) under which the school corporation employee is covered; and

(B) pay the school corporation's share of premiums for the bargained health insurance; and

(2) is not required to make the bargained health insurance available to all school corporation employees.

SECTION 86. IC 20-26-18.2-4, AS AMENDED BY P.L.92-2020, SECTION 39, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. A school corporation, a state accredited nonpublic school, or a charter school shall report all instances of:

(1) seclusion (as defined in ~~IC 20-20-40-9~~; **IC 20-20.5-13-9**);

(2) chemical restraint (as defined in ~~IC 20-20-40-2~~; **IC 20-20.5-13-2**);

(3) mechanical restraint (as defined in ~~IC 20-20-40-4~~; **IC 20-20.5-13-4**); and

(4) physical restraint (as defined in ~~IC 20-20-40-5~~; **IC 20-20.5-13-5**);

involving a school resource officer in accordance with the restraint and seclusion plan adopted by the school corporation, state accredited nonpublic school, or charter school under ~~IC 20-20-40-14~~. **IC 20-20.5-13-16.**

SECTION 87. IC 20-26-20-5, AS AMENDED BY P.L.125-2022, SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) A public school shall conduct an expanded criminal history check of a representative of an organization before the representative may provide information to students at a public school as described in section 4 of this chapter. The representative may be



1 required to provide a written consent for the public school to conduct  
 2 the expanded criminal history check. The representative of the  
 3 organization is responsible for all costs associated with obtaining the  
 4 expanded criminal history check.

5 (b) A public school may refuse to allow a representative to provide  
 6 information as described in section 4 of this chapter if the  
 7 representative has been convicted of a felony or misdemeanor listed in  
 8 **IC 20-28-5-8(b) or IC 20-28-5-8(c).** ~~or IC 20-28-5-8(d).~~

9 SECTION 88. IC 20-27-5-2, AS AMENDED BY P.L.140-2012,  
 10 SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 11 JULY 1, 2026]: Sec. 2. (a) The governing body of a school corporation  
 12 may provide transportation for students to and from school.

13 (b) If the governing body of a school corporation:

14 (1) provides transportation; or

15 (2) contracts with an educational service center (as defined by  
 16 ~~IC 20-20-1-2~~) **IC 20-20.5-1-3**) to provide transportation;

17 no fee may be charged to a parent or student for transportation to and  
 18 from school. However, a fee may be charged for transportation to and  
 19 from an athletic, a social, or another school sponsored function.

20 SECTION 89. IC 20-27-6-1, AS AMENDED BY P.L.140-2012,  
 21 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 22 JULY 1, 2026]: Sec. 1. This chapter does not apply to:

23 (1) a nonpublic school or to a nonpublic school bus driver  
 24 contract executed for a nonpublic school; or

25 (2) an educational service center (as defined by ~~IC 20-20-1-2~~)  
 26 **IC 20-20.5-1-3**) or a school bus driver contract executed for an  
 27 educational service center.

28 SECTION 90. IC 20-27-12.1-2, AS AMENDED BY P.L.162-2024,  
 29 SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 30 JULY 1, 2026]: Sec. 2. As used in this chapter, "career and technical  
 31 education" refers to:

32 (1) an apprenticeship program (as defined in IC 20-43-8-0.3);

33 (2) a career and technical education (as defined in ~~IC 20-20-38-1~~)  
 34 **IC 20-20.5-10-1**) program;

35 (3) a modern youth apprenticeship (as defined in  
 36 IC 20-51.4-2-9.5); and

37 (4) a work based learning course (as defined in IC 20-43-8-0.7).

38 SECTION 91. IC 20-28-2-6, AS AMENDED BY P.L.93-2024,  
 39 SECTION 142, IS AMENDED TO READ AS FOLLOWS  
 40 [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) Subject to subsection (c) and  
 41 in addition to the powers and duties set forth in this article, the state  
 42 board may adopt rules under IC 4-22-2 to do the following:



- (1) Set standards for teacher licensing and for the administration of a professional licensing and certification process by the department.
- (2) Approve or disapprove teacher preparation programs.
- (3) Set fees to be charged in connection with teacher licensing.
- (4) Suspend, revoke, or reinstate teacher licenses.
- (5) Enter into agreements with other states to acquire reciprocal approval of teacher preparation programs.
- (6) Set standards for teacher licensing concerning new subjects of study.
- (7) Evaluate work experience and military service concerning postsecondary education and experience equivalency.
- (8) Perform any other action that
  - (A) relates to the improvement of instruction in the public schools through teacher education and professional development through continuing education. ~~and~~
  - (B) ~~attracts qualified candidates for teacher education from among the high school graduates of Indiana.~~
- (9) Set standards for endorsement of school psychologists as independent practice school psychologists under IC 20-28-12.
- (10) Before July 1, 2011, set standards for sign language interpreters who provide services to children with disabilities in an educational setting and an enforcement mechanism for the interpreter standards.

~~(b) Notwithstanding subsection (a)(1), an individual is entitled to one (1) year of occupational experience for purposes of obtaining an occupational specialist certificate under this article for each year the individual holds a license under IC 25-8-6.~~

~~(c)~~ **(b)** The state board shall adopt rules under IC 4-22-2 to establish procedures to expedite the issuance, renewal, or reinstatement under this article of a license or certificate of a:

**(1) person who; or**

**(2) person** whose spouse;

serves on active duty (as defined in IC 25-1-12-2) and is assigned to a duty station in Indiana.

SECTION 92. IC 20-28-2-11, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 11. The department shall ~~collaborate with nonprofit entities; the commission for higher education; and state educational institutions~~ to develop and implement initiatives focusing on the recruitment and retention of qualified educators from



1 underrepresented populations. The initiatives should include, but are  
2 not limited to, the following activities:

3 (1) Development of a recruitment plan for underrepresented and  
4 teacher shortage areas.

5 (2) Production of a web site as a communication tool that  
6 provides resource information and scholarship opportunities.

7 (3) Development of a research agenda and network support  
8 system at each state educational institution to remove barriers and  
9 address challenges faced by students of underrepresented  
10 populations in order to recruit, retain, and graduate these students.

11 SECTION 93. IC 20-28-3-2, AS AMENDED BY P.L.37-2015,  
12 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
13 JULY 1, 2026]: Sec. 2. (a) An accredited school or department may use  
14 the word "accredited" in advertising approved courses and the types of  
15 teachers the school or department is accredited to prepare. ~~An~~  
16 ~~accredited school or department may enter into the student teaching~~  
17 ~~agreements specified in IC 20-26-5-23.~~

18 (b) The department shall revoke the right to use the word  
19 "accredited" when an accredited school or department refuses to abide  
20 by the advisory board's rules.

21 SECTION 94. IC 20-28-5-8, AS AMENDED BY P.L.186-2025,  
22 SECTION 117, IS AMENDED TO READ AS FOLLOWS  
23 [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) This section applies when a  
24 prosecuting attorney knows that a licensed employee of a public school  
25 or a nonpublic school has been convicted of an offense listed in  
26 subsection (c): ~~(c)~~. **(b)**. The prosecuting attorney shall immediately give  
27 written notice of the conviction to the following:

28 (1) The secretary of education.

29 (2) Except as provided in subdivision (3), the superintendent of  
30 the school corporation that employs the licensed employee or the  
31 equivalent authority if a nonpublic school employs the licensed  
32 employee.

33 (3) The presiding officer of the governing body of the school  
34 corporation that employs the licensed employee, if the convicted  
35 licensed employee is the superintendent of the school corporation.

36 ~~(b) The superintendent of a school corporation, presiding officer of~~  
37 ~~the governing body, or equivalent authority for a nonpublic school shall~~  
38 ~~immediately notify the secretary of education when the individual~~  
39 ~~knows that a current or former licensed employee of the public school~~  
40 ~~or nonpublic school has been convicted of an offense listed in~~  
41 ~~subsection (c), or when the governing body or equivalent authority for~~  
42 ~~a nonpublic school takes any final action in relation to an employee~~



1 who engaged in any offense listed in subsection (c):

2 (e) (b) Except as provided in section 8.5 of this chapter, the  
3 department shall permanently revoke the license of a person who is  
4 known by the department to have been convicted of any of the  
5 following:

6 (1) The following felonies:

7 (A) A sex crime under IC 35-42-4 (including criminal deviate  
8 conduct (IC 35-42-4-2) (before its repeal)).

9 (B) Kidnapping (IC 35-42-3-2).

10 (C) Criminal confinement (IC 35-42-3-3).

11 (D) Incest (IC 35-46-1-3).

12 (E) Dealing in or manufacturing cocaine or a narcotic drug  
13 (IC 35-48-4-1).

14 (F) Dealing in methamphetamine (IC 35-48-4-1.1).

15 (G) Manufacturing methamphetamine (IC 35-48-4-1.2).

16 (H) Dealing in a schedule I, II, or III controlled substance  
17 (IC 35-48-4-2).

18 (I) Dealing in a schedule IV controlled substance  
19 (IC 35-48-4-3).

20 (J) Dealing in a schedule V controlled substance  
21 (IC 35-48-4-4).

22 (K) Dealing in a counterfeit substance (IC 35-48-4-5).

23 (L) Dealing in marijuana, hash oil, hashish, or salvia as a  
24 felony (IC 35-48-4-10).

25 (M) An offense under IC 35-48-4 involving the manufacture  
26 or sale of a synthetic drug (as defined in IC 35-31.5-2-321), a  
27 synthetic drug lookalike substance (as defined in  
28 IC 35-31.5-2-321.5 (before its repeal on July 1, 2019)) under  
29 IC 35-48-4-10.5 (before its repeal on July 1, 2019), a  
30 controlled substance analog (as defined in IC 35-48-1.1-8), or  
31 a substance represented to be a controlled substance (as  
32 described in IC 35-48-4-4.6).

33 (N) Homicide (IC 35-42-1).

34 (O) Voluntary manslaughter (IC 35-42-1-3).

35 (P) Reckless homicide (IC 35-42-1-5).

36 (Q) Battery as any of the following:

37 (i) A Class A felony (for a crime committed before July 1,  
38 2014) or a Level 2 felony (for a crime committed after June  
39 30, 2014).

40 (ii) A Class B felony (for a crime committed before July 1,  
41 2014) or a Level 3 felony (for a crime committed after June  
42 30, 2014).



- 1 (iii) A Class C felony (for a crime committed before July 1,  
2 2014) or a Level 5 felony (for a crime committed after June  
3 30, 2014).  
4 (R) Aggravated battery (IC 35-42-2-1.5).  
5 (S) Robbery (IC 35-42-5-1).  
6 (T) Carjacking (IC 35-42-5-2) (before its repeal).  
7 (U) Arson as a Class A felony or Class B felony (for a crime  
8 committed before July 1, 2014) or as a Level 2, Level 3, or  
9 Level 4 felony (for a crime committed after June 30, 2014)  
10 (IC 35-43-1-1(a)).  
11 (V) Burglary as a Class A felony or Class B felony (for a crime  
12 committed before July 1, 2014) or as a Level 1, Level 2, Level  
13 3, or Level 4 felony (for a crime committed after June 30,  
14 2014) (IC 35-43-2-1).  
15 (W) Human trafficking (IC 35-42-3.5).  
16 (X) Dealing in a controlled substance resulting in death  
17 (IC 35-42-1-1.5).  
18 (Y) Attempt under IC 35-41-5-1 to commit an offense listed in  
19 this subsection.  
20 (Z) Conspiracy under IC 35-41-5-2 to commit an offense listed  
21 in this subsection.  
22 (2) Public indecency (IC 35-45-4-1) committed:  
23 (A) after June 30, 2003; or  
24 (B) before July 1, 2003, if the person committed the offense  
25 by, in a public place:  
26 (i) engaging in sexual intercourse or other sexual conduct  
27 (as defined in IC 35-31.5-2-221.5);  
28 (ii) appearing in a state of nudity with the intent to arouse  
29 the sexual desires of the person or another person, or being  
30 at least eighteen (18) years of age, with the intent to be seen  
31 by a child less than sixteen (16) years of age; or  
32 (iii) fondling the person's genitals or the genitals of another  
33 person.  
34 ~~(d)~~ (c) The department shall permanently revoke the license of a  
35 person who is known by the department to have been convicted of a  
36 federal offense or an offense in another state that is comparable to a  
37 felony or misdemeanor listed in subsection ~~(c)~~ (b).  
38 ~~(e)~~ (d) A license may be suspended by the secretary of education as  
39 specified in IC 20-28-7.5.  
40 ~~(f)~~ (e) The department shall develop a data base of information on  
41 school corporation employees who have been reported to the  
42 department under this section.



1       ~~(g)~~ **(f)** Upon receipt of information from the office of judicial  
 2 administration in accordance with IC 33-24-6-3 concerning persons  
 3 convicted of an offense listed in subsection ~~(c)~~; **(b)**, the department  
 4 shall:

5       (1) cross check the information received from the office of  
 6 judicial administration with information concerning licensed  
 7 teachers (as defined in IC 20-18-2-22(b)) maintained by the  
 8 department; and

9       (2) if a licensed teacher (as defined in IC 20-18-2-22(b)) has been  
 10 convicted of an offense described in subsection ~~(c)~~; **(b)**, revoke  
 11 the licensed teacher's license.

12       SECTION 95. IC 20-28-5-13, AS AMENDED BY P.L.90-2011,  
 13 SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 14 JULY 1, 2026]: Sec. 13. (a) This section applies to an examination  
 15 required for teacher licensure under this chapter.

16       (b) If an individual does not demonstrate the level of proficiency  
 17 required to receive a license on all or a part of an examination, the  
 18 examination's scorer must provide the individual with the individual's  
 19 test scores, **including subscores for each area tested.**

20       SECTION 96. IC 20-28-5-27, AS AMENDED BY P.L.214-2025,  
 21 SECTION 118, IS AMENDED TO READ AS FOLLOWS  
 22 [EFFECTIVE JULY 1, 2026]: Sec. 27. (a) In an effort to fill a vacant  
 23 teaching position, offer a new program or class, or supplement a  
 24 program currently being offered, the governing body of a school  
 25 corporation or the equivalent authority for a charter school or  
 26 nonpublic school may issue an adjunct teacher permit to an individual  
 27 if the following minimum requirements are met:

28       (1) The individual has at least four (4) years of experience in the  
 29 content area in which the individual intends to teach.

30       (2) The school corporation, charter school, or nonpublic school  
 31 conducts an expanded criminal history check and expanded child  
 32 protection index check concerning the individual as required  
 33 under IC 20-26-5-10.

34       (3) The individual has not been convicted of a felony listed in  
 35 section ~~8(c)~~ **8(b)** of this chapter or described in section ~~8(d)~~ **8(c)**  
 36 of this chapter or the individual's conviction has been reversed,  
 37 vacated, or set aside on appeal.

38       However, the governing body or equivalent authority may establish  
 39 stricter requirements than the requirements prescribed by this  
 40 subsection.

41       (b) If a governing body of a school corporation or the equivalent  
 42 authority for a charter school or nonpublic school issues an adjunct





1 teacher permit to an individual under subsection (a):

2 (1) the school corporation, charter school, or nonpublic school  
3 may enter into an employment agreement for employment with  
4 the individual as a part-time or full-time teacher of the school  
5 corporation, charter school, or nonpublic school;

6 (2) the individual who holds the adjunct permit may teach in any  
7 content area, including a career and technical education content  
8 area, in which the school corporation, charter school, or nonpublic  
9 school allows the individual to teach based on the individual's  
10 experience described in subsection (a);

11 (3) the individual must be assigned a teacher mentor for support  
12 in pedagogy; and

13 (4) the individual must complete the following training within the  
14 first ninety (90) days of employment:

15 (A) Bullying prevention.

16 (B) Child abuse and neglect.

17 (C) Youth suicide awareness and prevention.

18 (D) Human trafficking.

19 ~~The training described in subdivision (4)(D) may be completed through~~  
20 ~~the online platform described in IC 20-19-3-29.~~

21 (c) An adjunct teacher may not provide special education  
22 instruction.

23 (d) The salary of an adjunct teacher under an employment  
24 agreement described in IC 20-28-6-7.3 is not subject to the  
25 requirements under IC 20-28-9-1.5 or a local compensation plan  
26 established by a school corporation as described in IC 20-28-9-1.5.

27 (e) Except as otherwise provided in a collective bargaining  
28 agreement entered into or renewed before July 1, 2022, an employment  
29 agreement entered into under this section is not subject to a collective  
30 bargaining agreement entered into under IC 20-29.

31 (f) It is not an unfair practice for a school corporation to enter into  
32 an employment agreement under this section.

33 ~~(g) Each school corporation or charter school that hires an adjunct~~  
34 ~~teacher under this section shall report to the department the following~~  
35 ~~information:~~

36 ~~(1) The number of adjunct teachers who hold a permit issued~~  
37 ~~under this section that the school corporation or charter school~~  
38 ~~has hired each school year, disaggregated by the grade level and~~  
39 ~~subject area taught by the adjunct teacher.~~

40 ~~(2) The following information for each adjunct teacher described~~  
41 ~~in subdivision (1):~~

42 ~~(A) The name of the adjunct teacher.~~



- 1 (B) The subject matter the adjunct teacher is permitted to  
 2 teach.  
 3 (C) A description of the adjunct teacher's experience described  
 4 in subsection (a)(1).  
 5 (D) The adjunct teacher's total salary and any other  
 6 compensation paid to the adjunct teacher during the school  
 7 year.  
 8 (E) The number of previous adjunct teaching employment  
 9 agreements the adjunct teacher has entered into with the  
 10 school corporation or charter school or any other school  
 11 corporation or charter school.  
 12 (h) (g) A school corporation or charter school shall post a vacant  
 13 adjunct teacher position on the department's online adjunct teacher  
 14 portal established under IC 20-19-3-25.  
 15 (i) (h) A school corporation may notify the parents of students  
 16 enrolled in the school corporation of a vacant adjunct teacher position.  
 17 (j) (i) The governing body of a school corporation shall announce  
 18 any vacant adjunct teacher positions at meetings of the governing body.  
 19 SECTION 97. IC 20-28-5.5-1.5 IS REPEALED [EFFECTIVE JULY  
 20 1, 2026]. Sec. 1.5: After June 30, 2024, if an online platform is  
 21 established or licensed for use under IC 20-19-3-29, the training  
 22 described in any of the following statutes must be provided through the  
 23 online platform:  
 24 IC 20-26-5-34.4.  
 25 IC 20-26-9-8.  
 26 IC 20-28-3-4.5.  
 27 IC 20-28-5.5-1.  
 28 IC 20-34-7-6.  
 29 IC 20-34-7-7.  
 30 IC 20-34-8-9.  
 31 IC 20-35.5.  
 32 SECTION 98. IC 20-28-6-2, AS AMENDED BY P.L.200-2023,  
 33 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 34 JULY 1, 2026]: Sec. 2. (a) Except as provided under section 7.3 of this  
 35 chapter, a contract entered into by a teacher and a school corporation  
 36 must:  
 37 (1) be in writing;  
 38 (2) be signed by both parties; and  
 39 (3) contain the:  
 40 (A) beginning date of the school term as determined annually  
 41 by the school corporation;  
 42 (B) number of days in the school term as determined annually



by the school corporation;

(C) total salary to be paid to the teacher during the school year;

**and**

(D) number of salary payments to be made to the teacher during the school year. ~~and~~

~~(E) number of hours per day the teacher is expected to work.~~

(b) The contract may provide for the annual determination of the teacher's annual compensation based on a local compensation plan specifying a salary range, which is part of the contract. The compensation plan may be changed by the school corporation before the later of May 1 of a year, with the changes effective the next school year, or the date specified in a collective bargaining agreement applicable to the next school year. A teacher affected by the changes shall be furnished with printed copies of the changed compensation plan not later than thirty (30) days after the adoption of the compensation plan.

(c) A contract under this section is also governed by the following statutes:

(1) IC 20-28-9-5 through IC 20-28-9-6.

(2) IC 20-28-9-9 through IC 20-28-9-11.

(3) IC 20-28-9-13.

(4) IC 20-28-9-14.

(d) A governing body shall provide the blank contract forms, carefully worded by the secretary of education, and have them signed. The contracts are public records open to inspection by the residents of each school corporation.

(e) An action may be brought on a contract that conforms with subsections (a)(1), (a)(2), and (d).

SECTION 99. IC 20-28-6-6, AS AMENDED BY P.L.233-2015, SECTION 206, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) A temporary teacher's contract shall be used only for employing:

(1) a teacher to serve in the absence of a teacher who has been granted a leave of absence by the school corporation for:

(A) engaging in defense service or in service auxiliary to defense service;

(B) professional study or advancement;

(C) exchange teaching;

(D) extended disability to which a licensed physician has attested; or

(E) serving in the general assembly; ~~or~~

(2) a new teacher for a position:



(A) that is funded by a grant outside the school funding formula for which funding is available only for a specified period or purpose; or

(B) vacated by a teacher who is under a regular contract and who temporarily accepts a teacher position that is funded by a grant outside the school funding formula for which funding is available only for a specified period or purpose; **or**

**(3) a teacher who has been issued an emergency permit by the department.**

(b) The temporary teacher's contract must contain:

(1) the provisions of the regular teacher's contract except those providing for continued tenure of position;

(2) a blank space for the name of the teacher granted the leave, which may not be used on another temporary teacher's contract for the same leave of absence; and

(3) an expiration date that:

(A) is the date of the return of the teacher on leave; and

(B) is not later than the end of the school year.

(c) If a teacher is employed on the temporary teacher's contract for at least sixty (60) days in a school year, the teacher may, on request, receive the service credit that the teacher would otherwise receive with regard to the Indiana state teachers' retirement fund.

(d) A school corporation is not required to use a temporary teacher's contract for employing a teacher to serve in the absence of a teacher who has been granted a leave of absence.

SECTION 100. IC 20-28-6-7.5, AS AMENDED BY P.L.214-2025, SECTION 122, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7.5. (a) A teacher who is subject to section 8 of this chapter is not subject to this section.

(b) A teacher who:

(1) serves under contract as a teacher in a ~~public~~ school corporation;

(2) is in the teacher's first or second year of full-time teaching in a classroom; and

(3) has not at any time before July 1, 2012, entered into a teaching contract for further service with the school corporation;

shall be considered a probationary teacher.

(c) A teacher who:

(1) is not a probationary teacher under subsection (b); and

(2) enters into a contract described in section 2 of this chapter;

becomes a professional teacher.

SECTION 101. IC 20-28-7.5-1, AS AMENDED BY P.L.200-2023,



SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) This chapter applies to a teacher in a school corporation (as defined in IC 20-18-2-16(a)).

(b) A contract with a teacher may be canceled immediately in the manner set forth in sections 2 through 4 of this chapter for any of the following reasons:

(1) Immorality.

(2) Insubordination, which means a willful refusal to obey the state school laws or reasonable rules adopted for the governance of the school building or the school corporation.

(3) Repeated ineffective performance, as determined by the school corporation.

(4) Neglect of duty.

(5) A conviction of an offense listed in ~~IC 20-28-5-8(c)~~. **IC 20-28-5-8(b).**

(6) Other good or just cause.

(c) In addition to the reasons set forth in subsection (b), a probationary teacher's contract may be canceled for any reason relevant to the school corporation's interest in the manner set forth in sections 2 through 4 of this chapter.

(d) ~~After June 30, 2012,~~ The cancellation of teacher's contracts due to a justifiable decrease in the number of teaching positions shall be determined on the basis of performance rather than seniority. In cases where teachers are placed in the same performance category, any of the items in IC 20-28-9-1.5(b) may be considered.

(e) Only the governing body may terminate, cancel, or otherwise refuse to renew a contract of a superintendent or assistant superintendent. Notice of the contract cancellation or the refusal to renew the individual's contract must be provided in the manner provided in IC 20-28-8-3(a).

SECTION 102. IC 20-28-7.5-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 8. (a) ~~This section does not apply to an individual who works at a conversion charter school (as defined in IC 20-24-1-5) for purposes of the individual's employment with the school corporation that sponsored the conversion charter school.~~

(b) ~~A contract between a school corporation and a teacher is void if the teacher, at the time of signing the contract, is bound by a previous contract to teach in a public school and the contract is entered into at any time during the school year or less than fourteen (14) days before the day on which the teacher must report for work at that school. However, another contract may be signed by the teacher that will be effective if the teacher:~~



(1) furnishes the principal a release by the first employer; or  
 (2) shows proof that thirty (30) days written notice was delivered  
 by the teacher to the first employer.

(c) A principal may request from a teacher, at the time of  
 contracting, a written statement as to whether the teacher has signed  
 another teaching contract. However, the teacher's failure to provide the  
 statement is not a cause for subsequently voiding the contract.

SECTION 103. IC 20-28-8-2, AS AMENDED BY P.L.43-2021,  
 SECTION 92, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 JULY 1, 2026]: Sec. 2. A contract of employment shall be entered into  
 between the governing body of the school corporation and a principal  
 or assistant principal subject to the following conditions:

(1) The basic contract must be the regular teacher's contract as  
 prescribed by the secretary of education **unless the parties agree  
 to an alternative employment contract.**

(2) This subdivision applies to contracts entered into or renewed  
 after June 30, 2019. The initial contract must be for a term of at  
 least one (1) year and not more than three (3) years. However, a  
 contract may be extended for not more than an additional three (3)  
 years beyond the term of the original contract.

(3) The contract may be altered, modified, or rescinded in favor  
 of a new contract at any time by mutual consent of the governing  
 body of the school corporation and the principal or assistant  
 principal, if the contract, when reduced to writing, is consistent  
 with this chapter.

SECTION 104. IC 20-28-8-10, AS AMENDED BY P.L.43-2021,  
 SECTION 93, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 JULY 1, 2026]: Sec. 10. A contract of employment shall be entered  
 into between the managing body and a local director subject to the  
 following conditions:

~~(1) The basic contract must be the regular teacher's contract as  
 prescribed by the secretary of education.~~

~~(2) (1)~~ The minimum term of the initial contract must be the  
 equivalent of two (2) school years.

~~(3) (2)~~ The contract may be altered, modified, or rescinded in  
 favor of a new contract at any time by mutual consent of the  
 managing body and the local director if the written contract is  
 consistent with this chapter.

SECTION 105. IC 20-28-9-24 IS REPEALED [EFFECTIVE JULY  
 1, 2026]. Sec. 24. (a) This section applies to an examination that is  
 required for teacher licensure under this chapter.

(b) If an individual does not demonstrate the level of proficiency



1 required to receive a license on all or a part of an examination; the  
 2 examination's scorer must provide the individual with the individual's  
 3 test scores, including subscores for each area tested:

4 SECTION 106. IC 20-28-9-25 IS REPEALED [EFFECTIVE JULY  
 5 1, 2026]. Sec. 25. For purposes of the federal teacher loan forgiveness  
 6 program provided under 34 CFR 682.216(a)(4), "secondary school"  
 7 includes any eligible elementary or secondary school at which a highly  
 8 qualified teacher in a high needs area (as defined in 34 CFR  
 9 682.216(b)) is employed:

10 SECTION 107. IC 20-29-2-6, AS AMENDED BY P.L.75-2025,  
 11 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 12 JULY 1, 2026]: Sec. 6. "Deficit financing" for a budget year

13 ~~(1) means except as provided in subdivision (2); actual~~  
 14 ~~expenditures exceeding the employer's current year actual~~  
 15 ~~education fund revenue and, for a school employer for which the~~  
 16 ~~voters have passed an operating referendum tax levy under~~  
 17 ~~IC 20-46-1 or a school safety referendum tax levy under~~  
 18 ~~IC 20-46-9, the amount of revenue certified by the department of~~  
 19 ~~local government finance, excluding money distributed to a~~  
 20 ~~charter school under IC 20-46-1-21 or IC 20-46-9-22. or~~

21 ~~(2) means; in the case of any distressed school corporation, the~~  
 22 ~~Gary Community School Corporation, or the Muncie Community~~  
 23 ~~school corporation; actual expenditures plus additional payments~~  
 24 ~~against any outstanding debt obligations exceeding the employer's~~  
 25 ~~current year actual education fund revenue; and; for a school~~  
 26 ~~employer for which the voters have passed an operating~~  
 27 ~~referendum tax levy under IC 20-46-1 or a school safety~~  
 28 ~~referendum tax levy under IC 20-46-9; excluding money~~  
 29 ~~distributed to a charter school under IC 20-46-1-21 or~~  
 30 ~~IC 20-46-9-22; the amount of revenue certified by the department~~  
 31 ~~of local government finance.~~

32 Except as provided in IC 20-29-6-3(c), revenue does not include money  
 33 estimated to be or actually transferred from the school corporation's  
 34 operations fund to its education fund. Revenue does not include money  
 35 allocated for supplemental payments in a resolution passed under  
 36 IC 20-29-6-3(d).

37 SECTION 108. IC 20-29-6-4.5, AS AMENDED BY P.L.213-2025,  
 38 SECTION 174, IS AMENDED TO READ AS FOLLOWS  
 39 [EFFECTIVE JULY 1, 2026]: Sec. 4.5. (a) For a contract entered into  
 40 after June 30, 2011, a school employer may not bargain collectively  
 41 with the exclusive representative on the following:

42 (1) The school calendar.



(2) Teacher dismissal procedures and criteria.

(3) Restructuring options available to a school employer under federal or state statutes, regulations, or rules because of the failure of the school corporation or a school to meet federal or state accountability standards.

(4) The ability of a school employer to contract, partner, or operate jointly with an educational entity that provides postsecondary credits to students of the school employer or dual credits from the school employer and the educational entity.

(5) Contract costs for curricular materials (as defined in IC 20-18-2-2.7).

**(6) Teacher evaluation procedures and criteria.**

~~(6)~~ (7) Any subject not expressly listed in section 4 of this chapter.

(b) For a contract entered into after January 1, 2015, for a school year beginning after June 30, 2015, a school employer may not bargain collectively with the exclusive representative for the following:

(1) A matter described in subsection (a).

(2) A matter that another statute specifies is not subject to collective bargaining, including IC 20-28-9-1.5 and IC 20-43-16.

(c) A subject set forth in subsection (a) or (b) that may not be bargained collectively may not be included in an agreement entered into under this article.

SECTION 109. IC 20-29-6-4.7, AS ADDED BY P.L.48-2011, SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.7. ~~(a) A school employer may not bargain collectively with the exclusive representative on teacher evaluation procedures and criteria after this section has been enacted into law.~~

~~(b)~~ A contract entered into between a school employer and an exclusive representative ~~after this section has been enacted into law~~ may not extend past the end of a state budget biennium.

SECTION 110. IC 20-30-4-2, AS AMENDED BY P.L.9-2021, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) In consultation with the student's school counselor, ~~after seeking consultation with each student's parents~~, and not later than the date on which the student completes grade 8, each student shall develop a graduation plan that is a part of the student's permanent school record and accessible to a parent of the student in accordance with the Family Education Rights and Privacy Act (20 U.S.C. 1232g et seq.).

(b) The graduation plan developed under subsection (a) must include the following:





- 1 (1) A statement of intent to graduate from high school.
- 2 (2) An acknowledgment of the importance of:
  - 3 (A) good citizenship;
  - 4 (B) school attendance; and
  - 5 (C) diligent study habits.
- 6 (3) The subject and skill areas of interest to the student.
- 7 (4) The postsecondary goals of the student aligned with the
- 8 graduation pathway requirements under IC 20-32-4-1.5.
- 9 (5) A program of study under the college/technology preparation
- 10 curriculum adopted by the state board under IC 20-30-10-2 for
- 11 grades 10, 11, and 12 that meets the interests, aptitude, and
- 12 postsecondary goals of the student.
- 13 (6) Assurances that, upon satisfactory fulfillment of the plan, the
- 14 student:
  - 15 (A) is entitled to graduate; and
  - 16 (B) will have taken at least the minimum variety and number
  - 17 of courses necessary to gain admittance to a state educational
  - 18 institution.
- 19 (7) An indication of assessments (other than the statewide
- 20 assessment program and the graduation examination (before July
- 21 1, 2018)) that the student plans to take voluntarily during grade 10
- 22 through grade 12 and which may include any of the following:
  - 23 (A) The SAT Reasoning Test.
  - 24 (B) The ACT test.
  - 25 (C) Advanced placement exams.
  - 26 (D) College readiness exams approved by the department.
  - 27 (E) Workforce readiness exams approved by the department of
  - 28 workforce development established under IC 22-4.1-2.
  - 29 (F) Cambridge International examinations.

30 **(c) A school corporation shall:**

- 31 **(1) provide a copy of a student's graduation plan developed**
- 32 **under this section to a parent of the student; and**
- 33 **(2) provide the parent described in subdivision (1) an**
- 34 **opportunity to consult with the school corporation on the**
- 35 **student's graduation plan.**

36 SECTION 111. IC 20-30-5-5.5, AS AMENDED BY P.L.214-2025,  
 37 SECTION 139, IS AMENDED TO READ AS FOLLOWS  
 38 [EFFECTIVE JULY 1, 2026]: Sec. 5.5. (a) Each public school shall  
 39 include in the public school's curriculum age appropriate, research  
 40 based instruction as provided under ~~IC 10-21-1-14(d)~~ **IC 10-21-1-14(e)**  
 41 focusing on bullying prevention for all students in grades 1 through 12.  
 42 (b) The department, in consultation with school safety specialists



1 and school counselors, shall prepare outlines or materials for the  
 2 instruction described in subsection (a). ~~and incorporate the instruction~~  
 3 ~~in grades 1 through 12.~~

4 ~~(c) Instruction on bullying prevention may be delivered by a teacher,~~  
 5 ~~school safety specialist, school counselor, or any other person with~~  
 6 ~~training and expertise in the area of bullying prevention and~~  
 7 ~~intervention.~~

8 SECTION 112. IC 20-30-5-5.7, AS AMENDED BY P.L.214-2025,  
 9 SECTION 140, IS AMENDED TO READ AS FOLLOWS  
 10 [EFFECTIVE JULY 1, 2026]: Sec. 5.7. (a) Each public school,  
 11 including a charter school, and state accredited nonpublic school shall  
 12 include in the school's curriculum age appropriate:

13 (1) research and evidence based; or

14 (2) research or evidence based;

15 instruction on child abuse and child sexual abuse to students in  
 16 kindergarten through grade 12.

17 (b) The department, in consultation with school safety specialists,  
 18 school counselors, school social workers, or school psychologists, shall  
 19 identify outlines or materials for the instruction described in subsection  
 20 (a). ~~and incorporate the instruction in kindergarten through grade 12.~~

21 (c) Any outlines and materials identified under subsection (b) must  
 22 be demonstrated to be effective and promising.

23 ~~(d) Instruction on child abuse and child sexual abuse may be~~  
 24 ~~delivered by a teacher, school safety specialist, school counselor, or any~~  
 25 ~~other person with training and expertise in the area of child abuse and~~  
 26 ~~child sexual abuse.~~

27 SECTION 113. IC 20-30-5-11, AS ADDED BY P.L.1-2005,  
 28 SECTION 14, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 29 JULY 1, 2026]: Sec. 11. (a) ~~For kindergarten through grade 12,~~ The  
 30 governing body of each school corporation shall provide **at least two**  
 31 **(2) times in kindergarten through grade 8 and one (1) time in**  
 32 **grades 9 through 12** instruction concerning the effects that:

33 (1) alcoholic beverages;

34 (2) tobacco, **including tobacco alternatives and nicotine**  
 35 **products;**

36 (3) prescription drugs; and

37 (4) controlled substances;

38 have on the human body and society at large.

39 (b) The state board shall make available to all school corporations  
 40 a list of appropriate available instructional material on the matters  
 41 described in subsection (a).

42 (c) The department shall develop curriculum guides to assist



1 teachers assigned to teach the material described in subsection (a).

2 (d) The state board shall approve drug education curricula for ~~every~~  
3 ~~grade from kindergarten through grade 12.~~ **instruction required under**  
4 **subsection (a).**

5 (e) ~~The department shall provide assistance to each school~~  
6 ~~corporation to train at least one (1) teacher in the school corporation in~~  
7 ~~drug education.~~

8 SECTION 114. IC 20-30-5-12, AS AMENDED BY P.L.56-2023,  
9 SECTION 180, IS AMENDED TO READ AS FOLLOWS  
10 [EFFECTIVE JULY 1, 2026]: Sec. 12. (a) Each school corporation  
11 shall:

12 (1) include in the school corporation's curriculum instruction  
13 concerning the human immunodeficiency virus (HIV); and

14 (2) integrate this effort to the extent possible with instruction on  
15 other serious communicable diseases.

16 (b) Literature that is distributed to school children and young adults  
17 under this section must include information required by IC 20-34-3-17.

18 (c) The department **shall do the following:**

19 (1) In consultation with the Indiana department of health, ~~shall~~  
20 develop HIV educational materials.

21 (2) ~~The department shall~~ Make the materials ~~developed under this~~  
22 **section described in subdivision (1)** available to school  
23 corporations.

24 SECTION 115. IC 20-30-5-23, AS AMENDED BY P.L.150-2024,  
25 SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
26 JULY 1, 2026]: Sec. 23. (a) Each public high school, including each  
27 charter school, shall offer at least one (1) computer science course as  
28 a one (1) semester elective in the public high school's curriculum at  
29 least once each school year for high school students. This subsection  
30 expires July 1, 2028.

31 (b) After June 30, 2028, each public high school, including each  
32 charter school, shall offer at least once each school year at least one (1)  
33 computer science course as a separate subject in the public high  
34 school's curriculum that:

35 (1) satisfies the computer science instruction content  
36 requirements; and

37 (2) beginning in 2029, enables high school students to  
38 successfully complete instruction on computer science to be  
39 eligible to graduate from high school under the requirements;

40 set forth in IC 20-32-4-18.

41 (c) Each public school, including each charter school, shall include  
42 computer science in the public school's curriculum for students in



1 kindergarten through grade 12. Before July 1, 2028, a public high  
 2 school fulfills the requirements under this subsection by meeting the  
 3 requirements under subsection (a). After June 30, 2028, a public high  
 4 school fulfills the requirements under this subsection by meeting the  
 5 requirements under subsection (b).

6 (d) If a public school fails to comply with this section, the  
 7 department shall assist the public school in meeting the requirements  
 8 under this section.

9 (e) The department shall:

10 (1) prepare an annual report concerning the implementation of  
 11 computer science courses in public schools, including charter  
 12 schools, that includes the information described in subsection (f);  
 13 and

14 (2) submit, before December 1 of each year, the report to the  
 15 following:

16 (A) The state board.

17 (B) The general assembly.

18 (C) The commission for higher education.

19 The department shall submit the written report to the general assembly  
 20 in an electronic format under IC 5-14-6.

21 (f) The report under subsection (e) must include the following  
 22 information:

23 (1) The total number and percentage of computer science unique  
 24 student course enrollments and course completions for each:

25 (A) public elementary school, including each charter school,  
 26 for students in grade 8; and

27 (B) public high school, including each charter school;  
 28 by each course title approved by the department.

29 (2) The number and percentage of unique student enrollments and  
 30 course completions in a computer science course by each course  
 31 title approved by the department and disaggregated by:

32 (A) race;

33 (B) gender;

34 (C) grade;

35 (D) ethnicity;

36 (E) limited English language proficiency;

37 (F) free or reduced price lunch status; and

38 (G) eligibility for special education.

39 (3) The number of computer science instructors at each school  
 40 disaggregated by:

41 (A) gender;

42 (B) certification, if applicable; and



- 1 (C) academic degree.
- 2 **(4) The number of public schools, including charter schools,**
- 3 **that offer courses in digital literacy.**
- 4 ~~(4)~~ **(5)** Any other pertinent matters.
- 5 (g) The department shall post the report described in subsections (e)
- 6 and (f) on the department's website.
- 7 SECTION 116. IC 20-30-5-25 IS REPEALED [EFFECTIVE JULY
- 8 1, 2026]. Sec. 25: (a) This section applies to a high school that is:
- 9 (1) a public school, including a charter school;
- 10 (2) a state accredited nonpublic school; or
- 11 (3) an eligible school (as defined in IC 20-51-1-4.7):
- 12 (b) Each high school shall do one (1) of the following:
- 13 (1) Beginning with the 2024-2025 school year, offer the Indiana
- 14 college core developed under IC 21-42-3 in the high school's
- 15 curriculum for high school students:
- 16 (2) Not later than October 1, 2024, submit an implementation
- 17 plan to the commission for higher education, in a manner
- 18 prescribed by the commission for higher education, to offer the
- 19 Indiana college core developed under IC 21-42-3 in the high
- 20 school's curriculum for high school students by the 2025-2026
- 21 school year:
- 22 (3) Not later than October 1, 2024, submit a detailed
- 23 implementation plan to the commission for higher education, in
- 24 a manner prescribed by the commission for higher education, to
- 25 offer the Indiana college core developed under IC 21-42-3 in the
- 26 high school's curriculum for high school students by the
- 27 2026-2027 school year:
- 28 (4) Not later than October 1, 2024, submit an Indiana college core
- 29 feasibility report to the commission for higher education in
- 30 accordance with IC 21-42-3-6 if the high school does not plan to
- 31 offer the Indiana college core by the 2026-2027 school year:
- 32 (c) This section expires July 1, 2026.
- 33 SECTION 117. IC 20-30-6.1-4, AS ADDED BY P.L.150-2024,
- 34 SECTION 33, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
- 35 JULY 1, 2026]: Sec. 4. (a) As used in this section, "online challenge"
- 36 means an Internet trend that encourages individuals to copy behaviors
- 37 or actions that may cause harm to the individual.
- 38 (b) Each school corporation may:
- 39 (1) include instruction regarding Internet safety in the school
- 40 corporation's curriculum; and
- 41 (2) offer instruction or programs regarding the potential risks
- 42 and consequences of creating and sharing sexually suggestive



1       **or explicit materials through cellular telephones, social**  
 2       **networking websites, computer networks, and other digital**  
 3       **media.**

4       (c) Not later than July 1, 2025, the department shall approve  
 5       previously developed curricula for use by school corporations under  
 6       subsection (b).

7       (d) Each curriculum approved under subsection (c) must include age  
 8       appropriate instruction regarding the following:

9       (1) Thinking critically about the possible provenance, reliability,  
 10       and intended effect of online information before acting on the  
 11       information.

12       (2) Acting ethically in the student's interactions with others  
 13       online, and reacting appropriately to unethical behavior such as:

14       (A) cyberbullying (as described in IC 20-19-3-11.5); and

15       (B) promotion of dangerous behavior, including self-harm or  
 16       participation in an online challenge;

17       that is directed at the student by others online.

18       (3) Considering the uncertainties inherent in interacting with  
 19       others online, particularly with regard to the ability of an  
 20       individual to misrepresent the individual's identity online.

21       (4) Recognizing the economics of providing Internet content and  
 22       social media services, including:

23       (A) the economic relationship between:

24       (i) users; and

25       (ii) providers;

26       of Internet content and social media services;

27       (B) the economic incentives of a provider to influence the  
 28       behavior of a user when the user is interacting with the  
 29       provider's content or services; and

30       (C) methods used by providers to influence user behavior.

31       (5) Practicing cybersecurity, including recognizing:

32       (A) the danger of:

33       (i) identity theft; and

34       (ii) financial fraud;

35       when interacting with others online, accessing Internet  
 36       content, or using social media services; and

37       (B) the potential for information shared online to remain  
 38       accessible to others in perpetuity.

39       SECTION 118. IC 20-30-8-7, AS AMENDED BY P.L.286-2013,  
 40       SECTION 96, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 41       JULY 1, 2026]: Sec. 7. The program organizer may request the  
 42       approval from the department for the following:

**EH 1004—LS 6983/DI 110**



(1) To receive the grant for alternative education programs under ~~IC 20-20-33~~; **IC 20-20.5-9**.

(2) To be granted waivers from rules adopted by the state board that may otherwise interfere with the objectives of the alternative education program, including waivers of:

(A) certain high school graduation requirements;

(B) the length of the student instructional day as set forth in IC 20-30-2-2;

(C) required curriculum and curricular materials;

(D) teacher certification requirements; and

(E) physical facility requirements.

SECTION 119. IC 20-30-8-8, AS AMENDED BY P.L.2-2006, SECTION 145, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) Before a program organizer is eligible for the funding under ~~IC 20-20-33~~; **IC 20-20.5-9**, a program organizer must have the grant for the program approved by both:

(1) the department; and

(2) the budget agency after review by the budget committee.

(b) A school corporation may initiate the program and waiver approval process under section 7 of this chapter and the grant approval process under this section by submitting an application for the proposed alternative education program, on forms developed by the department, to the department. The application must include the following information:

(1) The number of eligible students expected to participate in the alternative education program.

(2) A description of the proposed alternative education program, including a description of the nature of the alternative education program curriculum.

(3) The extent to which the manner of instruction at the alternative education program differs from the manner of instruction available in the traditional school setting.

(4) A description of specific progressive disciplinary procedures that:

(A) are reasonably designed to modify disruptive behavior in the traditional school learning environment without necessitating admission to an alternative education program; and

(B) will be used before admitting a disruptive student to an alternative education program.

(5) Any other pertinent information required by the department.

(c) The term of a grant may not exceed one (1) school year. If a



1 school corporation fails to conduct an alternative education program in  
2 conformity with:

- 3 (1) this chapter;
- 4 (2) the rules adopted by the state board; or
- 5 (3) the terms of the approved grant;

6 the department or the budget agency, after review by the budget  
7 committee, may terminate funding for the alternative education  
8 program before the grant expires.

9 SECTION 120. IC 20-31-8-5.5, AS AMENDED BY P.L.9-2024,  
10 SECTION 395, IS AMENDED TO READ AS FOLLOWS  
11 [EFFECTIVE JULY 1, 2026]: Sec. 5.5. (a) Not later than July 1, 2024,  
12 the state board shall do the following:

13 (1) Establish a compilation of longitudinal data indicating school  
14 performance success in various selected and enumerated program  
15 areas.

16 (2) Present the data described in subdivision (1) for each school  
17 in a manner that:

18 (A) can be conveniently and easily accessed from a single web  
19 page on the state board's website; and

20 (B) is commonly known as an Internet dashboard.

21 (b) The dashboard must include the following:

22 (1) Indicators of student performance in elementary school,  
23 including schools for grades 6 through 8, and high school.

24 (2) The school's graduation rate, as applicable.

25 (3) The percentage of high school graduates who earned college  
26 credit before graduating, as applicable.

27 (4) The pass rate of the statewide assessment program tests (as  
28 defined in IC 20-32-2-2.3), as applicable.

29 (5) The growth data of the statewide assessment program tests (as  
30 defined in IC 20-32-2-2.3), as applicable.

31 (6) The attendance rate.

32 (7) State, national, and international comparisons for the  
33 indicators, if applicable.

34 (8) The school's grade 3 reading proficiency rate, as applicable.

35 (9) The school's disciplinary incident data.

36 (10) Data regarding the school's socioeconomic status and poverty  
37 rate.

38 (11) The school's proportion of fully licensed teachers.

39 (c) The dashboard may include any other data indicating school  
40 performance success that the state board determines is relevant.

41 (d) Each school shall post **conspicuously** on a web page maintained  
42 on the school's website ~~the exact same data and in a similar format as~~





1 the data presented for the school on the state board's website. However,  
 2 the school may include custom indicators on the web page described  
 3 in this subsection: **the link to the school's web page on the Internet**  
 4 **dashboard.**

5 SECTION 121. IC 20-31-8-8, AS AMENDED BY THE  
 6 TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL  
 7 ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 8 JULY 1, 2026]: Sec. 8. (a) ~~Before July 1, 2018, the state board shall~~  
 9 ~~establish a definition of a high mobility school for schools with a high~~  
 10 ~~concentration of mobile students:~~

11 (b) For each school year, ~~beginning after June 30, 2018,~~ the  
 12 department shall make a report regarding the performance of high  
 13 mobility schools, **as defined by the state board.** The report shall be  
 14 posted on the department's ~~Internet web site~~ **website** each year on a  
 15 date determined by the department.

16 SECTION 122. IC 20-31-12-2, AS ADDED BY P.L.286-2013,  
 17 SECTION 107, IS AMENDED TO READ AS FOLLOWS  
 18 [EFFECTIVE JULY 1, 2026]: Sec. 2. The department may not  
 19 establish criteria for a **state accredited** nonpublic school **or eligible**  
 20 **school (as defined in IC 20-51-1-4.7)** to be eligible for a recognition  
 21 program that are different from the criteria established for a public  
 22 school of the same grade levels.

23 SECTION 123. IC 20-32-5.1-10, AS AMENDED BY P.L.150-2024,  
 24 SECTION 49, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 25 JULY 1, 2026]: Sec. 10. (a) The governing body of each school  
 26 corporation or the equivalent authority for each charter school, eligible  
 27 school (as defined in IC 20-51-1-4.7), or state accredited nonpublic  
 28 school is entitled to acquire at no charge from the department:

- 29 (1) the assessments under the statewide assessment program; and
- 30 (2) the scoring reports used by the department.

31 (b) A state accredited nonpublic school or an eligible school (as  
 32 defined in IC 20-51-1-4.7) shall

- 33 (1) ~~administer the statewide assessment program's assessment or~~  
 34 ~~assessments, as applicable, to its students at the same time or~~  
 35 ~~times that school corporations administer the program's~~  
 36 ~~assessment or assessments, as applicable, under section 7 of this~~  
 37 ~~chapter; and~~

- 38 (2) make available to the department the results of the statewide  
 39 assessment program's assessment or assessments, as applicable.

40 SECTION 124. IC 20-32-7-3 IS REPEALED [EFFECTIVE JULY  
 41 1, 2026]. Sec. 3: ~~The department shall make available to schools~~  
 42 ~~optional student diagnostic tools such as actual assessment instruments~~



or computer banks containing appropriate essential skills items to assist schools in implementing the diagnostic assessments.

SECTION 125. IC 20-32-7-4 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 4: After a governing body holds a public hearing on a proposed portfolio program, the governing body may establish a portfolio program to maintain a portfolio of a student's work at grade levels designated by the governing body.

SECTION 126. IC 20-32-7-5 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 5: The governing body shall develop guidelines for the portfolio program, including guidelines governing the appropriate contents of the portfolios.

SECTION 127. IC 20-33-2-1 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 1: The legislative intent for this chapter is to provide an efficient and speedy means of insuring that students receive a proper education whenever it is reasonably possible.

SECTION 128. IC 20-33-2-14, AS AMENDED BY P.L.208-2025, SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) This section and sections 15 through 17.8 of this chapter apply to a student who attends either a public school or a nonpublic school.

(b) (a) The governing body of each school corporation shall adopt a policy:

(1) outlining the conditions for excused and unexcused absences; and

(2) providing for the categorization of excused absences in accordance with the categorization framework established by the department under IC 20-19-3-12.4.

(c) (b) The governing body of each school corporation shall have a policy regarding the participation of a habitually truant in extracurricular and co-curricular activities.

(d) (c) The policy under subsection (b) (a) must include the grounds for excused absences required by sections section 15 through 17.8 of this chapter or another law.

(e) (d) Any absence that results in a person not attending at least one hundred eighty (180) days in a school year must be in accordance with the governing body's policy under subsection (b) (a) to qualify as an excused absence.

(f) Service as a page for or as an honoree of the general assembly is a lawful excuse for a student to be absent from school, when verified by a certificate of the secretary of the senate or the chief clerk of the house of representatives. A student excused from school attendance under this section may not be recorded as being absent on any date for



1 which the excuse is operative and may not be penalized by the school  
2 in any manner:

3 SECTION 129. IC 20-33-2-15, AS ADDED BY P.L.1-2005,  
4 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
5 JULY 1, 2026]: Sec. 15. (a) ~~The governing body of a Each~~ school  
6 corporation, ~~charter school,~~ and ~~the chief administrative official of a~~  
7 **accredited** nonpublic ~~secondary school system~~ shall authorize the  
8 absence and excuse of each ~~secondary school~~ student who serves:

9 (1) ~~on the precinct election board; or~~

10 (2) ~~as a helper to a political candidate or to a political party on the~~  
11 ~~date of each general, city or town, special, and primary election~~  
12 ~~at which the student works.~~

13 (b) ~~Before the date of the election, the student must submit a~~  
14 ~~document signed by one (1) of the student's parents giving permission~~  
15 ~~to participate in the election as provided in this section; and the student~~  
16 ~~must verify to school authorities the performance of services by~~  
17 ~~submitting a document signed by the candidate, political party~~  
18 ~~chairman, campaign manager, or precinct officer generally describing~~  
19 ~~the duties of the student on the date of the election. A student excused~~  
20 ~~from school attendance under this section may not be recorded as being~~  
21 ~~absent on any date for which the excuse is operative and may not be~~  
22 ~~penalized by the school in any manner. is absent for any of the~~  
23 ~~following:~~

24 (1) ~~The student serves as a page for or as an honoree of the~~  
25 ~~general assembly.~~

26 (2) ~~The student serves on the precinct election board.~~

27 (3) ~~The student works as a helper to a political candidate or to~~  
28 ~~a political party on the date of each general, city or town,~~  
29 ~~special, and primary election at which the student works.~~

30 (4) ~~The student appears in court in response to a subpoena to~~  
31 ~~appear in court as a witness in a judicial proceeding.~~

32 (5) ~~The student is:~~

33 (A) ~~not a habitual truant; and~~

34 (B) ~~ordered to active duty with the armed forces of the~~  
35 ~~United States, including their reserve components, or the~~  
36 ~~Indiana National Guard for not more than fifteen (15)~~  
37 ~~instructional days in a school year.~~

38 ~~However, the school corporation, charter school, or~~  
39 ~~accredited nonpublic school may authorize additional excused~~  
40 ~~absences for a student ordered to active duty.~~

41 (6) ~~The student is:~~

42 (A) ~~a member of the Indiana wing of the civil air patrol;~~



1 and

2 (B) participating in a civil air patrol:

3 (i) international air cadet exchange program for the  
4 length of the program; or

5 (ii) emergency service operation for not more than five

6 (5) instructional days in a school year.

7 (7) The student participates or exhibits in the Indiana state  
8 fair for educational purposes. However, the number of  
9 excused absences a student may receive under this subdivision  
10 may not exceed five (5) instructional days in a school year.

11 (8) The student participates in a scheduled competition,  
12 exhibition, or event offered by:

13 (A) the National FFA Organization;

14 (B) the Indiana FFA Association; or

15 (C) a 4-H club.

16 However, the number of excused absences a student may  
17 receive under this subdivision may not exceed a total of six (6)  
18 instructional days in a school year.

19 (b) If a school corporation, charter school, or accredited  
20 nonpublic school authorizes the absence and excuse of a student for  
21 a nonclassroom related activity that is organized or facilitated by  
22 the school, the school shall send, at least one (1) full school day  
23 before the nonclassroom related activity occurs, a parent of the  
24 student a written notification regarding the nonclassroom related  
25 activity that includes:

26 (1) a description of the activity; and

27 (2) the anticipated date and time that the activity is scheduled  
28 to occur.

29 (c) For a student to receive an excused absence under subsection  
30 (a)(6) through (a)(8), the student must be in good academic  
31 standing, as determined by the school corporation, charter school,  
32 or accredited nonpublic school.

33 (d) A student excused from school attendance under subsection  
34 (a) may not be recorded as being absent on any date for which the  
35 excuse is operative and may not be penalized by the school in any  
36 manner.

37 (e) The appropriate school authority shall request relevant  
38 documentation verifying a student's participation in an activity  
39 listed in subsection (a).

40 SECTION 130. IC 20-33-2-16 IS REPEALED [EFFECTIVE JULY  
41 1, 2026]. Sec. 16: The governing body of a school corporation or the  
42 chief administrative officer of a nonpublic school system shall



1 authorize the absence and excuse of a student who is issued a subpoena  
 2 to appear in court as a witness in a judicial proceeding. A student  
 3 excused under this section shall not be recorded as being absent on any  
 4 date for which the excuse is operative and shall not be penalized by the  
 5 school in any manner. The appropriate school authority may require  
 6 that the student submit the subpoena to the appropriate school authority  
 7 for verification.

8 SECTION 131. IC 20-33-2-17 IS REPEALED [EFFECTIVE JULY  
 9 1, 2026]. Sec. 17. The governing body of a school corporation, the  
 10 organizer of a charter school, or the chief administrative officer of a  
 11 nonpublic school system shall authorize the absence and excuse of each  
 12 secondary school student who is:

- 13 (1) not a habitual truant (as defined in IC 20-18-2-6.5); and
- 14 (2) ordered to active duty with the armed forces of the United  
 15 States, including their reserve components; or the Indiana  
 16 National Guard for at least fifteen (15) days in a school year.

17 However, the governing body of a school corporation, the organizer of  
 18 a charter school, or the chief administrative officer of a nonpublic  
 19 school system may authorize additional excused absences for  
 20 additional military training. For verification, the student must submit  
 21 to school authorities a copy of the orders to active duty and a copy of  
 22 the orders releasing the student from active duty. A student excused  
 23 from school attendance under this section may not be recorded as being  
 24 absent on any date for which the excuse is operative and may not be  
 25 penalized by the school in any manner.

26 SECTION 132. IC 20-33-2-17.2 IS REPEALED [EFFECTIVE  
 27 JULY 1, 2026]. Sec. 17.2. The governing body of a school corporation  
 28 or the chief administrative officer of a nonpublic school system shall  
 29 authorize the absence and excuse of each secondary school student who  
 30 is a member of the Indiana wing of the civil air patrol and who is  
 31 participating in a civil air patrol:

- 32 (1) international air cadet exchange program, for the length of the  
 33 program; or
- 34 (2) emergency service operation, including:
  - 35 (A) search and rescue missions designated by the Air Force  
 36 Rescue Coordination Center;
  - 37 (B) disaster relief, when requested by the Federal Emergency  
 38 Management Agency or the department of homeland security  
 39 established by IC 10-19-2-1;
  - 40 (C) humanitarian services, when requested by the Federal  
 41 Emergency Management Agency or the department of  
 42 homeland security established by IC 10-19-2-1;



(D) United States Air Force support designated by the First Air Force; North American Aerospace Defense Command; or

(E) United States Air Force military flights; if the flights are not available on days when school is not in session;

for not more than five (5) days in a school year;

if the student submits to school authorities appropriate documentation from the Indiana wing of the civil air patrol detailing the reason for the student's absence. A student excused from school attendance under this section may not be recorded as being absent on any date to which the excuse applies and may not be penalized by the school in any manner.

SECTION 133. IC 20-33-2-17.5 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 17.5: (a) The governing body of a school corporation may authorize the absence and excuse of a student who attends any educationally related nonclassroom activity. Any educationally related nonclassroom activity and nonclassroom activity must meet all the following conditions:

(1) Is consistent with and promotes the educational philosophy and goals of the school corporation and the state board.

(2) Facilitates the attainment of specific educational objectives.

(3) Is a part of the goals and objectives of an approved course or curriculum.

(4) Represents a unique educational opportunity.

(5) Cannot reasonably occur without interrupting the school day.

(6) Is approved in writing by the school principal.

(b) A student excused from school attendance under this section may not be recorded as being absent on any date for which the excuse is operative and may not be penalized by the school in any manner.

SECTION 134. IC 20-33-2-17.7 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 17.7: (a) Except as provided in subsection (b), the governing body of a school corporation or the chief administrative officer of a nonpublic school system shall authorize the absence and excuse of each school student if the student or a member of the student's household participates or exhibits in the Indiana state fair for educational purposes; as evidenced in writing by the student's parent and as approved in writing by the student's school principal. The number of excused absences a student may receive under this section may not exceed five (5) instructional days in a school year. A student excused from school attendance under this section may not be recorded as being absent on any date for which the excuse is operative and may not be penalized by the school in any manner.

(b) In order for a student to receive an excused absence under subsection (a), the student must be in good academic standing; as



determined by the school corporation:

SECTION 135. IC 20-33-2-17.8 IS REPEALED [EFFECTIVE JULY 1, 2026]. Sec. 17.8: (a) Except as provided in subsections (b) and (c), the governing body of a school corporation or the chief administrative officer of a nonpublic school system shall authorize the absence and excuse of each school student if the student participates in a scheduled competition, exhibition, or event offered by:

- (1) the National FFA Organization;
- (2) the Indiana FFA Association; or
- (3) a 4-H club;

for educational purposes as evidenced in writing by the student's parent and as approved in writing by the student's school principal. A student excused from school attendance under this section may not be recorded as being absent on any date for which the excuse is operative and may not be penalized by the school in any manner.

(b) The number of excused absences a student may receive under subsection (a) may not exceed six (6) instructional days in a school year.

(c) In order for a student to receive an excused absence under subsection (a), the student must be in good academic standing, as determined by the school corporation or nonpublic school.

SECTION 136. IC 20-33-8-16, AS AMENDED BY P.L.233-2015, SECTION 261, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 16. (a) As used in this section, "firearm" has the meaning set forth in IC 35-47-1-5.

(b) As used in this section, "deadly weapon" has the meaning set forth in IC 35-31.5-2-86. The term does not include a firearm or destructive device.

(c) As used in this section, "destructive device" has the meaning set forth in IC 35-47.5-2-4.

(d) Notwithstanding section 20 of this chapter, a student who is:

- (1) identified as bringing a firearm or destructive device to school or on school property; or
- (2) in possession of a firearm or destructive device on school property;

must be expelled for at least one (1) calendar year, with the return of the student to be at the beginning of the first school semester after the end of the one (1) year period.

(e) The superintendent or principal of the applicable school may, on a case by case basis, modify the period of expulsion under subsection (d) for a student who is expelled under this section.

(f) Notwithstanding section 20 of this chapter, a student who is:



1 (1) identified as bringing a deadly weapon to school or on school  
2 property; or

3 (2) in possession of a deadly weapon on school property;  
4 may be expelled for not more than one (1) calendar year.

5 (g) A superintendent or the superintendent's designee shall  
6 immediately notify the appropriate law enforcement agency having  
7 jurisdiction over the property where the school is located if a student  
8 engages in a behavior described in subsection (d). ~~The superintendent~~  
9 ~~may give similar notice if the student engages in a behavior described~~  
10 ~~in subsection (f).~~ Upon receiving notification under this subsection, the  
11 law enforcement agency shall begin an investigation and take  
12 appropriate action.

13 (h) A student with a disability (as defined in IC 20-35-1-8) who  
14 possesses a firearm on school property is subject to procedural  
15 safeguards under 20 U.S.C. 1415.

16 SECTION 137. IC 20-33-8-17 IS REPEALED [EFFECTIVE JULY  
17 1, 2026]. ~~Sec. 17: A student may be expelled from school if the~~  
18 ~~student's legal settlement is not in the attendance area of the school~~  
19 ~~corporation where the student is enrolled.~~

20 SECTION 138. IC 20-33-8-23, AS ADDED BY P.L.1-2005,  
21 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
22 JULY 1, 2026]: Sec. 23. The superintendent or the person designated  
23 by the superintendent under section 19(a) of this chapter may continue  
24 suspension of a student for more than the ten (10) school day period of  
25 the principal's suspension and until the time of the expulsion decision  
26 under section 19 of this chapter if the superintendent or the designated  
27 person determines that the student's continued suspension will prevent  
28 or substantially reduce the risk of:

29 (1) interference with an educational function or school purposes;  
30 or

31 (2) a physical injury to the student, other students, school  
32 employees, or visitors to the school.

33 ~~However, a student may not be suspended from school pending a~~  
34 ~~meeting on a student's proposed expulsion if the expulsion is ordered~~  
35 ~~under section 17 of this chapter.~~

36 SECTION 139. IC 20-33-8-30, AS AMENDED BY P.L.233-2015,  
37 SECTION 263, IS AMENDED TO READ AS FOLLOWS  
38 [EFFECTIVE JULY 1, 2026]: Sec. 30. (a) This section applies to the  
39 following:

40 (1) A student who:

41 (A) is expelled from a school corporation or charter school  
42 under this chapter; or





- 1 (B) withdraws from a school corporation or charter school to
- 2 avoid expulsion.
- 3 (2) A student who:
- 4 (A) is required to separate for disciplinary reasons from a
- 5 nonpublic school or a school in a state other than Indiana by
- 6 the administrative authority of the school; or
- 7 (B) withdraws from a nonpublic school or a school in a state
- 8 other than Indiana in order to avoid being required to separate
- 9 from the school for disciplinary reasons by the administrative
- 10 authority of the school.
- 11 (b) The student referred to in subsection (a) may enroll in another
- 12 school corporation or charter school during the period of the actual or
- 13 proposed expulsion or separation if:
- 14 (1) the student's parent informs the school corporation in which
- 15 the student seeks to enroll and also:
- 16 (A) in the case of a student withdrawing from a charter school
- 17 that is not a conversion charter school to avoid expulsion, the
- 18 conversion charter school; or
- 19 (B) in the case of a student withdrawing from a conversion
- 20 charter school to avoid expulsion:
- 21 (i) the conversion charter school; and
- 22 (ii) the school corporation that sponsored the conversion
- 23 charter school;
- 24 of the student's expulsion, separation, or withdrawal to avoid
- 25 expulsion or separation;
- 26 (2) the school corporation (and, in the case of a student
- 27 withdrawal described in subdivision (1)(A) or (1)(B), the charter
- 28 school) consents to the student's enrollment; and
- 29 (3) the student agrees to the terms and conditions of enrollment
- 30 established by the school corporation (or, in the case of a student
- 31 withdrawal described in subdivision (1)(A) or (1)(B), the charter
- 32 school or conversion charter school).
- 33 (c) If:
- 34 (1) a student's parent fails to inform the school corporation of the
- 35 expulsion or separation or withdrawal to avoid expulsion or
- 36 separation; or
- 37 (2) a student fails to follow the terms and conditions of enrollment
- 38 under subsection (b)(3);
- 39 the school corporation or charter school may withdraw consent and
- 40 prohibit the student's enrollment during the period of the actual or
- 41 proposed expulsion or separation.
- 42 (d) ~~This section does not apply to a student who is expelled under~~



1 ~~section 17 of this chapter.~~

2 SECTION 140. IC 20-34-8-9, AS AMENDED BY P.L.232-2025,  
3 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
4 JULY 1, 2026]: Sec. 9. (a) This section applies to:

5 (1) a head coach or assistant coach who coaches an athletic  
6 activity;

7 (2) a marching band leader;

8 (3) a drama or musical leader; or

9 (4) a leader of an extracurricular activity in which students have  
10 an increased risk of sudden cardiac arrest activity as determined  
11 by the department in consultation with an organization that  
12 specializes in the prevention of sudden cardiac arrest.

13 (b) An individual described in subsection (a) shall complete the  
14 sudden cardiac arrest training course offered by a provider approved by  
15 the department in a manner specified by the state board under  
16 IC 20-28-5.5-1 or IC 20-28-5.5-1.5.

17 (c) An individual described in subsection (a) who complies with this  
18 section and provides coaching or leadership services in good faith is  
19 not personally liable for damages in a civil action as a result of a  
20 sudden cardiac arrest incurred by an applicable student participating in  
21 an event in which students have an increased risk of sudden cardiac  
22 arrest for which the head coach, assistant coach, marching band leader,  
23 drama or musical leader, or other applicable leader provided coaching  
24 or leadership services, except for an act or omission by the individual  
25 described in subsection (a) that constitutes gross negligence or willful  
26 or wanton misconduct.

27 (d) An individual described in subsection (a) shall ensure that an  
28 operational automated external defibrillator (AED) is present:

29 (1) ~~at each event~~ **at events** in which students have an increased risk  
30 of sudden cardiac arrest for which the individual described in  
31 subsection (a) is providing coaching or leadership; **and**

32 (2) **as specified in the venue specific emergency action plan for**  
33 **sudden cardiac arrest developed by a school corporation,**  
34 **charter school, or state accredited nonpublic school under**  
35 **subsection (f).**

36 (e) At each event in which students have an increased risk of sudden  
37 cardiac arrest, an individual described in subsection (a) shall inform all  
38 individuals who are coaching or providing leadership at the event in  
39 which students have an increased risk of sudden cardiac arrest of the  
40 location of the automated external defibrillator (AED).

41 (f) A school corporation, charter school, and state accredited  
42 nonpublic school shall do the following:



(1) Develop a venue specific emergency action plan for sudden cardiac arrest that includes:

(A) elements recommended by the American Heart Association, Heart Safe Schools Program, or another similar nationally recognized evidence based program; and

**(B) the number and location of automated external defibrillators (AED) that are required to be present at events in which students have an increased risk of sudden cardiac arrest.**

(2) Share the plan described in subdivision (1) with each individual described in subsection (a).

(3) Before the beginning of the season of each event in which students have an increased risk of sudden cardiac arrest, share the plan described in subdivision (1) with all applicable students.

(g) A school corporation, a charter school, a state accredited nonpublic school or an accredited nonpublic school (as defined in IC 10-21-1-1) may apply for a grant under IC 10-21-1-2(a)(1)(C)(viii) to purchase an automated external defibrillator (AED) if the school corporation, charter school, state accredited nonpublic school or accredited nonpublic school develops a venue specific emergency action plan for sudden cardiac arrest.

SECTION 141. IC 20-34-9 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Student and Parent Support Services Grant Program).

SECTION 142. IC 20-35-5-17, AS ADDED BY P.L.1-2005, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 17. ~~(a)~~ A teacher who:

(1) has not retained a status as a semipermanent, permanent, or nonpermanent teacher with a participating school corporation; and

(2) loses the teacher's job in a special education cooperative because of a reduction in services or discontinuance of the cooperative;

shall be considered for any job opening for which the teacher is qualified that occurs in any of the participating school corporations in the school year immediately following the reduction in services or discontinuance of the cooperative.

~~(b) A teacher employed under this section has the same rights and privileges as teachers employed under IC 20-26-10-5 and IC 20-26-10-6.~~

SECTION 143. IC 20-38-2-6 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 6. On or before July 1, 2027, and July 1 biennially thereafter, the education commission of the states shall submit a report~~



1 to the executive director of the legislative services agency; in an  
 2 electronic format under IC 5-14-6; for review by the interim committee  
 3 on government in accordance with IC 1-1-15.5-4 and IC 2-5-1.3-13(g).  
 4 The report shall describe:

5 (1) official action taken; and

6 (2) actionable items considered;

7 by the education commission of the states during the preceding two (2)  
 8 years.

9 SECTION 144. IC 20-40-1 IS REPEALED [EFFECTIVE JULY 1,  
 10 2026]. (Funds Established Outside IC 20-40).

11 SECTION 145. IC 20-40-18-7, AS AMENDED BY P.L.214-2025,  
 12 SECTION 198, IS AMENDED TO READ AS FOLLOWS  
 13 [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) This section sets forth an  
 14 exclusive list of the expenditures that may be made from the operations  
 15 fund under section 5(1) of this chapter, as set forth in the school  
 16 corporation's plan or amended plan.

17 (b) Subject to the expenditures that are identified in the school  
 18 corporation's plan or amended plan, the operations fund shall be used  
 19 for the following:

20 (1) Site acquisition.

21 (2) Site development.

22 (3) Building acquisition, construction, replacement, renovation,  
 23 remodeling, improvement, and maintenance, including building  
 24 materials and employment services described in subsection (c).

25 (4) Rental of real estate, buildings, facilities, and equipment.  
 26 However, the fund may not be used for payments authorized  
 27 under IC 20-47-2 and IC 20-47-3.

28 (5) To repair and replace buildings and to repair and replace  
 29 building fixtures that are:

30 (A) owned or leased by the school corporation; and

31 (B) of a type constituting loss capable of being covered by  
 32 casualty insurance.

33 (6) Purchase, lease, repair, or maintenance of equipment,  
 34 including maintenance vehicles to be used by the school  
 35 corporation. However, the fund may not be used to pay for the  
 36 following:

37 (A) The purchase, lease, repair, or maintenance of vehicles  
 38 that are not maintenance vehicles.

39 (B) Except as provided in subdivision (7), equipment to be  
 40 used primarily for interscholastic or extracurricular activities.

41 (7) Service contracts for janitorial and custodial services,  
 42 maintenance services, snow and ice removal services, trash



removal services, mowing and lawn care services, pest control services, and any other routine services normally required in the maintenance or upkeep of school facilities.

(8) Repair, replacement, or site acquisition that is necessitated by an emergency.

(9) Construction, repair, replacement, remodeling, or maintenance of a school sports facility. However, the maximum expenditures under this subdivision in a calendar year may not exceed two and seven-tenths percent (2.7%) of the property tax revenues levied for the fund in the calendar year.

(10) Utilities.

(11) Property and casualty insurance.

(12) Purchase, lease, upgrade, maintain, or repair technology that will not be allocated to student instruction and learning under IC 20-42.5, including the following:

(A) Computer hardware, computer software, wiring and computer networks, and communication access systems used to connect with computer networks or electronic gateways.

(B) Services of full-time or part-time computer maintenance employees.

(C) Conducting nonrecurring inservice technology training of school employees.

(D) Implementing the technology preparation curriculum.

(E) Participating in a program to provide educational technologies, including

(i) ~~computers in the homes of students (commonly referred to as "the buddy system project") under IC 20-20-13-6;~~

(ii) ~~the 4R's technology program;~~ or

(iii) any ~~other~~ program under the educational technology program described in ~~IC 20-20-13~~. **IC 20-20.5-6.**

(F) Obtaining any combination of equipment or services described in clauses (D) and (E).

(13) To pay advances, together with interest on the advances, from the common school fund for educational technology programs under IC 20-49-4.

(14) To pay for energy saving contracts entered into by a school corporation under IC 36-1-12.5.

(15) To maintain a joint school established with a school corporation in an adjacent state under IC 20-23-11 as is otherwise provided by law for maintaining the public schools in Indiana.

(16) To pay a judgment rendered against the school corporation, or rendered against an officer or employee of the school



corporation for which the school corporation is liable under IC 34-13-2, IC 34-13-3, or IC 34-13-4 (or IC 34-4-16.5, IC 34-4-16.6, or IC 34-4-16.7 before their repeal).

(17) To pay a claim or settlement for which the school corporation is liable under IC 34-13-2, IC 34-13-3, or IC 34-13-4 (or IC 34-4-16.5, IC 34-4-16.6, or IC 34-4-16.7 before their repeal).

(18) To pay a premium, management fee, claim, or settlement for which the school corporation is liable under a federal or state statute, including IC 22-3 and IC 22-4.

(19) To pay a settlement or claim for which insurance coverage is permitted under IC 20-26-5-4(a)(15).

(20) All other lawful expenses that are not expenses described in IC 20-40-2-4.

(21) To pay for expenses incurred as a result of unusual circumstances.

(c) The fund shall be used to pay for services of school corporation employees who perform services considered to be a skilled trade by the United States Department of Labor, Employment and Training Administration. For purposes of this subsection, skilled trade services do not include janitorial or comparable routine services normally provided in the daily operation of school facilities or equipment. Payment may be made for employee services only if the employees perform:

- (1) construction of;
- (2) renovation of;
- (3) remodeling of;
- (4) repair of; or
- (5) maintenance on;

the facilities and equipment of the school corporation.

SECTION 146. IC 20-40-18-8, AS AMENDED BY P.L.162-2024, SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. (a) A school corporation shall use the operations fund to pay the transportation costs attributable to transportation of school children as specified in subsection (b).

(b) Only the following costs are payable from the fund:

- (1) Salaries paid to bus drivers, transportation supervisors, mechanics and garage employees, clerks, and other transportation related employees.
- (2) Contracted transportation services.
- (3) Wages of independent contractors.
- (4) Contracts with common carriers.
- (5) Student fares.



(6) Transportation related insurance.

(7) Transportation of school children to:

(A) an apprenticeship program (as defined in IC 20-43-8-0.3);

(B) a career and technical education (as defined in ~~IC 20-20-38-1~~) **IC 20-20.5-10-1**) program;

(C) a modern youth apprenticeship (as defined in IC 20-51.4-2-9.5); and

(D) a work based learning course (as defined in IC 20-43-8-0.7).

(8) Other expenses of operating the school corporation's transportation service, including gasoline, lubricants, tires, repairs, contracted repairs, parts, supplies, equipment, and other related expenses.

(c) Percentages or parts of salaries of teaching personnel or principals are not attributable to transportation. However, parts of salaries of instructional aides who are assigned to assist with the school transportation program are attributable to transportation. The costs described in this subsection (other than instructional aide costs) may not be budgeted for payment or paid from the fund.

(d) Costs for a calendar year are those costs attributable to transportation for students during the school year ending in the calendar year.

SECTION 147. IC 20-40-18-10.5, AS AMENDED BY P.L.68-2025, SECTION 214, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10.5. (a) This section applies only to eligible charter schools that receive amounts distributed under IC 20-46-8-11.2 or IC 20-46-8-12.

(b) For purposes of this section, "charter board" means the governing body of the organizer (as defined in IC 20-24-1-7) of an eligible charter school.

(c) The operations fund may be used only to do the following:

(1) Carry out a capital projects plan under the following conditions:

(A) The plan must include all proposed expenditures that exceed ten thousand dollars (\$10,000) and are for:

(i) capital assets; or

(ii) projects that are considered capital in nature, including technology related projects.

(B) If a charter school wants to use money in the operations fund during the year to pay for any items listed in clause (E) that are considered capital in nature, the charter board must approve a plan following a public hearing. The charter school



1 shall post the proposed plan or proposed amended plan on the  
 2 charter school's website before the hearing. The charter school  
 3 shall submit the proposed capital projects plan to the  
 4 department of local government finance's computer gateway  
 5 at least ten (10) days before the public hearing. The  
 6 department of local government finance shall make the  
 7 proposed plan available at least ten (10) days before the  
 8 hearing, through the department's computer gateway. If an  
 9 amendment to a capital projects plan is proposed, the charter  
 10 board must declare the nature of and need for the amendment  
 11 in the plan amendment.

12 (C) If a charter board adopts a plan under clause (B), the  
 13 charter school must then submit the plan to the department of  
 14 local government finance for inclusion on the department's  
 15 computer gateway not later than thirty (30) days after adoption  
 16 of the plan. The department of local government finance shall  
 17 immediately make the proposed plan available through the  
 18 gateway website.

19 (D) This clause applies to an amendment to a plan that is  
 20 required because of an emergency that results in costs that  
 21 exceed the amount accumulated in the fund for repair,  
 22 replacement, or site acquisition that is necessitated by an  
 23 emergency. The charter board is not required to comply with  
 24 clause (C). If the charter board determines that an emergency  
 25 exists, the governing body may adopt an amendment to the  
 26 plan. An amendment to a plan is not subject to the deadline  
 27 and procedures for adoption of a plan described in this  
 28 subdivision.

29 (E) This clause sets forth an exclusive list of the expenditures  
 30 that may be made from the operations fund under clause (B),  
 31 as set forth in the charter board's plan or amended plan.  
 32 Subject to the expenditures that are identified in the charter  
 33 school's plan or amended plan, the operations fund shall be  
 34 used for the following:

- 35 (i) Site acquisition.
- 36 (ii) Site development.
- 37 (iii) Building acquisition, construction, replacement,  
 38 renovation, remodeling, improvement, and maintenance,  
 39 including building materials and employment services.
- 40 (iv) Rental of real estate, buildings, facilities, and  
 41 equipment.
- 42 (v) To repair and replace buildings and to repair and replace





1 building fixtures that are owned or leased by the charter  
 2 school and of a type constituting loss capable of being  
 3 covered by casualty insurance.

4 (vi) Purchase, lease, repair, or maintenance of equipment,  
 5 including maintenance vehicles to be used by the charter  
 6 school. However, the fund may not be used to pay for the  
 7 purchase, lease, repair, or maintenance of vehicles that are  
 8 not maintenance vehicles, or equipment to be used primarily  
 9 for interscholastic or extracurricular activities.

10 (vii) Service contracts for janitorial and custodial services,  
 11 maintenance services, snow and ice removal services, trash  
 12 removal services, mowing and lawn care services, pest  
 13 control services, and any other routine services normally  
 14 required in the maintenance or upkeep of charter school  
 15 facilities.

16 (viii) Repair, replacement, or site acquisition that is  
 17 necessitated by an emergency.

18 (ix) Construction, repair, replacement, remodeling, or  
 19 maintenance of a school sports facility.

20 (x) Utilities.

21 (xi) Property and casualty insurance.

22 (xii) Purchase, lease, upgrade, maintenance, or repair  
 23 technology that will not be allocated to student instruction  
 24 and learning, to include computer hardware, computer  
 25 software, wiring and computer networks, and  
 26 communication access systems used to connect with  
 27 computer networks or electronic gateways; services of  
 28 full-time or part-time computer maintenance employees;  
 29 conducting nonrecurring inservice technology training of  
 30 school employees; implementing the technology preparation  
 31 curriculum; participating in a program to provide  
 32 educational technologies, ~~including computers in the homes~~  
 33 ~~of students (commonly referred to as "the buddy system~~  
 34 ~~project") under IC 20-20-13-6, the 4R's technology program,~~  
 35 ~~or any other program under the educational technology~~  
 36 ~~program described in IC 20-20-13; IC 20-20.5-6; and~~  
 37 obtaining any combination of equipment or services in the  
 38 preceding two (2) categories of this item.

39 (xiii) Services of charter school employees who perform  
 40 services considered to be a skilled trade by the United States  
 41 Department of Labor, Employment and Training  
 42 Administration. For purposes of this item, skilled trade



- 1 services do not include janitorial or comparable routine  
 2 services normally provided in the daily operation of school  
 3 facilities or equipment. Payment may be made for employee  
 4 services only if the employees perform construction of,  
 5 renovation of, remodeling of, repair of, or maintenance on  
 6 the facilities and equipment of the charter school.
- 7 (2) Pay transportation costs under the following conditions:
- 8 (A) A charter school shall use the operations fund to pay the  
 9 transportation costs attributable to transportation of school  
 10 children as specified in clause (B).
- 11 (B) Only the following costs are payable from the fund:
- 12 (i) Salaries paid to bus drivers, transportation supervisors,  
 13 mechanics and garage employees, clerks, and other  
 14 transportation related employees.
- 15 (ii) Contracted transportation services.
- 16 (iii) Wages of independent contractors.
- 17 (iv) Contracts with common carriers.
- 18 (v) Student fares.
- 19 (vi) Transportation related insurance.
- 20 (vii) Other expenses of operating the school corporation's  
 21 transportation service, including gasoline, lubricants, tires,  
 22 repairs, contracted repairs, parts, supplies, equipment, and  
 23 other related expenses.
- 24 (C) Percentages or parts of salaries of teaching personnel or  
 25 principals are not attributable to transportation. However, parts  
 26 of salaries of instructional aides who are assigned to assist  
 27 with the school transportation program are attributable to  
 28 transportation. The costs described in this clause (other than  
 29 instructional aide costs) may not be budgeted for payment or  
 30 paid from the fund.
- 31 (D) Costs for a calendar year are those costs attributable to  
 32 transportation for students during the school year ending in the  
 33 calendar year.
- 34 (3) Carry out a school bus replacement plan approved by the  
 35 charter school board under the following conditions:
- 36 (A) Before a charter school may use money in the operations  
 37 fund for replacing school buses, a resolution approving the  
 38 school bus replacement plan or amended plan must be  
 39 submitted to the department of local government finance.
- 40 (B) The department of local government finance shall  
 41 prescribe the format of the plan. A plan must apply to at least  
 42 the five (5) budget years immediately following the year the



1 plan is adopted and include at least an estimate for each year  
 2 to which it applies of the nature and amount of proposed  
 3 expenditures from the fund, and if the school corporation is  
 4 seeking to acquire or contract for transportation services that  
 5 will provide additional school buses or school buses with a  
 6 larger seating capacity as compared with the number and type  
 7 of school buses from the prior school year, evidence of a  
 8 demand for increased transportation services within the school  
 9 corporation. However, the evidence requirement regarding a  
 10 contract for transportation services does not apply if contracted  
 11 transportation services are not paid from the fund.

12 (C) If the charter school is seeking to require a contractor to  
 13 replace a school bus, evidence that the need exists for the  
 14 replacement of the school bus. This clause does not apply if  
 15 contracted transportation services are not paid from the  
 16 operations fund.

17 (D) Evidence that the charter school that seeks to acquire  
 18 additional school buses under this subdivision is acquiring or  
 19 contracting for the school buses only for the purposes  
 20 specified in clause (B) or for replacement purposes.

21 (E) If a charter school wants to use money in the operations  
 22 fund during the year to pay for school bus replacement, the  
 23 governing body must adopt a resolution approving the bus  
 24 replacement plan or amended plan. The charter school shall  
 25 post the proposed plan or proposed amended plan on the  
 26 charter school's website before the hearing. The governing  
 27 body must hold a hearing on the adoption of the plan. The  
 28 charter school shall submit the proposed school bus  
 29 replacement plan or amended plan to the department of local  
 30 government finance's computer gateway at least ten (10) days  
 31 before the hearing on the adoption of the plan. The department  
 32 of local government finance shall make the proposed plan  
 33 available to taxpayers, at least ten (10) days before the hearing,  
 34 through the department's computer gateway. If an amendment  
 35 to a bus replacement plan is being proposed, the charter school  
 36 must declare the nature of and the need for the amendment in  
 37 the resolution to adopt the amendment to the plan.

38 (4) Pay expenses that are allocated to overhead and operational  
 39 expenditures.

40 (5) Establish, maintain, and equip a public playground.

41 SECTION 148. IC 20-42.5-2-0.5, AS ADDED BY P.L.126-2017,  
 42 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE

**EH 1004—LS 6983/DI 110**



JULY 1, 2026]: Sec. 0.5. As used in this chapter, "applicable nonpublic school" has the meaning set forth in ~~IC 20-20-1-0.5~~. **IC 20-20.5-1-1.**

SECTION 149. IC 20-42.5-2-4, AS AMENDED BY P.L.126-2017, SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Educational service centers established under ~~IC 20-20-1~~ **IC 20-20.5-1** shall support and facilitate actions by school corporations and charter schools under this article, including by the use of an educational service center's existing cooperative agreements.

(b) School corporations, charter schools, and educational service centers may use the division of finance of the department and the office of management and budget to provide technical assistance under this article.

(c) Not later than August 31 of each year, the educational service centers shall report to the state board the results of the efforts of the educational service centers under this article during the preceding school year.

SECTION 150. IC 20-42.5-3-5, AS AMENDED BY P.L.130-2018, SECTION 90, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. (a) For each school year using the 2005-2006 school year as a baseline:

(1) the office of management and budget shall analyze and report to the state board, the governor, and the general assembly concerning the progress or lack of progress of each school corporation; of all school corporations in each educational service center's area; and in Indiana as a whole in improving the ratio of student instructional expenditures to all other expenditures for the previous school year; **and**

(2) the state board shall recognize publicly each school corporation and educational service center that has an improved ratio of student instructional expenditures to all other expenditures during the previous school year;

(3) the office of management and budget and the division of finance of the department shall be available to consult with and provide technical assistance to each school corporation that did not have an improved ratio of student instructional expenditures to all other expenditures during the previous school year; **and**

~~(4)~~ **(2)** each school corporation shall **submit a report or make available to the department in a form and manner determined by the department** the following information to the public in the school corporation's annual performance report and to the members of the general assembly whose districts include the



1 school corporation:

2 ~~(A)~~ the percentage of resources spent by the school  
3 corporation during the previous school year on each of the  
4 following categories of expenditures:

5 ~~(i)~~ **(A)** Student academic achievement expenditures.

6 ~~(ii)~~ **(B)** Student instructional support expenditures.

7 ~~(iii)~~ **(C)** Overhead and operational expenditures.

8 ~~(iv)~~ **(D)** Nonoperational expenditures.

9 ~~(B)~~ The trend line for each category described in clause (A).

10 ~~(C)~~ Whether the school corporation did or did not make  
11 progress in improving the ratio of student instructional  
12 expenditures to all other expenditures during the previous  
13 school year.

14 (b) The reports to the general assembly under subsection (a)(1) ~~and~~  
15 ~~to individual members of the general assembly under subsection (a)(4)~~  
16 must be submitted to the executive director of the legislative services  
17 agency in an electronic format under IC 5-14-6.

18 SECTION 151. IC 20-42.5-3-7, AS AMENDED BY P.L.130-2018,  
19 SECTION 91, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
20 JULY 1, 2026]: Sec. 7. (a) The chart of accounts used by school  
21 corporations must:

22 (1) coincide with the categories of expenditures described in  
23 section ~~5(a)(4)(A)~~ **5(a)(2)** of this chapter; and

24 (2) provide the ability to determine expenditures made at and for  
25 each individual school building of a school corporation.

26 Each school corporation shall ~~on January 1, 2019, begin using~~ **use** the  
27 chart of accounts developed under this section.

28 (b) The state board of accounts may, in consultation with the  
29 department and the office of management and budget, modify the chart  
30 of accounts as necessary to make the chart of accounts coincide with  
31 the categories of expenditures described in section ~~5(a)(4)(A)~~ **5(a)(2)**  
32 of this chapter.

33 SECTION 152. IC 20-42.5-4 IS REPEALED [EFFECTIVE JULY  
34 1, 2026]. (Emergency Measures to Maintain Instruction and Learning  
35 Programs).

36 SECTION 153. IC 20-43-8-7.5, AS AMENDED BY THE  
37 TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL  
38 ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
39 JULY 1, 2026]: Sec. 7.5. (a) The department of workforce development  
40 shall designate each career and technical education program as:

41 (1) an apprenticeship program;

42 (2) a cooperative education program;



- (3) a work based learning program;
- (4) a high value program;
- (5) a moderate value program;
- (6) a less than moderate value program;
- (7) an introductory program; or
- (8) a foundational career and technical education course.

The designation of career and technical education programs by the department of workforce development under this section must be reviewed and approved by the state board as provided in this section.

(b) Not later than December 1, 2019, and each December 1 thereafter, the department of workforce development shall designate each career and technical education program as:

- (1) an apprenticeship program;
- (2) a work based learning program;
- (3) a high value level 1 program;
- (4) a high value level 2 program;
- (5) a moderate value level 1 program;
- (6) a moderate value level 2 program;
- (7) a less than moderate value level 1 program;
- (8) a less than moderate value level 2 program;
- (9) a planning for college and career course; or
- (10) an introductory program.

The designation of career and technical education programs by the department of workforce development under this section must be reviewed and approved by the state board as provided in this section.

(c) If a new career and technical education program is created by rule, the department of workforce development shall determine the category in which the program is designated under subsection (a) or (b). A career and technical education program must be approved by the department of workforce development in order for a school corporation to be eligible to receive a grant amount for the career and technical education program under section 15 of this chapter.

(d) Not later than December 1 of each year, the department of workforce development shall provide a report to the state board that includes the following information:

- (1) A list of the career and technical education courses for the next school year that are designated by the department of workforce development under this section.
- (2) The labor market demand used to designate each career and technical education program under this section.
- (3) The average wage level used to designate each career and technical education program under this section.



(4) If applicable, the labor market demand and average wage level data for specific regions, counties, and municipalities.

(5) Any other information pertinent to the methodology used by the department of workforce development to designate each career and technical education program under this section.

(e) Not later than January 1 of each year, the state board shall review and approve the report provided by the department of workforce development under subsection (d) at a public meeting to ensure that the list of courses is in compliance with the long range state plan developed under ~~IC 20-20-38-4~~. **IC 20-20.5-10-4**. Not later than January 1 of each year, the state board shall send its determination to the department of workforce development. Upon receipt of the state board's determination, the department of workforce development shall provide the approved report to the department.

(f) The department of workforce development shall publish the approved report under subsection (e) on the department of workforce development's ~~Internet web site~~, **website**, including the following:

(1) The list of career and technical education programs that are designated by the department of workforce development under this section.

(2) The labor market demand used to designate each career and technical education program under this section.

(3) The average wage level used to designate each career and technical education program under this section.

(4) If applicable, the labor market demand and average wage level data for specific regions, counties, and municipalities.

(5) Any other information pertinent to the methodology used by the department of workforce development to designate each career and technical education program under this section.

In addition, the department shall notify all school corporations of the state board's approval of the report under subsection (e) and provide a link within the notice to the approved report published on the department of workforce development's ~~Internet web site~~ **website** under this subsection.

SECTION 154. IC 20-49-4-8, AS AMENDED BY P.L.189-2023, SECTION 44, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 8. The state board may advance money to school corporations and charter schools to be used for:

(1) school building construction programs; and

(2) ~~subject to IC 20-20-13-7~~, educational technology programs; as provided in this chapter.

SECTION 155. IC 21-13-1-5, AS AMENDED BY P.L.232-2025,



1 SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
2 JULY 1, 2026]: Sec. 5. "Fund":

3 (1) for purposes of IC 21-13-2, refers to the William A. Crawford  
4 minority teacher scholarship fund established by IC 21-13-2-1;

5 (2) for purposes of IC 21-13-4, refers to the National Guard  
6 tuition supplement program fund established by IC 21-13-4-1;

7 (3) for purposes of IC 21-13-5, refers to the National Guard  
8 scholarship extension fund established by IC 21-13-5-1;

9 ~~(4) for purposes of IC 21-13-6, refers to the primary care~~  
10 ~~physician loan forgiveness fund established by IC 21-13-6-3;~~

11 ~~(5)~~ (4) for purposes of IC 21-13-6.5, refers to the medical  
12 residency education fund established by IC 21-13-6.5-1; and

13 ~~(6)~~ (5) for purposes of IC 21-13-12, refers to the county deputy  
14 prosecuting attorney and public defender scholarship fund  
15 established by IC 21-13-12-6.

16 SECTION 156. IC 21-13-6 IS REPEALED [EFFECTIVE JULY 1,  
17 2026]. (Primary Care Physician Loan Forgiveness Program).

18 SECTION 157. IC 21-18-21-3, AS ADDED BY P.L.213-2025,  
19 SECTION 251, IS AMENDED TO READ AS FOLLOWS  
20 [EFFECTIVE JULY 1, 2026]: Sec. 3. The commission shall biennially  
21 prepare a plan for implementing postsecondary career and technical  
22 education programming after considering the long range state plan  
23 developed under ~~IC 20-20-38-4~~ **IC 20-20.5-10-4**. The commission  
24 shall submit the plan to the state board for its review and  
25 recommendations. The commission shall specifically report on how the  
26 plan addresses preparation for employment.

27 SECTION 158. IC 21-18-21-5, AS ADDED BY P.L.213-2025,  
28 SECTION 251, IS AMENDED TO READ AS FOLLOWS  
29 [EFFECTIVE JULY 1, 2026]: Sec. 5. The commission may make  
30 recommendations to the state board concerning the legislative budget  
31 requests prepared under ~~IC 20-20-38-12~~ **IC 20-20.5-10-12** by state  
32 educational institutions for state funds for career and technical  
33 education.

34 SECTION 159. IC 21-18.5-6-9 IS REPEALED [EFFECTIVE JULY  
35 1, 2026]. Sec. 9: The cost of performing a team onsite investigation for  
36 purposes of section 8 of this chapter shall be paid by the applicant  
37 postsecondary credit bearing proprietary educational institution.  
38 However, the total cost of an inspection, including room, board, and  
39 mileage that does not require travel outside Indiana, may not exceed  
40 one thousand dollars (\$1,000) for any one (1) postsecondary credit  
41 bearing proprietary educational institution.

42 SECTION 160. IC 21-38-1-9 IS REPEALED [EFFECTIVE JULY





1, 2026]. Sec. 9: "Endowment" refers to an endowment described in ~~IC 21-38-8-2.~~

SECTION 161. IC 21-38-1-13, AS ADDED BY P.L.2-2007, SECTION 279, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. "Fund",

(~~1~~) for purposes of IC 21-38-7, refers to the Indiana state teachers' retirement fund established by IC 5-10.4-2-1. ~~and~~

(~~2~~) for purposes of ~~IC 21-38-8~~, refers to the Indiana excellence in teaching endowment established under ~~IC 21-38-8-2.~~

SECTION 162. IC 21-38-1-14, AS ADDED BY P.L.2-2007, SECTION 279, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. "Fund member", for purposes of IC 21-38-7, means an individual who qualifies for membership in the fund described in section ~~13~~(~~1~~) **13** of this chapter under IC 5-10.4-4-1.

SECTION 163. IC 21-38-8 IS REPEALED [EFFECTIVE JULY 1, 2026]. (Indiana Excellence in Teaching Endowment).

SECTION 164. IC 21-42-3-6, AS ADDED BY P.L.94-2024, SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) The definitions in IC 20-18-2 apply throughout this section.

(b) This section applies to a high school that is:

- (1) a public school, including a charter school;
- (2) a state accredited nonpublic school; or
- (3) an eligible school (as defined in IC 20-51-1-4.7).

(~~c~~) If a high school submits to the commission for higher education an Indiana college core feasibility report under IC 20-30-5-25, the high school shall submit the report, in a manner prescribed by the commission for higher education, not later than October ~~1~~, 2024.

(~~d~~) (**c**) The commission for higher education, in collaboration with the department, shall:

- (1) review each feasibility report submitted by each high school; and
- (2) provide guidance to the applicable high school on removing any barriers that prevent or hinder the high school from offering the Indiana college core.

(~~e~~) Not later than December ~~1~~, 2025, the commission for higher education shall do the following:

(~~1~~) Prepare a report regarding the following:

- (A) The number of high schools that offer and the number of high schools that do not offer the Indiana college core.
- (B) The outcomes of students who earn the Indiana college



core:

(2) Submit the report prepared under subdivision (1) to the:

(A) governor; and

(B) legislative council in an electronic format under IC 5-14-6.

SECTION 165. IC 31-16-6-6, AS AMENDED BY P.L.263-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) The duty to support a child under this chapter, which does not include support for educational needs, ceases when the child becomes nineteen (19) years of age unless any of the following conditions occurs:

(1) The child is emancipated before becoming nineteen (19) years of age. In this case the child support, except for the educational needs outlined in section 2(a)(1) of this chapter, terminates at the time of emancipation, although an order for educational needs may continue in effect until further order of the court.

(2) The child is incapacitated. In this case the child support continues during the incapacity or until further order of the court.

(3) The child:

(A) is at least eighteen (18) years of age;

(B) has not attended a secondary school or postsecondary educational institution for the prior four (4) months and is not enrolled in a secondary school or postsecondary educational institution; and

(C) is or is capable of supporting himself or herself through employment.

In this case the child support terminates upon the court's finding that the conditions prescribed in this subdivision exist. However, if the court finds that the conditions set forth in clauses (A) through (C) are met but that the child is only partially supporting or is capable of only partially supporting himself or herself, the court may order that support be modified instead of terminated.

(4) The child is a full-time student in a secondary school (as defined in ~~IC 20-18-2-18(a)~~ **IC 20-18-2-18**) and a parent or guardian of the child files notice under subsection (c) advising the court that the child continues or will continue to be enrolled in secondary school. In this case, the child support:

(1) continues until; and

(2) terminates upon;

the child's graduation from secondary school.

(b) For purposes of determining if a child is emancipated under subsection (a)(1), if the court finds that the child:

(1) is on active duty in the United States armed services;



1 (2) has married; or  
 2 (3) is not under the care or control of:  
 3 (A) either parent; or  
 4 (B) an individual or agency approved by the court;  
 5 the court shall find the child emancipated and terminate the child  
 6 support.  
 7 (c) Notice under subsection (a)(4) must:  
 8 (1) be filed with the court and provided to each party to the child  
 9 support proceeding:  
 10 (A) not earlier than the date on which the child becomes  
 11 seventeen (17) years of age; and  
 12 (B) not later than the date on which the child becomes  
 13 nineteen (19) years of age; and  
 14 (2) include:  
 15 (A) proof of the child's enrollment; and  
 16 (B) the child's expected graduation date.  
 17 (d) If:  
 18 (1) a parent or guardian files a notice under subsection (a)(4); and  
 19 (2) an objection or request for a hearing is not filed by a party to  
 20 the child support proceeding not later than thirty (30) days after  
 21 the party receives the notice;  
 22 the court may, without holding a hearing, issue an order continuing  
 23 child support through the date on which the child is expected to  
 24 graduate.  
 25 (e) If a court has established a duty to support a child in a court  
 26 order issued before July 1, 2012, the:  
 27 (1) parent or guardian of the child; or  
 28 (2) child;  
 29 may file a petition for educational needs until the child becomes  
 30 twenty-one (21) years of age.  
 31 (f) If a court has established a duty to support a child in a court  
 32 order issued after June 30, 2012, the:  
 33 (1) parent or guardian of the child; or  
 34 (2) child;  
 35 may file a petition for educational needs until the child becomes  
 36 nineteen (19) years of age.  
 37 (g) If:  
 38 (1) an order was issued after June 30, 2012, that denied support  
 39 for educational needs to a child who was less than twenty-one  
 40 (21) years of age at the time the petition for educational needs  
 41 was filed; and  
 42 (2) support for educational needs was denied based on the fact



1           that the child was older than eighteen (18) years of age;  
 2 notwithstanding any other law, a parent or guardian of the child or the  
 3 child may file with the court a subsequent petition for educational  
 4 needs. The court shall consider the petition on the merits in accordance  
 5 with this section and may not consider the absence of subsection (e)  
 6 from law at the time of the initial filing.

7           SECTION 166. IC 33-24-6-3, AS AMENDED BY P.L.77-2025,  
 8 SECTION 10, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
 9 JULY 1, 2026]: Sec. 3. (a) The office of judicial administration shall  
 10 do the following:

11           (1) Examine the administrative and business methods and systems  
 12 employed in the offices of the clerks of court and other offices  
 13 related to and serving the courts and make recommendations for  
 14 necessary improvement.

15           (2) Collect and compile statistical data and other information on  
 16 the judicial work of the courts in Indiana. All justices of the  
 17 supreme court, judges of the court of appeals, judges of all trial  
 18 courts, and any city or town courts, whether having general or  
 19 special jurisdiction, court clerks, court reporters, and other  
 20 officers and employees of the courts shall, upon notice by the  
 21 chief administrative officer and in compliance with procedures  
 22 prescribed by the chief administrative officer, furnish the chief  
 23 administrative officer the information as is requested concerning  
 24 the nature and volume of judicial business. The information must  
 25 include the following:

26           (A) The volume, condition, and type of business conducted by  
 27 the courts.

28           (B) The methods of procedure in the courts.

29           (C) The work accomplished by the courts.

30           (D) The receipt and expenditure of public money by and for  
 31 the operation of the courts.

32           (E) The methods of disposition or termination of cases.

33           (3) Prepare and publish reports, not less than one (1) or more than  
 34 two (2) times per year, on the nature and volume of judicial work  
 35 performed by the courts as determined by the information  
 36 required in subdivision (2).

37           (4) Serve the judicial nominating commission and the judicial  
 38 qualifications commission in the performance by the commissions  
 39 of their statutory and constitutional functions.

40           (5) Administer the civil legal aid fund as required by IC 33-24-12.

41           (6) Administer the court technology fund established by section  
 42 12 of this chapter.



(7) By December 31, 2013, develop and implement a standard protocol for sending and receiving court data:

(A) between the protective order registry, established by IC 5-2-9-5.5, and county court case management systems;

(B) at the option of the prosecuting attorney, for:

(i) a prosecuting attorney's case management system;

(ii) a county court case management system; and

(iii) a county court case management system developed and operated by the office of judicial administration;

to interface with the electronic traffic tickets, as defined by IC 9-30-3-2.5; and

(C) between county court case management systems and the case management system developed and operated by the office of judicial administration.

The standard protocol developed and implemented under this subdivision shall permit private sector vendors, including vendors providing service to a local system and vendors accessing the system for information, to send and receive court information on an equitable basis and at an equitable cost, and for a case management system developed and operated by the office of judicial administration, must include a searchable field for the name and bail agent license number, if applicable, of the bail agent or a person authorized by the surety that pays bail for an individual as described in IC 35-33-8-3.2.

(8) Establish and administer an electronic system for receiving information that relates to certain individuals who may be prohibited from possessing a firearm for the purpose of:

(A) transmitting this information to the Federal Bureau of Investigation for inclusion in the NICS; and

(B) beginning July 1, 2021, compiling and publishing certain statistics related to the confiscation and retention of firearms as described under section 14 of this chapter.

(9) Establish and administer an electronic system for receiving drug related felony conviction information from courts. The office of judicial administration shall notify NPLeX of each drug related felony entered after June 30, 2012, and do the following:

(A) Provide NPLeX with the following information:

(i) The convicted individual's full name.

(ii) The convicted individual's date of birth.

(iii) The convicted individual's driver's license number, state personal identification number, or other unique number, if available.



- 1 (iv) The date the individual was convicted of the felony.  
 2 Upon receipt of the information from the office of judicial  
 3 administration, a stop sale alert must be generated through  
 4 NPLEx for each individual reported under this clause.  
 5 (B) Notify NPLEx if the felony of an individual reported under  
 6 clause (A) has been:  
 7 (i) set aside;  
 8 (ii) reversed;  
 9 (iii) expunged; or  
 10 (iv) vacated.  
 11 Upon receipt of information under this clause, NPLEx shall  
 12 remove the stop sale alert issued under clause (A) for the  
 13 individual.  
 14 (10) After July 1, 2018, establish and administer an electronic  
 15 system for receiving from courts felony or misdemeanor  
 16 conviction information for each felony or misdemeanor described  
 17 in ~~IC 20-28-5-8(e)~~ **IC 20-28-5-8(b)**. The office of judicial  
 18 administration shall notify the department of education at least  
 19 one (1) time each week of each felony or misdemeanor described  
 20 in ~~IC 20-28-5-8(e)~~ **IC 20-28-5-8(b)** entered after July 1, 2018,  
 21 and do the following:  
 22 (A) Provide the department of education with the following  
 23 information:  
 24 (i) The convicted individual's full name.  
 25 (ii) The convicted individual's date of birth.  
 26 (iii) The convicted individual's driver's license number, state  
 27 personal identification number, or other unique number, if  
 28 available.  
 29 (iv) The date the individual was convicted of the felony or  
 30 misdemeanor.  
 31 (B) Notify the department of education if the felony or  
 32 misdemeanor of an individual reported under clause (A) has  
 33 been:  
 34 (i) set aside;  
 35 (ii) reversed; or  
 36 (iii) vacated.  
 37 (11) Perform legal and administrative duties for the justices as  
 38 determined by the justices.  
 39 (12) Provide staff support for the judicial conference of Indiana  
 40 established in IC 33-38-9.  
 41 (13) Work with the United States Department of Veterans Affairs  
 42 to identify and address the needs of veterans in the court system.



(14) If necessary for purposes of IC 35-47-16-1, issue a retired judicial officer an identification card identifying the retired judicial officer as a retired judicial officer.

(15) Establish and administer the statewide juvenile justice data aggregation plan established under section 12.5 of this chapter.

(16) Create and make available an application for detention to be used in proceedings under IC 12-26-5 (mental health detention, commitment, and treatment).

(17) Create and make available a uniform form to assist a court in making an indigency determination under IC 35-33-7-6.5.

(18) Before July 1, 2025, establish and administer an electronic system for:

(A) receiving a request for a chronological case summary from; and

(B) transmitting a chronological case summary to; the state police department for purposes of expungement or sealing of records.

(b) All forms to be used in gathering data must be approved by the supreme court and shall be distributed to all judges and clerks before the start of each period for which reports are required.

(c) The office of judicial administration may adopt rules to implement this section.

SECTION 167. IC 34-13-3-3, AS AMENDED BY P.L.186-2025, SECTION 182, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) A governmental entity or an employee acting within the scope of the employee's employment is not liable if a loss results from the following:

(1) The natural condition of unimproved property.

(2) The condition of a reservoir, dam, canal, conduit, drain, or similar structure when used by a person for a purpose that is not foreseeable.

(3) The temporary condition of a public thoroughfare or extreme sport area that results from weather.

(4) The condition of an unpaved road, trail, or footpath, the purpose of which is to provide access to a recreation or scenic area.

(5) The design, construction, control, operation, or normal condition of an extreme sport area, if all entrances to the extreme sport area are marked with:

(A) a set of rules governing the use of the extreme sport area;

(B) a warning concerning the hazards and dangers associated with the use of the extreme sport area; and



- 1 (C) a statement that the extreme sport area may be used only
- 2 by persons operating extreme sport equipment.
- 3 This subdivision shall not be construed to relieve a governmental
- 4 entity from liability for the continuing duty to maintain extreme
- 5 sports areas in a reasonably safe condition.
- 6 (6) The initiation of a judicial or an administrative proceeding.
- 7 (7) The performance of a discretionary function; however, the
- 8 provision of medical or optical care as provided in IC 34-6-2.1-54
- 9 shall be considered as a ministerial act.
- 10 (8) The adoption and enforcement of or failure to adopt or
- 11 enforce:
- 12 (A) a law (including rules and regulations); or
- 13 (B) in the case of a public school or charter school, a policy;
- 14 unless the act of enforcement constitutes false arrest or false
- 15 imprisonment.
- 16 (9) An act or omission performed in good faith and without
- 17 malice under the apparent authority of a statute which is invalid
- 18 if the employee would not have been liable had the statute been
- 19 valid.
- 20 (10) The act or omission of anyone other than the governmental
- 21 entity or the governmental entity's employee.
- 22 (11) The issuance, denial, suspension, or revocation of, or failure
- 23 or refusal to issue, deny, suspend, or revoke any permit, license,
- 24 certificate, approval, order, or similar authorization, where the
- 25 authority is discretionary under the law.
- 26 (12) Failure to make an inspection, or making an inadequate or
- 27 negligent inspection, of any property, other than the property of
- 28 a governmental entity, to determine whether the property
- 29 complied with or violates any law or contains a hazard to health
- 30 or safety.
- 31 (13) Entry upon any property where the entry is expressly or
- 32 impliedly authorized by law.
- 33 (14) Misrepresentation if unintentional.
- 34 (15) Theft by another person of money in the employee's official
- 35 custody, unless the loss was sustained because of the employee's
- 36 own negligent or wrongful act or omission.
- 37 (16) Injury to the property of a person under the jurisdiction and
- 38 control of the department of correction if the person has not
- 39 exhausted the administrative remedies and procedures provided
- 40 by section 7 of this chapter.
- 41 (17) Injury to the person or property of a person under supervision
- 42 of a governmental entity and who is:





- 1 (A) on probation;
- 2 (B) assigned to an alcohol and drug services program under
- 3 IC 12-23, a minimum security release program under
- 4 IC 11-10-8, a pretrial conditional release program under
- 5 IC 35-33-8, or a community corrections program under
- 6 IC 11-12; or
- 7 (C) subject to a court order requiring the person to be escorted
- 8 by a county police officer while on or in a government
- 9 building (as defined in IC 36-9-13-3) owned by a county
- 10 building authority under IC 36-9-13, unless the injury is the
- 11 result of an act or omission amounting to:
- 12 (i) gross negligence;
- 13 (ii) willful or wanton misconduct; or
- 14 (iii) intentional misconduct.
- 15 (18) Design of a highway (as defined in IC 9-13-2-73), toll road
- 16 project (as defined in IC 8-15-2-4(4)), tollway (as defined in
- 17 IC 8-15-3-7), or project (as defined in IC 8-15.7-2-14) if the
- 18 claimed loss occurs at least twenty (20) years after the public
- 19 highway, toll road project, tollway, or project was designed or
- 20 substantially redesigned; except that this subdivision shall not be
- 21 construed to relieve a responsible governmental entity from the
- 22 continuing duty to provide and maintain public highways in a
- 23 reasonably safe condition.
- 24 (19) Development, adoption, implementation, operation,
- 25 maintenance, or use of an enhanced emergency communication
- 26 system.
- 27 (20) Injury to a student or a student's property by an employee of
- 28 a school corporation if the employee is acting reasonably under a:
- 29 (A) discipline policy adopted under IC 20-33-8-12; or
- 30 (B) restraint and seclusion plan adopted under ~~IC 20-20-40-14.~~
- 31 **IC 20-20.5-13-16.**
- 32 (21) An act or omission performed in good faith under the
- 33 apparent authority of a court order described in IC 35-46-1-15.1
- 34 or IC 35-46-1-15.3 that is invalid, including an arrest or
- 35 imprisonment related to the enforcement of the court order, if the
- 36 governmental entity or employee would not have been liable had
- 37 the court order been valid.
- 38 (22) An act taken to investigate or remediate hazardous
- 39 substances, petroleum, or other pollutants associated with a
- 40 brownfield (as defined in IC 13-11-2-19.3) unless:
- 41 (A) the loss is a result of reckless conduct; or
- 42 (B) the governmental entity was responsible for the initial



1 placement of the hazardous substances, petroleum, or other  
2 pollutants on the brownfield.

3 (23) The operation of an off-road vehicle (as defined in  
4 IC 14-8-2-185) by a nongovernmental employee, or by a  
5 governmental employee not acting within the scope of the  
6 employment of the employee, on a public highway in a county  
7 road system outside the corporate limits of a city or town, unless  
8 the loss is the result of an act or omission amounting to:

- 9 (A) gross negligence;  
10 (B) willful or wanton misconduct; or  
11 (C) intentional misconduct.

12 This subdivision shall not be construed to relieve a governmental  
13 entity from liability for the continuing duty to maintain highways  
14 in a reasonably safe condition for the operation of motor vehicles  
15 licensed by the bureau of motor vehicles for operation on public  
16 highways.

17 (24) Any act or omission rendered in connection with a request,  
18 investigation, assessment, or opinion provided under  
19 IC 36-9-28.7.

20 (b) This subsection applies to a cause of action that accrues during  
21 a period of a state disaster emergency declared under IC 10-14-3-12 to  
22 respond to COVID-19, if the state of disaster emergency was declared  
23 after February 29, 2020, and before April 1, 2022. A governmental  
24 entity or an employee acting within the scope of the employee's  
25 employment is not liable for an act or omission arising from COVID-19  
26 unless the act or omission constitutes gross negligence, willful or  
27 wanton misconduct, or intentional misrepresentation. If a claim  
28 described in this subsection is:

29 (1) a claim for injury or death resulting from medical malpractice;  
30 and

31 (2) not barred by the immunity provided under this subsection;  
32 the claimant is required to comply with all of the provisions of  
33 IC 34-18 (medical malpractice act).

34 SECTION 168. IC 34-30-2.1-269, AS ADDED BY P.L.105-2022,  
35 SECTION 12, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE  
36 JULY 1, 2026]: Sec. 269. ~~IC 20-20-40-15~~ **IC 20-20.5-13-17**  
37 (Concerning actions taken to promote student conduct under a restraint  
38 and seclusion plan).

39 SECTION 169. IC 35-50-10-1, AS AMENDED BY P.L.43-2021,  
40 SECTION 145, IS AMENDED TO READ AS FOLLOWS  
41 [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) As used in this section,  
42 "offense requiring license revocation" means an offense listed in



~~IC 20-28-5-8(c)~~: **IC 20-28-5-8(b)**.

(b) If an individual is or was a teacher in a school corporation, charter school, or nonpublic school and is convicted of an offense requiring license revocation, the judge who presided over the trial or accepted a plea agreement shall give written notice of the conviction to the secretary of education and the chief administrative officer of the school corporation, charter school, or nonpublic school, or, if the individual is employed in a public school, the superintendent of the school district in which the individual is employed.

(c) Notice under subsection (b) must occur not later than seven (7) days after the date the judgment is entered.

(d) The notification sent to a school or school district under subsection (b) must include only the felony for which the individual was convicted.

(e) If a judge later modifies the individual's sentence after giving notice under this section, the judge shall notify the school or the school district of the modification.

(f) After receiving a notification under subsection (b), the secretary of education shall initiate procedures to revoke the individual's license to teach.

SECTION 170. IC 36-1-7-13 IS REPEALED [EFFECTIVE JULY 1, 2026]. ~~Sec. 13: Whenever an agreement authorized by this chapter is between school corporations, teachers employed under the agreement have the same rights and privileges as teachers employed under IC 20-26-10-5, IC 20-26-10-6, and IC 20-26-10-7.~~

SECTION 171. [EFFECTIVE JULY 1, 2026] **(a) 512 IAC 4-1-3(b) is void. The publisher of the Indiana Administrative Code and Indiana Register shall remove this rule from the Indiana Administrative Code.**

**(b) This SECTION expires July 1, 2027.**



## COMMITTEE REPORT

Mr. Speaker: Your Committee on Education, to which was referred House Bill 1004, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 3, line 5, delete "IC 20-20.5-6-6." and insert "**IC 20-20.5-6-5.**".

Page 6, delete lines 26 through 42, begin a new paragraph and insert:

"SECTION 7. IC 10-21-1-2, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. (a) The Indiana secured school fund is established to provide:

(1) matching grants to school corporations, charter schools, and accredited nonpublic schools, where the matching grants may be used to:

(A) employ a school resource officer, employ a law enforcement officer, or enter into a contract or a memorandum of understanding with a:

- (i) local law enforcement agency;
- (ii) private entity; or
- (iii) nonprofit corporation;

to employ a school resource officer or a law enforcement officer;

(B) conduct:

- (i) a site vulnerability assessment of the buildings within a school corporation or the buildings that are operated by a charter school or accredited nonpublic school; or
- (ii) critical incident digital mapping of the buildings within a school corporation or the buildings that are operated by a charter school or accredited nonpublic school;

(C) purchase equipment, hardware, materials, and technology to:

- (i) restrict access to school property and classrooms;
- (ii) assist with visitor management on school property;
- (iii) expedite notification of first responders;
- (iv) expedite access to school property for first responders;
- (v) provide school staff with information about the open or closed status of interior and exterior doors;
- (vi) detect fire, chemical, visual, or audible threats;
- (vii) enhance emergency communications inside the



building; or

(viii) assist with emergency medical response on school property;

(D) implement a student and parent support services plan; ~~as described in IC 20-34-9;~~

(E) purchase or provide training for a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees and the canine shall:

(i) be primarily assigned to a school corporation, charter school, or accredited nonpublic school;

(ii) be primarily assigned to a school resource officer or law enforcement officer described in clause (A) who has received appropriate training for handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees, including training regarding handling a canine in a school setting; and

(iii) receive continuous training as appropriate;

(F) provide funding for school employees to receive training, including expenses for per diem, travel, and lodging, related to:

(i) site vulnerability assessments;

(ii) mental health or behavioral health threat assessments;

(iii) multi-disciplinary threat assessment teams; or

(iv) emergency preparedness or response activities;

(G) provide funding for school resource officers or law enforcement officers described in clause (A) to receive training, including expenses for per diem, travel, and lodging, related to handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees;

(H) purchase student safety management technology;

(I) design and construct additions or renovations on school property if the primary purpose of the construction project is to enhance the physical security of the school building; **or**

(J) implement a bullying prevention program; **or and**

~~(K) develop, implement, and carry out a Stop the Bleed program required by IC 20-34-3-24, including for the purchase of bleeding control kits; and~~

(2) one (1) time grants to enable school corporations, charter schools, and accredited nonpublic schools with the sheriff for the



county in which the school corporation, charter school, or accredited nonpublic school is located, to provide the initial set up costs for an active event warning system.

(b) A school corporation or charter school may use money received under a matching grant for a purpose listed in subsection (a) to provide a response to a threat in a manner that the school corporation or charter school sees fit, including firearms training or other self-defense training.

(c) The fund shall be administered by the department of homeland security.

(d) The fund consists of:

- (1) appropriations from the general assembly;
- (2) federal grants;
- (3) amounts deposited from any other public or private source; and
- (4) amounts deposited under IC 33-37-9-4.

(e) The expenses of administering the fund shall be paid from money in the fund.

(f) The treasurer of state shall invest the money in the fund not currently needed to meet the obligations of the fund in the same manner as other public money may be invested. Interest that accrues from these investments shall be deposited in the fund.

(g) Money in the fund at the end of a state fiscal year does not revert to the state general fund.

SECTION 8. IC 10-21-1-4, AS AMENDED BY P.L.150-2023, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The board may award a matching grant to enable a school corporation, charter school, or accredited nonpublic school (or a coalition of schools applying jointly) to:

(1) employ a school resource officer, employ a law enforcement officer, or enter into a contract or memorandum of understanding with a:

- (A) local law enforcement agency;
- (B) private entity; or
- (C) nonprofit corporation;

to employ a school resource officer or a law enforcement officer;

(2) conduct a site vulnerability assessment of the buildings within a school corporation or the buildings that are operated by a charter school or accredited nonpublic school;

(3) conduct critical incident digital mapping of the buildings within a school corporation or the buildings that are operated by a charter school or accredited nonpublic school;



- (4) purchase equipment, hardware, materials, and technology to:
  - (A) restrict access to school property and classrooms;
  - (B) assist with visitor management on school property;
  - (C) expedite notification of first responders;
  - (D) expedite access to school property for first responders;
  - (E) provide staff with information about open or closed status of interior and exterior doors;
  - (F) detect fire, chemical, visual, or audible threats;
  - (G) enhance emergency communications inside the school building; ~~or~~
  - (H) assist with emergency medical response on school property; **or**
  - (I) monitor areas of school property used for student seclusion (as defined in IC 20-20.5-13-9) or time-out (as defined in IC 20-20.5-13-10) with audiovisual devices;**
- (5) implement a student and parent support services plan; ~~in the manner set forth in IC 20-34-9;~~
- (6) purchase or provide training for a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees and the canine shall:
  - (A) be primarily assigned to a school corporation, charter school, or accredited nonpublic school;
  - (B) be primarily assigned to a school resource officer or law enforcement officer described in subdivision (1)(A) who has received appropriate training for handling a canine trained to detect drugs and illegal substances, explosives, or firearms, or to otherwise provide protection for students and school employees, including training regarding handling a canine in a school setting; and
  - (C) receive continuous training as appropriate;
- (7) provide funding for:
  - (A) school employees to receive training, including expenses for per diem, travel, and lodging, related to:
    - (i) site vulnerability assessments;
    - (ii) mental health or behavioral health threat assessments;
    - (iii) multi-disciplinary threat assessment teams; or
    - (iv) emergency preparedness or response activities; or
  - (B) school resource officers or law enforcement officers described in subdivision (1)(A) to receive training, including expenses for per diem, travel, and lodging, related to handling a canine trained to detect drugs and illegal substances,



explosives, or firearms, or to otherwise provide protection for students and school employees;

(8) design and construct additions or renovations on school property if the primary purpose of the construction project is to enhance the physical security of the school building;

(9) provide one (1) time grants to enable school corporations, charter schools, and accredited nonpublic schools with the sheriff for the county in which the school corporation, charter school, or accredited nonpublic school is located to provide the initial set up costs for an active event warning system;

(10) implement a bullying prevention program; or

(11) purchase student safety management technology;

in accordance with section 2(a) of this chapter.

(b) A matching grant awarded to a school corporation, charter school, or accredited nonpublic school (or a coalition of schools applying jointly) may not exceed the lesser of the following during a two (2) year period beginning on or after May 1, 2013:

(1) The total cost of the program established by the school corporation, charter school, or accredited nonpublic school (or the coalition of schools applying jointly).

(2) Except as provided in subsection (d), the following amounts:

(A) Thirty-five thousand dollars (\$35,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of at least one (1) and less than one thousand one (1,001) students; and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(B) Fifty thousand dollars (\$50,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of more than one thousand (1,000) and less than five thousand one (5,001) students; and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(C) Seventy-five thousand dollars (\$75,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

(i) has an ADM of more than five thousand (5,000) and less than fifteen thousand one (15,001) students; and

(ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.





(D) One hundred thousand dollars (\$100,000) per year, in the case of a school corporation, charter school, or accredited nonpublic school that:

- (i) has an ADM of more than fifteen thousand (15,000); and
- (ii) is not applying jointly with any other school corporation, charter school, or accredited nonpublic school.

(E) One hundred thousand dollars (\$100,000) per year, in the case of a coalition of schools applying jointly.

(c) Except as provided in subsection (d), the match requirement for a grant under this chapter is based on the ADM for the school corporation, charter school, or accredited nonpublic school (or coalition of schools applying jointly) that is the subject of the grant as follows:

- (1) For a school corporation, charter school, or accredited nonpublic school with an ADM of less than five hundred one (501) students, the grant match must be twenty-five percent (25%) of the grant amount described in subsection (b).
- (2) For a school corporation, charter school, or accredited nonpublic school with an ADM of more than five hundred (500) and less than one thousand one (1,001) students, the grant match must be fifty percent (50%) of the grant amount described in subsection (b).
- (3) For a school corporation, charter school, or accredited nonpublic school with an ADM of more than one thousand (1,000) students or a coalition of schools applying jointly, the grant match must be one hundred percent (100%) of the grant amount described in subsection (b).

(d) A school corporation, charter school, or accredited nonpublic school may be eligible to receive a grant of up to:

- (1) one hundred thousand dollars (\$100,000) if:
  - (A) the school corporation, charter school, or accredited nonpublic school receives a grant match of one hundred percent (100%) of the requested grant amount; and
  - (B) the board approves the grant request; or
- (2) for a school corporation, charter school, or accredited nonpublic school described in subsection (c)(1) or (c)(2), a grant of up to fifty thousand dollars (\$50,000) if:
  - (A) the school corporation, charter school, or accredited nonpublic school receives a grant match of fifty percent (50%) of the requested grant amount; and
  - (B) the board approves the grant request.

(e) A school corporation, charter school, or accredited nonpublic school may receive only one (1) matching grant under this section each



year.

(f) The board may not award a grant to a school corporation, charter school, or accredited nonpublic school under this section unless the school corporation, charter school, or accredited nonpublic school is in a county that has a county school safety commission, as described in section 12 of this chapter."

Delete pages 7 through 11.

Page 12, delete lines 1 through 18.

Page 19, delete lines 26 through 40, begin a new paragraph and insert:

"SECTION 20. IC 20-19-3-10, AS ADDED BY P.L.83-2010, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 10. (a) The department, in collaboration with organizations that have expertise in dating violence, domestic violence, and sexual abuse, shall identify or develop:

(1) model dating violence educational materials; and

(2) a model for dating violence response policies and reporting.

~~Not later than July 1, 2011,~~ The department shall make the models developed or identified under this section available to assist schools with the implementation of dating violence education programs in grades 6 through 12 and dating violence response policies.

(b) The model dating violence policy identified or developed under subsection (a) may include the following topics:

(1) Warning signs of dating violence.

(2) The basic principles of dating violence prevention.

(3) Methods of parental education and outreach."

Page 30, line 17, after "remediation" insert "**or enrichment**".

Page 34, delete lines 19 through 24.

Page 34, line 25, delete "3." and insert "**2.**".

Page 34, line 29, delete "4." and insert "**3.**".

Page 35, line 26, delete "5." and insert "**4.**".

Page 35, line 30, delete "6." and insert "**5.**".

Page 35, line 34, delete "7." and insert "**6.**".

Page 35, line 37, delete "8." and insert "**7.**".

Page 80, line 36, delete "IC 20-20.5-6-4." and insert "**IC 20-20.5-6-3.**".

Page 84, between lines 8 and 9, begin a new paragraph and insert:

"SECTION 45. IC 20-26-4-3, AS AMENDED BY P.L.233-2015, SECTION 93, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3. (a) Regular meetings must be held by each governing body at a time and place established by resolution of the board or may be incorporated in the rules provided in IC 20-26-5-4. A



notice need not be given **to** a member for holding or taking any action at a regular meeting.

(b) If a meeting is held according to a procedure set forth by statute or rule and if publication of notice of the meeting is required, notice of the meeting is not required and need not be given **to** a member for holding or taking any action at the meeting contemplated by the notice. The meeting must be held at the time and place specified in the published notice.

(c) Special meetings of a governing body must be held on call by the governing body's president or by the superintendent of the school corporation. The call must be evidenced by a written notice specifying the date, time, and place of the meeting, delivered to each member personally or sent by mail or telegram so that each member has at least seventy-two (72) hours notice of the special meeting. Special meetings must be held at the regular meeting place of the board.

(d) All meetings of a governing body must be open to the public to the extent required by IC 5-14-1.5. The governing body shall comply with IC 5-14-1.5.

(e) If notice of a meeting is required and each member of a governing body has waived notice of the meeting, as provided in this subsection, notice of the meeting is not necessary. Waiver of notice of a meeting by a member consists of the following:

- (1) The member's presence at the meeting.
- (2) The member's execution of a written notice waiving the date, time, and place of the meeting, executed either before or after the meeting. If a waiver specifies that the waiver was executed before the meeting, third persons are entitled to rely on the statement.

(f) At a meeting of the governing body, a majority of the members constitutes a quorum. Action may not be taken unless a quorum is present. Except where a larger vote is required by statute or rule with respect to any matter, a majority of the members present may adopt a resolution or take any action.

(g) All meetings of the governing body for the conduct of business must be held within the school corporation, except as follows:

- (1) Meetings may be held at the administrative offices of the school corporation if the offices are outside the geographic limits of the school corporation but are within a county where all or a part of the school corporation is located.
- (2) Meetings may be held at a place where the statute or rule according to which a statutory meeting is held permits meeting outside the school corporation. ~~as may occur when the meeting is held jointly with another governing body.~~



**(3) Meetings held jointly with another governing body may be held within the boundaries of one (1) of the school corporations.**

(h) A governing body may hold up to two (2) training sessions each year outside the school corporation. The sessions may be conducted as executive sessions under IC 5-14-1.5."

Page 112, between lines 35 and 36, begin a new paragraph and insert:

"SECTION 92. IC 20-28-5-13, AS AMENDED BY P.L.90-2011, SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. (a) This section applies to an examination required for teacher licensure under this chapter.

(b) If an individual does not demonstrate the level of proficiency required to receive a license on all or a part of an examination, the examination's scorer must provide the individual with the individual's test scores, **including subscores for each area tested.**"

Page 132, delete lines 26 through 40, begin a new line block indented and insert:

**"(8) The student participates in a scheduled competition, exhibition, or event offered by:**

- (A) the National FFA Organization;**
- (B) the Indiana FFA Association; or**
- (C) a 4-H club.**

**However, the number of excused absences a student may receive under this subdivision may not exceed a total of six (6) instructional days in a school year."**

Page 133, line 10, delete "(a)(10)" and insert **"(a)(8)"**.

Page 139, delete lines 16 through 42, begin a new paragraph and insert:

"SECTION 140. IC 20-34-8-9, AS AMENDED BY P.L.232-2025, SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 9. (a) This section applies to:

- (1) a head coach or assistant coach who coaches an athletic activity;
- (2) a marching band leader;
- (3) a drama or musical leader; or
- (4) a leader of an extracurricular activity in which students have an increased risk of sudden cardiac arrest activity as determined by the department in consultation with an organization that specializes in the prevention of sudden cardiac arrest.

(b) An individual described in subsection (a) shall complete the sudden cardiac arrest training course offered by a provider approved by



the department in a manner specified by the state board under IC 20-28-5.5-1 or IC 20-28-5.5-1.5.

(c) An individual described in subsection (a) who complies with this section and provides coaching or leadership services in good faith is not personally liable for damages in a civil action as a result of a sudden cardiac arrest incurred by an applicable student participating in an event in which students have an increased risk of sudden cardiac arrest for which the head coach, assistant coach, marching band leader, drama or musical leader, or other applicable leader provided coaching or leadership services, except for an act or omission by the individual described in subsection (a) that constitutes gross negligence or willful or wanton misconduct.

(d) An individual described in subsection (a) shall ensure that an operational automated external defibrillator (AED) is present:

- (1) ~~at each event~~ **events** in which students have an increased risk of sudden cardiac arrest for which the individual described in subsection (a) is providing coaching or leadership; **and**
- (2) as specified in the venue specific emergency action plan for sudden cardiac arrest developed by a school corporation, charter school, or state accredited nonpublic school under subsection (f).**

(e) At each event in which students have an increased risk of sudden cardiac arrest, an individual described in subsection (a) shall inform all individuals who are coaching or providing leadership at the event in which students have an increased risk of sudden cardiac arrest of the location of the automated external defibrillator (AED).

(f) A school corporation, charter school, and state accredited nonpublic school shall do the following:

- (1) Develop a venue specific emergency action plan for sudden cardiac arrest that includes:
  - (A) elements recommended by the American Heart Association, Heart Safe Schools Program, or another similar nationally recognized evidence based program; **and**
  - (B) the number and location of automated external defibrillators (AED) that are required to be present at events in which students have an increased risk of sudden cardiac arrest.**
- (2) Share the plan described in subdivision (1) with each individual described in subsection (a).
- (3) Before the beginning of the season of each event in which students have an increased risk of sudden cardiac arrest, share the plan described in subdivision (1) with all applicable students.



(g) A school corporation, a charter school, a state accredited nonpublic school or an accredited nonpublic school (as defined in IC 10-21-1-1) may apply for a grant under IC 10-21-1-2(a)(1)(C)(viii) to purchase an automated external defibrillator (AED) if the school corporation, charter school, state accredited nonpublic school or accredited nonpublic school develops a venue specific emergency action plan for sudden cardiac arrest."

Page 140, delete lines 1 through 25.

Page 164, delete lines 20 through 23.

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1004 as introduced.)

BEHNING

Committee Vote: yeas 11, nays 1.

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#### HOUSE MOTION

Mr. Speaker: I move that House Bill 1004 be amended to read as follows:

Page 105, delete lines 26 through 30, begin a new paragraph and insert:

"SECTION 79. IC 20-26-12-23, AS AMENDED BY P.L.244-2017, SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 23. A school corporation may:

(1) borrow money to buy ~~curricular materials;~~ **student issued hardware, including laptop computers, that may be necessary for accessing curriculum;** and

(2) issue notes, maturing serially in not more than four (4) years and payable from its education fund, to secure the loan."

Page 166, after line 41, begin a new paragraph and insert:

"SECTION 173. [EFFECTIVE JULY 1, 2026] **(a) 512 IAC 4-1-3(b) is void. The publisher of the Indiana Administrative Code and Indiana Register shall remove this rule from the Indiana Administrative Code.**

**(b) This SECTION expires July 1, 2027."**



(Reference is to HB 1004 as printed January 22, 2026.)

BEHNING

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HOUSE MOTION

Mr. Speaker: I move that House Bill 1004 be amended to read as follows:

Page 139, delete lines 35 through 42.

Page 140, delete lines 1 through 25.

Page 156, delete lines 29 through 42.

Page 157, delete lines 1 through 5.

Page 165, delete lines 40 through 42.

Page 166, delete lines 1 through 12.

Renumber all SECTIONS consecutively.

(Reference is to HB 1004 as printed January 22, 2026.)

CASH

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HOUSE MOTION

Mr. Speaker: I move that House Bill 1004 be amended to read as follows:

Page 85, line 13, delete "may" and insert "**must**".

(Reference is to HB 1004 as printed January 22, 2026.)

DELANEY

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HOUSE MOTION

Mr. Speaker: I move that House Bill 1004 be amended to read as follows:

Page 118, line 25, after "teaching" reset in roman "in".

Page 118, line 26, reset in roman "a classroom;".

Page 118, line 26, delete "with a school corporation;".

(Reference is to HB 1004 as printed January 22, 2026.)

DELANEY



## COMMITTEE REPORT

Mr. President: The Senate Committee on Education and Career Development, to which was referred House Bill No. 1004, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 5, between lines 13 and 14, begin a new paragraph and insert:

"SECTION 4. IC 6-1.1-20-3.1, AS AMENDED BY P.L.68-2025, SECTION 66, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.1. (a) Subject to section 3.5(a)(1)(C) of this chapter, this section applies only to the following:

(1) A controlled project (as defined in section 1.1 of this chapter as in effect June 30, 2008) for which the proper officers of a political subdivision make a preliminary determination in the manner described in subsection (b) before July 1, 2008.

(2) An elementary school building, middle school building, high school building, or other school building for academic instruction that:

(A) is a controlled project;

(B) will be used for any combination of kindergarten through grade 12; and

(C) will not cost more than the lesser of the following:

(i) The threshold amount determined under this item. In the case of an ordinance or resolution adopted before January 1, 2018, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is ten million dollars (\$10,000,000). In the case of an ordinance or resolution adopted after December 31, 2017, and before January 1, 2019, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is fifteen million dollars (\$15,000,000). In the case of an ordinance or resolution adopted in a calendar year after December 31, 2018, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is an amount (as determined by the department of local government finance) equal to the result of the maximum levy growth quotient determined under IC 6-1.1-18.5-2 for the year multiplied by the threshold amount determined under this item for the preceding calendar year. In the case of a threshold amount determined under this item that applies for a calendar year after





December 31, 2018, the department of local government finance shall publish the threshold in the Indiana Register under IC 4-22-7-7 not more than sixty (60) days after the date the budget agency releases the maximum levy growth quotient for the ensuing year under IC 6-1.1-18.5-2.

(ii) An amount equal to one percent (1%) of the total gross assessed value of property within the political subdivision on the last assessment date, if that total gross assessed value is more than one billion dollars (\$1,000,000,000), or ten million dollars (\$10,000,000), if the total gross assessed value of property within the political subdivision on the last assessment date is not more than one billion dollars (\$1,000,000,000).

(3) Any other controlled project that:

(A) is not a controlled project described in subdivision (1) or (2); and

(B) will not cost the political subdivision more than the lesser of the following:

(i) The threshold amount determined under this item. In the case of an ordinance or resolution adopted before January 1, 2018, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is twelve million dollars (\$12,000,000). In the case of an ordinance or resolution adopted after December 31, 2017, and before January 1, 2019, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is fifteen million dollars (\$15,000,000). In the case of an ordinance or resolution adopted in a calendar year after December 31, 2018, making a preliminary determination to issue bonds or enter into a lease for the project, the threshold amount is an amount (as determined by the department of local government finance) equal to the result of the maximum levy growth quotient determined under IC 6-1.1-18.5-2 for the year multiplied by the threshold amount determined under this item for the preceding calendar year. In the case of a threshold amount determined under this item that applies for a calendar year after December 31, 2018, the department of local government finance shall publish the threshold in the Indiana Register under IC 4-22-7-7 not more than sixty (60) days after the date the budget agency releases the maximum levy growth quotient for the ensuing year under



IC 6-1.1-18.5-2.

(ii) An amount equal to one percent (1%) of the total gross assessed value of property within the political subdivision on the last assessment date, if that total gross assessed value is more than one hundred million dollars (\$100,000,000), or one million dollars (\$1,000,000), if the total gross assessed value of property within the political subdivision on the last assessment date is not more than one hundred million dollars (\$100,000,000).

(4) A controlled project funded by debt service if the scope of the project changes from the purpose of the project initially advertised to taxpayers as determined under section 4.2(c) of this chapter.

(5) This subdivision does not apply to a project for which a public hearing to issue bonds or enter into a lease has been conducted under IC 20-26-7-37 before July 1, 2023, or to a project for which an ordinance or resolution making a preliminary determination to issue bonds or enter into a lease is adopted after June 30, 2025.

Any other controlled project if both of the following apply:

(A) The political subdivision's total debt service tax rate is more than forty cents (\$0.40) per one hundred dollars (\$100) of assessed value, but less than eighty cents (\$0.80) per one hundred dollars (\$100) of assessed value.

(B) The controlled project is not otherwise described in section 3.5(a)(1) of this chapter.

This subdivision expires December 31, 2025. For purposes of this subdivision, a political subdivision's total debt service tax rate does not include a tax rate imposed in a referendum debt service levy approved by voters.

(6) Any other controlled project if the following apply:

(A) An ordinance or resolution making a preliminary determination to issue bonds or enter into a lease for the project is adopted after June 30, 2025.

(B) The controlled project is not otherwise described in section 3.5(a)(1) of this chapter.

(C) In the case of a:

(i) school corporation, the school corporation's total debt service tax rate is more than forty cents (\$0.40) per one hundred dollars (\$100) of assessed value, but not more than seventy cents (\$0.70) per one hundred dollars (\$100) of assessed value;

(ii) city, county, or town, the city's, county's, or town's total



debt service tax rate is more than twenty-five cents (\$0.25) per one hundred dollars (\$100) of assessed value, but not more than forty cents (\$0.40) per one hundred dollars (\$100) of assessed value; or

(iii) political subdivision not described in item (i) or (ii), the political subdivision's total debt service tax rate is more than five cents (\$0.05) per one hundred dollars (\$100) of assessed value, but not more than ten cents (\$0.10) per one hundred dollars (\$100) of assessed value.

However, this subdivision does not apply to a project for which a public hearing to issue bonds or enter into a lease has been conducted under IC 20-26-7-37 before July 1, 2025. For purposes of this subdivision, a political subdivision's total debt service tax rate does not include a tax rate imposed in a referendum debt service tax levy approved by voters.

(b) A political subdivision may not impose property taxes to pay debt service on bonds or lease rentals on a lease for a controlled project without completing the following procedures:

(1) The proper officers of a political subdivision shall publish notice in accordance with IC 5-3-1 and send notice by first class mail to the circuit court clerk ~~and to any organization that delivers to the officers, before January 1 of that year, an annual written request for such notices of any meeting to consider adoption of a resolution or an ordinance making a preliminary determination to issue bonds or enter into a lease~~ and shall conduct at least two (2) public hearings on a preliminary determination before adoption of the resolution or ordinance. The political subdivision must at each of the public hearings on the preliminary determination allow the public to testify regarding the preliminary determination and must make the following information available to the public at each of the public hearings on the preliminary determination, in addition to any other information required by law:

(A) The result of the political subdivision's current and projected annual debt service payments divided by the net assessed value of taxable property within the political subdivision.

(B) The result of:

- (i) the sum of the political subdivision's outstanding long term debt plus the outstanding long term debt of other taxing units that include any of the territory of the political subdivision; divided by
- (ii) the net assessed value of taxable property within the



political subdivision.

(C) The information specified in subdivision (3)(A) through (3)(H).

(2) When the proper officers of a political subdivision make a preliminary determination to issue bonds or enter into a lease for a controlled project, the officers shall give notice of the preliminary determination by:

(A) publication in accordance with IC 5-3-1; and

(B) first class mail to the circuit court clerk. ~~and to the organizations described in subdivision (1).~~

(3) A notice under subdivision (2) of the preliminary determination of the political subdivision to issue bonds or enter into a lease for a controlled project must include the following information:

(A) The maximum term of the bonds or lease.

(B) The maximum principal amount of the bonds or the maximum lease rental for the lease.

(C) The estimated interest rates that will be paid and the total interest costs associated with the bonds or lease.

(D) The purpose of the bonds or lease.

(E) A statement that any owners of property within the political subdivision or registered voters residing within the political subdivision who want to initiate a petition and remonstrance process against the proposed debt service or lease payments must file a petition that complies with subdivisions (4) and (5) not later than thirty (30) days after publication in accordance with IC 5-3-1.

(F) With respect to bonds issued or a lease entered into to open:

(i) a new school facility; or

(ii) an existing facility that has not been used for at least three (3) years and that is being reopened to provide additional classroom space;

the estimated costs the school corporation expects to incur annually to operate the facility.

(G) A statement of whether the school corporation expects to appeal for a new facility adjustment (as defined in IC 20-45-1-16 (repealed) before January 1, 2009) for an increased maximum permissible tuition support levy to pay the estimated costs described in clause (F).

(H) The following information:

(i) The political subdivision's current debt service levy and



rate.

(ii) The estimated increase to the political subdivision's debt service levy and rate that will result if the political subdivision issues the bonds or enters into the lease.

(iii) The estimated amount of the political subdivision's debt service levy and rate that will result during the following ten (10) years if the political subdivision issues the bonds or enters into the lease, after also considering any changes that will occur to the debt service levy and rate during that period on account of any outstanding bonds or lease obligations that will mature or terminate during that period.

(I) The information specified in subdivision (1)(A) through (1)(B).

(4) After notice is given, a petition requesting the application of a petition and remonstrance process may be filed by the lesser of:

(A) five hundred (500) persons who are either owners of property within the political subdivision or registered voters residing within the political subdivision; or

(B) five percent (5%) of the registered voters residing within the political subdivision.

(5) The state board of accounts shall design and, upon request by the county voter registration office, deliver to the county voter registration office or the county voter registration office's designated printer the petition forms to be used solely in the petition process described in this section. The county voter registration office shall issue to an owner or owners of property within the political subdivision or a registered voter residing within the political subdivision the number of petition forms requested by the owner or owners or the registered voter. Each form must be accompanied by instructions detailing the requirements that:

(A) the carrier and signers must be owners of property or registered voters;

(B) the carrier must be a signatory on at least one (1) petition;

(C) after the signatures have been collected, the carrier must swear or affirm before a notary public that the carrier witnessed each signature; and

(D) govern the closing date for the petition period.

Persons requesting forms may be required to identify themselves as owners of property or registered voters and may be allowed to pick up additional copies to distribute to other owners of property or registered voters. Each person signing a petition must indicate



whether the person is signing the petition as a registered voter within the political subdivision or is signing the petition as the owner of property within the political subdivision. A person who signs a petition as a registered voter must indicate the address at which the person is registered to vote. A person who signs a petition as an owner of property must indicate the address of the property owned by the person in the political subdivision.

(6) Each petition must be verified under oath by at least one (1) qualified petitioner in a manner prescribed by the state board of accounts before the petition is filed with the county voter registration office under subdivision (7).

(7) Each petition must be filed with the county voter registration office not more than thirty (30) days after publication under subdivision (2) of the notice of the preliminary determination.

(8) The county voter registration office shall determine whether each person who signed the petition is a registered voter. However, after the county voter registration office has determined that at least five hundred twenty-five (525) persons who signed the petition are registered voters within the political subdivision, the county voter registration office is not required to verify whether the remaining persons who signed the petition are registered voters. If the county voter registration office does not determine that at least five hundred twenty-five (525) persons who signed the petition are registered voters, the county voter registration office shall, not more than fifteen (15) business days after receiving a petition, forward a copy of the petition to the county auditor. Not more than ten (10) business days after receiving the copy of the petition, the county auditor shall provide to the county voter registration office a statement verifying:

(A) whether a person who signed the petition as a registered voter but is not a registered voter, as determined by the county voter registration office, is the owner of property in the political subdivision; and

(B) whether a person who signed the petition as an owner of property within the political subdivision does in fact own property within the political subdivision.

(9) The county voter registration office, not more than ten (10) business days after determining that at least five hundred twenty-five (525) persons who signed the petition are registered voters or receiving the statement from the county auditor under subdivision (8), as applicable, shall make the final determination of the number of petitioners that are registered voters in the



political subdivision and, based on the statement provided by the county auditor, the number of petitioners that own property within the political subdivision. Whenever the name of an individual who signs a petition form as a registered voter contains a minor variation from the name of the registered voter as set forth in the records of the county voter registration office, the signature is presumed to be valid, and there is a presumption that the individual is entitled to sign the petition under this section. Except as otherwise provided in this chapter, in determining whether an individual is a registered voter, the county voter registration office shall apply the requirements and procedures used under IC 3 to determine whether a person is a registered voter for purposes of voting in an election governed by IC 3. However, an individual is not required to comply with the provisions concerning providing proof of identification to be considered a registered voter for purposes of this chapter. A person is entitled to sign a petition only one (1) time in a particular petition and remonstrance process under this chapter, regardless of whether the person owns more than one (1) parcel of real property, mobile home assessed as personal property, or manufactured home assessed as personal property, or a combination of those types of property within the subdivision and regardless of whether the person is both a registered voter in the political subdivision and the owner of property within the political subdivision. Notwithstanding any other provision of this section, if a petition is presented to the county voter registration office within forty-five (45) days before an election, the county voter registration office may defer acting on the petition, and the time requirements under this section for action by the county voter registration office do not begin to run until five (5) days after the date of the election.

(10) The county voter registration office must file a certificate and each petition with:

(A) the township trustee, if the political subdivision is a township, who shall present the petition or petitions to the township board; or

(B) the body that has the authority to authorize the issuance of the bonds or the execution of a lease, if the political subdivision is not a township;

within thirty-five (35) business days of the filing of the petition requesting a petition and remonstrance process. The certificate must state the number of petitioners that are owners of property within the political subdivision and the number of petitioners who



are registered voters residing within the political subdivision. If a sufficient petition requesting a petition and remonstrance process is not filed by owners of property or registered voters as set forth in this section, the political subdivision may issue bonds or enter into a lease by following the provisions of law relating to the bonds to be issued or lease to be entered into.

(c) A political subdivision may not divide a controlled project in order to avoid the requirements of this section and section 3.2 of this chapter. A person that owns property within a political subdivision or a person that is a registered voter residing within a political subdivision may file a petition with the department of local government finance objecting that the political subdivision has divided a controlled project in order to avoid the requirements of this section and section 3.2 of this chapter. The petition must be filed not more than ten (10) days after the political subdivision gives notice of the political subdivision's decision to issue bonds or enter into leases for a capital project that the person believes is the result of a division of a controlled project that is prohibited by this subsection. If the department of local government finance receives a petition under this subsection, the department shall not later than thirty (30) days after receiving the petition make a final determination on the issue of whether the political subdivision divided a controlled project in order to avoid the requirements of this section and section 3.2 of this chapter. If the department of local government finance determines that a political subdivision divided a controlled project in order to avoid the requirements of this section and section 3.2 of this chapter and the political subdivision continues to desire to proceed with the project, the political subdivision shall fulfill the requirements of this section and section 3.2 of this chapter, if applicable, regardless of the cost of the project in dispute. A political subdivision shall be considered to have divided a capital project in order to avoid the requirements of this section and section 3.2 of this chapter if the result of one (1) or more of the subprojects cannot reasonably be considered an independently desirable end in itself without reference to another capital project. This subsection does not prohibit a political subdivision from undertaking a series of capital projects in which the result of each capital project can reasonably be considered an independently desirable end in itself without reference to another capital project.

SECTION 5. IC 6-1.1-20-3.2, AS AMENDED BY P.L.246-2017, SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 3.2. (a) Subject to section 3.5(a)(1)(C) of this chapter, this section applies only to controlled projects described in





section 3.1(a) of this chapter.

(b) If a sufficient petition requesting the application of a petition and remonstrance process has been filed as set forth in section 3.1 of this chapter, a political subdivision may not impose property taxes to pay debt service on bonds or lease rentals on a lease for a controlled project without completing the following procedures:

(1) The proper officers of the political subdivision shall give notice of the applicability of the petition and remonstrance process by:

(A) publication in accordance with IC 5-3-1; and

(B) first class mail to the circuit court clerk. ~~and to the organizations described in section 3.1(b)(1) of this chapter.~~

A notice under this subdivision must include a statement that any owners of property within the political subdivision or registered voters residing within the political subdivision who want to petition in favor of or remonstrate against the proposed debt service or lease payments must file petitions and remonstrances in compliance with subdivisions (2) through (4) not earlier than thirty (30) days or later than sixty (60) days after publication in accordance with IC 5-3-1.

(2) Not earlier than thirty (30) days or later than sixty (60) days after the notice under subdivision (1) is given:

(A) petitions (described in subdivision (3)) in favor of the bonds or lease; and

(B) remonstrances (described in subdivision (3)) against the bonds or lease;

may be filed by an owner or owners of property within the political subdivision or a registered voter residing within the political subdivision. Each signature on a petition must be dated, and the date of signature may not be before the date on which the petition and remonstrance forms may be issued under subdivision (3). A petition described in clause (A) or a remonstrance described in clause (B) must be verified in compliance with subdivision (4) before the petition or remonstrance is filed with the county voter registration office under subdivision (4).

(3) The state board of accounts shall design and, upon request by the county voter registration office, deliver to the county voter registration office or the county voter registration office's designated printer the petition and remonstrance forms to be used solely in the petition and remonstrance process described in this section. The county voter registration office shall issue to an owner or owners of property within the political subdivision or a



registered voter residing within the political subdivision the number of petition or remonstrance forms requested by the owner or owners or the registered voter. Each form must be accompanied by instructions detailing the requirements that:

- (A) the carrier and signers must be owners of property or registered voters;
- (B) the carrier must be a signatory on at least one (1) petition;
- (C) after the signatures have been collected, the carrier must swear or affirm before a notary public that the carrier witnessed each signature;
- (D) govern the closing date for the petition and remonstrance period; and
- (E) apply to the carrier under section 10 of this chapter.

Persons requesting forms may be required to identify themselves as owners of property or registered voters and may be allowed to pick up additional copies to distribute to other owners of property or registered voters. Each person signing a petition or remonstrance must indicate whether the person is signing the petition or remonstrance as a registered voter within the political subdivision or is signing the petition or remonstrance as the owner of property within the political subdivision. A person who signs a petition or remonstrance as a registered voter must indicate the address at which the person is registered to vote. A person who signs a petition or remonstrance as an owner of property must indicate the address of the property owned by the person in the political subdivision. The county voter registration office may not issue a petition or remonstrance form earlier than twenty-nine (29) days after the notice is given under subdivision (1). The county voter registration office shall certify the date of issuance on each petition or remonstrance form that is distributed under this subdivision.

(4) The petitions and remonstrances must be verified in the manner prescribed by the state board of accounts and filed with the county voter registration office within the sixty (60) day period described in subdivision (2) in the manner set forth in section 3.1 of this chapter relating to requests for a petition and remonstrance process.

(5) The county voter registration office shall determine whether each person who signed the petition or remonstrance is a registered voter. The county voter registration office shall not more than fifteen (15) business days after receiving a petition or remonstrance forward a copy of the petition or remonstrance to



the county auditor. Not more than ten (10) business days after receiving the copy of the petition or remonstrance, the county auditor shall provide to the county voter registration office a statement verifying:

- (A) whether a person who signed the petition or remonstrance as a registered voter but is not a registered voter, as determined by the county voter registration office, is the owner of property in the political subdivision; and
  - (B) whether a person who signed the petition or remonstrance as an owner of property within the political subdivision does in fact own property within the political subdivision.
- (6) The county voter registration office shall not more than ten (10) business days after receiving the statement from the county auditor under subdivision (5) make the final determination of:
- (A) the number of registered voters in the political subdivision that signed a petition and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a petition; and
  - (B) the number of registered voters in the political subdivision that signed a remonstrance and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a remonstrance.

Whenever the name of an individual who signs a petition or remonstrance as a registered voter contains a minor variation from the name of the registered voter as set forth in the records of the county voter registration office, the signature is presumed to be valid, and there is a presumption that the individual is entitled to sign the petition or remonstrance under this section. Except as otherwise provided in this chapter, in determining whether an individual is a registered voter, the county voter registration office shall apply the requirements and procedures used under IC 3 to determine whether a person is a registered voter for purposes of voting in an election governed by IC 3. However, an individual is not required to comply with the provisions concerning providing proof of identification to be considered a registered voter for purposes of this chapter. A person is entitled to sign a petition or remonstrance only one (1) time in a particular petition and remonstrance process under this chapter, regardless of whether the person owns more than one (1) parcel of real property, mobile home assessed as personal property, or manufactured home assessed as personal property or a combination of those types of



property within the subdivision and regardless of whether the person is both a registered voter in the political subdivision and the owner of property within the political subdivision. Notwithstanding any other provision of this section, if a petition or remonstrance is presented to the county voter registration office within forty-five (45) days before an election, the county voter registration office may defer acting on the petition or remonstrance, and the time requirements under this section for action by the county voter registration office do not begin to run until five (5) days after the date of the election.

(7) The county voter registration office must file a certificate and the petition or remonstrance with the body of the political subdivision charged with issuing bonds or entering into leases within thirty-five (35) business days of the filing of a petition or remonstrance under subdivision (4), whichever applies, containing ten thousand (10,000) signatures or less. The county voter registration office may take an additional five (5) days to review and certify the petition or remonstrance for each additional five thousand (5,000) signatures up to a maximum of sixty (60) days. The certificate must state the number of petitioners and remonstrators that are owners of property within the political subdivision and the number of petitioners who are registered voters residing within the political subdivision.

(8) If a greater number of persons who are either owners of property within the political subdivision or registered voters residing within the political subdivision sign a remonstrance than the number that signed a petition, the bonds petitioned for may not be issued or the lease petitioned for may not be entered into. The proper officers of the political subdivision may not make a preliminary determination to issue bonds or enter into a lease for the controlled project defeated by the petition and remonstrance process under this section or any other controlled project that is not substantially different within one (1) year after the date of the county voter registration office's certificate under subdivision (7). Withdrawal of a petition carries the same consequences as a defeat of the petition.

(9) After a political subdivision has gone through the petition and remonstrance process set forth in this section, the political subdivision is not required to follow any other remonstrance or objection procedures under any other law (including section 5 of this chapter) relating to bonds or leases designed to protect owners of property within the political subdivision from the



imposition of property taxes to pay debt service or lease rentals. However, the political subdivision must still receive the approval of the department of local government finance if required by:

- (A) IC 6-1.1-18.5-8; or
- (B) IC 20-46-7-8, IC 20-46-7-9, and IC 20-46-7-10.

SECTION 6. IC 6-1.1-20-4.2, AS ADDED BY P.L.136-2024, SECTION 26, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4.2. (a) This section applies only if, with respect to a particular controlled project that fulfilled the petition and remonstrance process under sections 3.1 and 3.2 of this chapter, the political subdivision subsequently changes the scope of the controlled project beyond that initially presented.

(b) Notwithstanding any other provision in this chapter, if at least ten (10) persons who are either owners of property within the political subdivision or registered voters residing within the political subdivision file a petition with the proper officers of the political subdivision contending that the scope of a controlled project has changed from how it was initially presented, the proper officers of the political subdivision shall hold a public hearing to determine whether any change in scope is significant enough to warrant a new petition and remonstrance process. A petition under this subsection must be filed not later than one (1) year after the controlled project received final approval.

(c) Notwithstanding any other provision in this chapter, if it is determined at the hearing described in subsection (b) that the political subdivision has subsequently changed the scope of a controlled project beyond that initially presented as described in subsection (a), the political subdivision must complete the following procedures under this section:

(1) The proper officers of the political subdivision shall give notice of the applicability of the petition and remonstrance process by:

- (A) publication in accordance with IC 5-3-1; and
- (B) first class mail to the circuit court clerk. ~~and to the organizations described in section 3.1(b)(1) of this chapter.~~

A notice under this subdivision must include a statement that any owners of property within the political subdivision or registered voters residing within the political subdivision who want to petition in favor of or remonstrate against the proposed debt service or lease payments must file petitions and remonstrances in compliance with subdivisions (2) through (4) not earlier than thirty (30) days or later than sixty (60) days after publication in



accordance with IC 5-3-1.

(2) Not earlier than thirty (30) days or later than sixty (60) days after the notice under subdivision (1) is given:

(A) petitions (described in subdivision (3)) in favor of the bonds or lease; and

(B) remonstrances (described in subdivision (3)) against the bonds or lease;

may be filed by an owner or owners of property within the political subdivision or a registered voter residing within the political subdivision. Each signature on a petition must be dated, and the date of signature may not be before the date on which the petition and remonstrance forms may be issued under subdivision (3). A petition described in clause (A) or a remonstrance described in clause (B) must be verified in compliance with subdivision (4) before the petition or remonstrance is filed with the county voter registration office under subdivision (4).

(3) The state board of accounts shall design and, upon request by the county voter registration office, deliver to the county voter registration office or the county voter registration office's designated printer the petition and remonstrance forms to be used solely in the petition and remonstrance process described in this section. The county voter registration office shall issue to an owner or owners of property within the political subdivision or a registered voter residing within the political subdivision the number of petition or remonstrance forms requested by the owner or owners or the registered voter. Each form must be accompanied by instructions detailing the requirements that:

(A) the carrier and signers must be owners of property or registered voters;

(B) the carrier must be a signatory on at least one (1) petition;

(C) after the signatures have been collected, the carrier must swear or affirm before a notary public that the carrier witnessed each signature;

(D) govern the closing date for the petition and remonstrance period; and

(E) apply to the carrier under section 10 of this chapter.

Persons requesting forms may be required to identify themselves as owners of property or registered voters and may be allowed to pick up additional copies to distribute to other owners of property or registered voters. Each person signing a petition or remonstrance must indicate whether the person is signing the petition or remonstrance as a registered voter within the political



subdivision or is signing the petition or remonstrance as the owner of property within the political subdivision. A person who signs a petition or remonstrance as a registered voter must indicate the address at which the person is registered to vote. A person who signs a petition or remonstrance as an owner of property must indicate the address of the property owned by the person in the political subdivision. The county voter registration office may not issue a petition or remonstrance form earlier than twenty-nine (29) days after the notice is given under subdivision (1). The county voter registration office shall certify the date of issuance on each petition or remonstrance form that is distributed under this subdivision.

(4) The petitions and remonstrances must be verified in the manner prescribed by the state board of accounts and filed with the county voter registration office within the sixty (60) day period described in subdivision (2) in the manner set forth in section 3.1 of this chapter relating to requests for a petition and remonstrance process.

(5) The county voter registration office shall determine whether each person who signed the petition or remonstrance is a registered voter. The county voter registration office shall not more than fifteen (15) business days after receiving a petition or remonstrance forward a copy of the petition or remonstrance to the county auditor. Not more than ten (10) business days after receiving the copy of the petition or remonstrance, the county auditor shall provide to the county voter registration office a statement verifying:

(A) whether a person who signed the petition or remonstrance as a registered voter but is not a registered voter, as determined by the county voter registration office, is the owner of property in the political subdivision; and

(B) whether a person who signed the petition or remonstrance as an owner of property within the political subdivision does in fact own property within the political subdivision.

(6) The county voter registration office shall not more than ten (10) business days after receiving the statement from the county auditor under subdivision (5) make the final determination of:

(A) the number of registered voters in the political subdivision that signed a petition and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a petition; and

(B) the number of registered voters in the political subdivision



that signed a remonstrance and, based on the statement provided by the county auditor, the number of owners of property within the political subdivision that signed a remonstrance.

Whenever the name of an individual who signs a petition or remonstrance as a registered voter contains a minor variation from the name of the registered voter as set forth in the records of the county voter registration office, the signature is presumed to be valid, and there is a presumption that the individual is entitled to sign the petition or remonstrance under this section. Except as otherwise provided in this chapter, in determining whether an individual is a registered voter, the county voter registration office shall apply the requirements and procedures used under IC 3 to determine whether a person is a registered voter for purposes of voting in an election governed by IC 3. However, an individual is not required to comply with the provisions concerning providing proof of identification to be considered a registered voter for purposes of this chapter. A person is entitled to sign a petition or remonstrance only one (1) time in a particular petition and remonstrance process under this chapter, regardless of whether the person owns more than one (1) parcel of real property, mobile home assessed as personal property, or manufactured home assessed as personal property or a combination of those types of property within the subdivision and regardless of whether the person is both a registered voter in the political subdivision and the owner of property within the political subdivision. Notwithstanding any other provision of this section, if a petition or remonstrance is presented to the county voter registration office within forty-five (45) days before an election, the county voter registration office may defer acting on the petition or remonstrance, and the time requirements under this section for action by the county voter registration office do not begin to run until five (5) days after the date of the election.

(7) The county voter registration office must file a certificate and the petition or remonstrance with the body of the political subdivision within thirty-five (35) business days of the filing of a petition or remonstrance under subdivision (4), whichever applies, containing ten thousand (10,000) signatures or less. The county voter registration office may take an additional five (5) days to review and certify the petition or remonstrance for each additional five thousand (5,000) signatures up to a maximum of sixty (60) days. The certificate must state the number of





petitioners and remonstrators that are owners of property within the political subdivision and the number of petitioners who are registered voters residing within the political subdivision.

(8) If a greater number of persons who are either owners of property within the political subdivision or registered voters residing within the political subdivision sign a remonstrance than the number that signed a petition, the political subdivision may not proceed with the changed scope of the controlled project. In that case, the political subdivision may either:

(A) proceed with the controlled project as it was initially presented; or

(B) terminate the controlled project as it was initially presented and initiate procedures for the controlled project that reflects the change in scope.

Withdrawal of a petition carries the same consequences as a defeat of the petition.

(9) After a political subdivision has gone through the petition and remonstrance process set forth in this section, the political subdivision is not required to follow any other remonstrance or objection procedures under any other law (including section 5 of this chapter) relating to bonds or leases designed to protect owners of property within the political subdivision from the imposition of property taxes to pay debt service or lease rentals. However, the political subdivision must still receive the approval of the department of local government finance if required by:

(A) IC 6-1.1-18.5-8; or

(B) IC 20-46-7-8, IC 20-46-7-9, and IC 20-46-7-10."

Page 6, line 11, delete "subsection (a)" and insert "**subsection (b)**".

Page 6, line 18, delete "subsection (a)" and insert "**subsection (b)**".

Page 6, line 23, delete "subsection (a)" and insert "**subsection (b)**".

Page 35, line 33, after "money" insert "**under**".

Page 80, line 9, after "charter" insert "**school**".

Page 103, line 11, delete ".".

Page 134, line 27, delete "this".

Page 140, line 39, delete "(A)" and insert "**(A)**".

Page 156, line 27, delete "IC 20-18-2-18" and insert "**IC 20-18-2-18)**".

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass and be reassigned to the Senate Committee on Appropriations.



(Reference is to HB 1004 as reprinted January 28, 2026.)

RAATZ, Chairperson

Committee Vote: Yeas 8, Nays 4.

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#### COMMITTEE REPORT

Mr. President: The Senate Committee on Appropriations, to which was referred Engrossed House Bill No. 1004, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill DO PASS.

(Reference is to EHB 1004 as printed February 13, 2026.)

MISHLER, Chairperson

Committee Vote: Yeas 8, Nays 3

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#### SENATE MOTION

Mr. President: I move that Engrossed House Bill 1004 be amended to read as follows:

Page 137, delete lines 23 through 39, begin a new paragraph and insert:

"SECTION 103. IC 20-28-8-2, AS AMENDED BY P.L.43-2021, SECTION 92, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. A contract of employment shall be entered into between the governing body of the school corporation and a principal or assistant principal subject to the following conditions:

(1) The basic contract must be the regular teacher's contract as prescribed by the secretary of education **unless the parties agree to an alternative employment contract.**

(2) This subdivision applies to contracts entered into or renewed after June 30, 2019. The initial contract must be for a term of at least one (1) year and not more than three (3) years. However, a contract may be extended for not more than an additional three (3) years beyond the term of the original contract.

(3) The contract may be altered, modified, or rescinded in favor of a new contract at any time by mutual consent of the governing body of the school corporation and the principal or assistant

**EH 1004—LS 6983/DI 110**



principal, if the contract, when reduced to writing, is consistent with this chapter."

Renumber all SECTIONS consecutively.

(Reference is to EHB 1004 as printed February 20, 2026.)

JOHNSON T

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SENATE MOTION

Mr. President: I move that Engrossed House Bill 1004 be amended to read as follows:

Page 100, between lines 1 and 2, begin a new line block indented and insert:

**"IC 20-30-18 (middle school advanced math course automatic enrollment)."**

(Reference is to EHB 1004 as printed February 20, 2026.)

JOHNSON T

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SENATE MOTION

Mr. President: I move that Engrossed House Bill 1004 be amended to read as follows:

Page 56, line 10, delete "nonprofit" and insert "**private or nonprofit**".

Page 56, line 13, delete "nonprofit" and insert "**private or nonprofit**".

(Reference is to EHB 1004 as printed February 20, 2026.)

DONATO

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SENATE MOTION

Mr. President: I move that Engrossed House Bill 1004 be amended

**EH 1004—LS 6983/DI 110**



to read as follows:

Page 114, delete lines 30 through 42, begin a new paragraph and insert:

"SECTION 61. IC 20-26-5-40.5, AS AMENDED BY THE TECHNICAL CORRECTIONS BILL OF THE 2026 GENERAL ASSEMBLY, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40.5. (a) ~~Not later than January 1, 2022~~, Each school corporation and charter school shall adopt and implement an Internet use policy that:

(1) prohibits the sending, receiving, viewing, or downloading of materials that are harmful to minors (as described in IC 35-49-2-2) on computers and other technology related devices owned by the school corporation or charter school;

(2) provides for the use of hardware or installation of software on computers and other technology related devices described in subdivision (1) to filter or block Internet access to materials that are harmful to minors; and

(3) establishes appropriate disciplinary measures to be taken against persons violating the policy established under this section.

(b) ~~Not later than January 1, 2022~~, Each school corporation and charter school shall use hardware or install software on computers and other technology related devices described in subsection (a)(1) to filter or block Internet access to materials that are harmful to minors.

**(c) Except as provided in subsection (e), not later than January 1, 2027, each school corporation and charter school shall adopt and implement a policy that enables the parent of a student to:**

**(1) increase the strength of the filter described in subsection (b);**

**(2) block access to websites or content accessible on a device described in subsection (a)(1); and**

**(3) limit the amount of time a device described in subsection (a)(1) may be used by the student;**

**while the student is not in school or engaged in virtual instruction or remote learning. A school to which this subsection applies must inform each parent of a student enrolled in the school of the policy described in this subsection.**

~~(c)~~ **(d)** Each school corporation and charter school shall post on the school corporation's or charter school's ~~Internet web site~~ **website** the Internet use policy established under subsection (a).

**(e) A school to which this section applies that, as of June 30, 2026, has a contract with a vendor that:**

**(1) provides for the implementation of the requirements of**



**subsection (b); and**  
**(2) cannot provide for the implementation of the requirements**  
**of subsection (c);**  
**is exempt from the requirements of subsection (c) until the**  
**expiration or renewal of the contract. This subsection expires July**  
**1, 2030.**

SECTION 62. IC 20-26-5-40.7, AS ADDED BY P.L.24-2024, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 40.7. (a) As used in this section, "instructional time" has the meaning set forth in IC 20-30-2-1.

(b) As used in this section, "wireless communication device" means any portable wireless device that has the capability to provide voice, messaging, or other data communication between two (2) or more parties, including a:

- (1) cellular telephone;
- (2) tablet computer;
- (3) laptop computer; or
- (4) gaming device.

(c) Each school corporation and charter school shall adopt and implement a wireless communication device policy that:

- (1) except as provided in subdivisions (2) and (3) and subsection (d), prohibits a student from using a:

**(A) wireless communication device during instructional time;**  
**and**

**(B) school supplied wireless communication device for a noneducational purpose during the school day;**

- (2) authorizes a teacher to allow a student to use a wireless communication device for educational purposes during instructional time; and

- (3) permits a student to use a wireless communication device in the event of an emergency or to manage the student's health care.

(d) The policy adopted and implemented under subsection (c) may not prohibit a student from using a wireless communication device during instructional time if the use of the wireless communication device is included in the student's:

- (1) individualized education program; or
- (2) plan developed under Section 504 of the federal Rehabilitation Act of 1973, 29 U.S.C. 794.

(e) Each school corporation and charter school shall publish on its website the wireless communication device policy established under subsection (c)."

Delete page 115.



(Reference is to EHB 1004 as printed February 20, 2026.)

DEERY

